

SOLICITATION, OFFER AND AWARD				1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		RATING		PAGE OF PAGES 1 135			
2. CONTRACT NO.		3. SOLICITATION NO. N0018925RZ003		4. TYPE OF SOLICITATION [] SEALED BID (IFB) [X] NEGOTIATED (RFP)		5. DATE ISSUED		6. REQUISITION/PURCHASE NO. N4585420250041			
7. ISSUED BY NAVSUP FLC NORFOLK CONTRACTING PHILADELPHIA OFFICE 700 ROBBINS AVENUE, BLDG 2B PHILADELPHIA PA 19111-5083 TEL: FAX:				CODE N00189		8. ADDRESS OFFER TO (If other than Item 7) See Item 7 TEL: FAX:		CODE			
NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".											
SOLICITATION											
9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in _____ until _____ local time _____ (Hour) (Date)											
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.											
10. FOR INFORMATION CALL:		A. NAME LAUREN LAUVER		B. TELEPHONE (Include area code) (NO COLLECT CALLS) 215-697-5023		C. E-MAIL ADDRESS lauren.lauver@navy.mil					
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OFFER (Must be fully completed by offeror)											
NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.											
12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.											
13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8)											
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):				AMENDMENT NO.		DATE		AMENDMENT NO.		DATE	
15A. NAME AND ADDRESS OF OFFEROR		CODE		FACILITY		16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)					
15B. TELEPHONE NO (Include area code)		☐		15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE		18. OFFER DATE			
AWARD (To be completed by Government)											
19. ACCEPTED AS TO ITEMS NUMBERED				20. AMOUNT		21. ACCOUNTING AND APPROPRIATION					
22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION: ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()						23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)		ITEM			
24. ADMINISTERED BY (If other than Item 7)				CODE		25. PAYMENT WILL BE MADE BY		CODE			
26. NAME OF CONTRACTING OFFICER (Type or print) TEL: EMAIL:						27. UNITED STATES OF AMERICA (Signature of Contracting Officer)		28. AWARD DATE			

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

Section B - Supplies or Services and Prices

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	ROTHR Operations & Maintenance Services CPAF Radar operations and maintenance services in accordance with the Performance Work Statement (PWS). NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. FOB: Destination MILSTRIP: N4585420250041 PURCHASE REQUEST NUMBER: N4585420250041 PSC CD: M1BC		Lot		

ESTIMATED COST

BASE FEE

SUBTOTAL EST COST + BASE

MAX AWARD FEE

TOTAL EST COST + FEE

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	Deliverables CPAF Deliverables in accordance with the Section J, Exhibit A, Contracts Data Requirements List (CDRL), DD Form 1423. Deliverables are Not Separately Priced (NSP).				

ESTIMATED COST

BASE FEE

SUBTOTAL EST COST + BASE

MAX AWARD FEE

TOTAL EST COST + FEE

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001 OPTION	ROTH Operations & Maintenance Services CPAF Option I. Radar operations and maintenance services in accordance with the Performance Work Statement (PWS). NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. FOB: Destination MILSTRIP: N4585420250041 PSC CD: M1BC		Lot		
ESTIMATED COST					
BASE FEE					
SUBTOTAL EST COST + BASE					
MAX AWARD FEE					
TOTAL EST COST + FEE					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1002 OPTION	Deliverables CPAF Option I Deliverables in accordance with the Section J, Exhibit A, Contracts Data Requirements List (CDRL), DD Form 1423. Deliverables are Not Separately Priced (NSP).				
ESTIMATED COST					
BASE FEE					
SUBTOTAL EST COST + BASE					
MAX AWARD FEE					
TOTAL EST COST + FEE					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2001 OPTION	ROTH Operations & Maintenance Services CPAF Option II. Radar operations and maintenance services in accordance with the Performance Work Statement (PWS). NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. FOB: Destination MILSTRIP: N4585420250041 PSC CD: M1BC		Lot		
ESTIMATED COST					
BASE FEE					
SUBTOTAL EST COST + BASE					
MAX AWARD FEE					
TOTAL EST COST + FEE					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2002 OPTION	Deliverables CPAF Option II Deliverables in accordance with the Section J, Exhibit A, Contracts Data Requirements List (CDRL), DD Form 1423. Deliverables are Not Separately Priced (NSP).				
ESTIMATED COST					
BASE FEE					
SUBTOTAL EST COST + BASE					
MAX AWARD FEE					
TOTAL EST COST + FEE					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3001			Lot		
OPTION	ROTH Operations & Maintenance Services CPAF Option III. Radar operations and maintenance services in accordance with the Performance Work Statement (PWS). NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. FOB: Destination MILSTRIP: N4585420250041 PSC CD: M1BC				
				ESTIMATED COST	
				BASE FEE	
				SUBTOTAL EST COST + BASE	
				MAX AWARD FEE	
				TOTAL EST COST + FEE	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3002					
OPTION	Deliverables CPAF Option III Deliverables in accordance with the Section J, Exhibit A, Contracts Data Requirements List (CDRL), DD Form 1423. Deliverables are Not Separately Priced (NSP).				
				ESTIMATED COST	
				BASE FEE	
				SUBTOTAL EST COST + BASE	
				MAX AWARD FEE	
				TOTAL EST COST + FEE	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4001			Lot		
OPTION	ROTH Operations & Maintenance Services CPAF Option IV. Radar operations and maintenance services in accordance with the Performance Work Statement (PWS). NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. FOB: Destination MILSTRIP: N4585420250041 PSC CD: MIBC				
				ESTIMATED COST	
				BASE FEE	
				SUBTOTAL EST COST + BASE	
				MAX AWARD FEE	
				TOTAL EST COST + FEE	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4002					
OPTION	Deliverables CPAF Option IV Deliverables in accordance with the Section J, Exhibit A, Contracts Data Requirements List (CDRL), DD Form 1423. Deliverables are Not Separately Priced (NSP).				
				ESTIMATED COST	
				BASE FEE	
				SUBTOTAL EST COST + BASE	
				MAX AWARD FEE	
				TOTAL EST COST + FEE	

CLAUSES INCORPORATED BY FULL TEXT

52.237-10 IDENTIFICATION OF UNCOMPENSATED OVERTIME (MAR 2015)

(a) Definitions. As used in this provision--

Adjusted hourly rate (including uncompensated overtime) is the rate that results from multiplying the hourly rate for a 40-hour work week by 40, and then dividing by the proposed hours per week which includes uncompensated overtime hours over and above the standard 40-hour work week. For example, 45 hours proposed on a 40-

hour work week basis at \$20 per hour would be converted to an uncompensated overtime rate of \$17.78 per hour (\$20.00 x 40 divided by 45 = \$17.78).

Uncompensated overtime means the hours worked without additional compensation in excess of an average of 40 hours per week by direct charge employees who are exempt from the Fair Labor Standards Act. Compensated personal absences such as holidays, vacations, and sick leave shall be included in the normal work week for purposes of computing uncompensated overtime hours.

(b)(1) Whenever there is uncompensated overtime, the adjusted hourly rate (including uncompensated overtime), rather than the hourly rate, shall be applied to all proposed hours, whether regular or overtime hours.

(2) All proposed labor hours subject to the adjusted hourly rate (including uncompensated overtime) shall be identified as either regular or overtime hours, by labor categories, and described at the same level of detail. This is applicable to all proposals whether the labor hours are at the prime or subcontract level. This includes uncompensated overtime hours that are in indirect cost pools for personnel whose regular hours are normally charged direct.

(c) The offeror's accounting practices used to estimate uncompensated overtime must be consistent with its cost accounting practices used to accumulate and report uncompensated overtime hours.

(d) Proposals that include unrealistically low labor rates, or that do not otherwise demonstrate cost realism, will be considered in a risk assessment and will be evaluated for award in accordance with that assessment.

(e) The offeror shall include a copy of its policy addressing uncompensated overtime with its proposal.

(End of clause)

SECTION B LANGUAGE

SECTION B LANGUAGE

DATA LINE ITEM (NOT SEPARATELY PRICED)(OCT 1992)

Contractor data to be furnished in accordance with DD Form 1423, Exhibit A.

LEVEL OF EFFORT (COST TYPE CONTRACT) ("C"-TYPE CONTRACT) (SEP 2015)

(a) The level of effort for the performance of this contract during the period from the start of contract performance to 12 months thereafter is based upon 466,880 estimated manhours of direct labor. If all options are exercised by the government, the level of effort for the performance of this contract will be increased by an additional 1,867,520 estimated manhours of direct labor, for a total level of effort of 2,334,400 estimated manhours of direct labor (hereinafter referred to as the "Estimated Total Hours").

(b) The estimated composition by labor category of the Estimated Total Hours is as follows:

Labor Categories	Base	Option I	Option II	Option III	Option IV
Program Manager	1,920	1,920	1,920	1,920	1,920
Program Administrator	1,920	1,920	1,920	1,920	1,920
Radar Performance Manager	1,920	1,920	1,920	1,920	1,920
Logistics Property Manager	1,920	1,920	1,920	1,920	1,920
ROTHR Maintenance Manager	1,920	1,920	1,920	1,920	1,920

ROTHR Maintenance Coordinator	1,920	1,920	1,920	1,920	1,920
Facilities Maintenance and Repair Manager	1,920	1,920	1,920	1,920	1,920
Operations Manager	1,920	1,920	1,920	1,920	1,920
Operations Support Manager	1,920	1,920	1,920	1,920	1,920
Operations Analyst / Training Supervisor / COMSEC	3,840	3,840	3,840	3,840	3,840
ROTHR Watch Supervisor	8,320	8,320	8,320	8,320	8,320
Purchasing Specialist	3,840	3,840	3,840	3,840	3,840
Quality Program Manager	1,920	1,920	1,920	1,920	1,920
Environmental/Health/Safety Program Manager	1,920	1,920	1,920	1,920	1,920
Quality/Environmental/Health/Safety Technician	11,520	11,520	11,520	11,520	11,520
Financial Analyst	1,920	1,920	1,920	1,920	1,920
Financial Control Analyst	960	960	960	960	960
Site Supervisor	11,520	11,520	11,520	11,520	11,520
Communications Engineer	1,920	1,920	1,920	1,920	1,920
EAM/MMIS Administrator	1,920	1,920	1,920	1,920	1,920
Electrician	5,760	5,760	5,760	5,760	5,760
Engineering Technician 5	3,840	3,840	3,840	3,840	3,840
Engineering Technician 4	36,480	36,480	36,480	36,480	36,480
Electronics Tech Maintenance 3	49,920	49,920	49,920	49,920	49,920
Electronics Tech Maintenance 2	83,200	83,200	83,200	83,200	83,200
Engineering Technician 3	124,800	124,800	124,800	124,800	124,800
General Maintenance Worker	11,520	11,520	11,520	11,520	11,520
Grounds Maintenance Laborer	24,960	24,960	24,960	24,960	24,960
HVAC Mechanic	5,760	5,760	5,760	5,760	5,760
Janitor	11,520	11,520	11,520	11,520	11,520
Secretary 3	4,800	4,800	4,800	4,800	4,800
Supply Technician	11,520	11,520	11,520	11,520	11,520
Warehouse Specialist	7,680	7,680	7,680	7,680	7,680
ROTHR Information Technology Manager	1,920	1,920	1,920	1,920	1,920
ROTHR Cyber Tools Administrator	1,920	1,920	1,920	1,920	1,920
ROTHR Information System Security Officer	1,920	1,920	1,920	1,920	1,920
ROTHR Network Engineer	1,920	1,920	1,920	1,920	1,920
ROTHR System Administrator	1,920	1,920	1,920	1,920	1,920
ROTHR System Administrator	1,920	1,920	1,920	1,920	1,920
EAM MMIS SQL Database Administrator	1,920	1,920	1,920	1,920	1,920

Visitor Control Administrator (Secretary 3)	960	960	960	960	960
Technical Writer 3	1,920	1,920	1,920	1,920	1,920
ROTHR Analyst	1,920	1,920	1,920	1,920	1,920
Total Estimated Hours	466,880	466,880	466,880	466,880	466,880

(c) The Estimated Total Hours include ***overtime and*** subcontracting hours but exclude holidays, sick leave, vacation days and other absences.

(d) The number of manhours expended per month may fluctuate in the pursuit of performance of the contract statement of work, provided that such fluctuation does not result in the utilization of the total manhours of effort prior to the expiration of the contract. The number of manhours for any labor category may be utilized by the contractor for any other labor category if necessary in performance of the contract.

(e) The contractor shall not be obligated to continue performance beyond the Estimated Total Hours, except that the Contracting Officer may require the contractor to continue performance in excess of the Estimated Total Hours until the total estimated cost has been expended. The government will not be obligated to pay fee on any hours expended in excess of the Estimated Total Hours. Any hours expended in excess of the Estimated Total Hours shall be excluded from all fee computations and adjustments. Nor will the Contracting Officer, pursuant to this paragraph (e), require the contractor to continue performance in excess of the total estimated cost if the Contracting Officer is requiring or has required the contractor to continue performance in excess of the Estimated Total Hours. The Contracting Officer may extend the period of performance in order to expend either the total estimated cost or the Estimated Total Hours.

(f) If at any time during the performance of this contract the contractor expends in excess of 85% of the available estimated manhours of direct labor, the contractor shall immediately notify the Contracting Officer in writing. Nothing herein shall be construed to alter or waive any of the rights or obligations of either party pursuant to the clause entitled "Limitation of Cost" and/or "Limitation of Funds."

LEVEL OF EFFORT

It is understood and agreed that the number of hours and the total dollar amount for each labor category specified under this contract are estimates only and shall not limit the use of hours or dollar amounts in any labor category which may be required. Accordingly, in the performance of any CPAF task, the contractor shall be allowed to adjust the quantity of labor hours provided for within labor categories specified in the contract provided that in so performing the contractor shall not in any event exceed the ceiling price restrictions of the contract, including modifications thereof.

IDENTIFICATION OF RATIOS (OCT 1992)

(a) If an offeror decides to include Uncompensated Overtime in their proposal, he shall complete the table which appears below. The purpose of this table is to identify the ratio derived by relating the proposed hours per week to 40 hours per week for each labor category. That ratio which is proposed for a particular labor category will apply for all personnel (including substitute and additional personnel) approved to work within a particular labor category for the duration of the contract period.

(b) Any offeror who proposes direct labor rates adjusted due to the effect of uncompensated overtime must complete the following table. An offeror who proposes uncompensated overtime and fails to complete the following table may be removed from consideration for award.

(c) An offeror proposing direct labor rates adjusted for uncompensated overtime shall furnish with their proposal a copy of the corporate policy addressing uncompensated effort. Additionally, the offeror must provide evidence of the DCAA/DCMAO approval of that policy.

TABLE TO BE COMPLETED BY OFFEROR

Labor Category	*Base Hourly Per Week	Hours Proposed Per Week	**Ratio	***Proposed Rate Adjusted for Uncompensated Overtime

*Base Hourly Rate - that is unadjusted for the effect of uncompensated overtime.

**Ratio - the rate derived from the proposed hours per week in relation to a 40 hour week (e.g., Project Manager 40 hours/50 hours = 80% ratio)

***Proposed Rate Adjusted for Uncompensated Overtime = Base Hourly Rate X Ratio (e.g., \$10.00 x 80% = \$8.00)

PAYMENT OF BASE FEE

The base fee for work performed under this contract is \$___ for the Base Period, \$___ for Option I, \$___ for Option II, \$___ for Option III and \$___ for Option IV. Payment of the base fee will be on a monthly basis based upon prorating the previously shown annual totals over twelve months, and is predicated on successful completion of all requirements of the contract. All payments shall be in accordance with the provisions of FAR 52.216-7, "Allowable Cost and Payment."

PAYMENT OF AWARD FEE

After following the procedures contained in the Section H clause entitled "Determination of Award Fee", the contract will be modified to authorize payment of the Award Fee and specify the amount of Award Fee to be paid. Upon receipt of the modification authorizing payment of the award fee, contractor may invoice and be paid the award fee.

Section C - Descriptions and Specifications

PERFORMANCE WORK STATEMENT

Section C – DESCRIPTIONS AND SPECIFICATIONS

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1.0 SCOPE

The O&M Contractor shall operate, maintain, and support the Relocatable Over-the-Horizon Radar (ROTHR) system in accordance with this performance work statement, 24 hours/day, 7 days/week, 365/366 days/year. The ROTHR system consist of, at a minimum, the Operations Control Center (OCC) system which includes OCC, manned and unmanned ADP and Communications Center; transmit and receive systems, subsystems, shelters; support facilities, facilities systems and subsystems; system trainer/test bed; air conditioning, mechanical, electrical, fire suppression systems and subsystems; test equipment; and new system configurations upon installation. This effort includes providing support for systems engineering; engineering change proposal analysis; failure analysis; configuration management; installation and/or testing of field change kits; logistics support including but not limited to spares replenishment and test and support equipment; training; repair/refurbishment services; reverse engineering, and supporting next generation Over-the-Horizon Radar (OTHR) test systems/prototypes and operational systems.

This requirement presents several challenges to the O&M Contractor including having to work with a mature system, dealing with parts obsolescence, sustainment, implementing actions to operate and maintain ROTHR more efficiently, and coordinating with the Original Equipment Manufacturer (OEM) Contractor for the system who owns the Level 3 documentation for the radar systems. Detailed technical characteristics, description, and requirements for the ROTHR system are defined in the latest revision of specification ELEX-R-570 REV B, Users Logistics Support Summary (ULSS), Level 1 and 2 documentation, and ROTHR Technical Manuals and COTS manuals located in the Master Technical Library (see PWS Paragraph 9.1).

Overarching Operating Constraints: The Contractor shall ensure that all radar sites are fully staffed during adverse weather conditions or other conditions affecting travel to or from the radar sites. In these situations the Contractor's on site workforce may be required to remain at the radar site for periods up to 36 hours duration until conditions

allow a change of personnel however, the typical duration is less than 24 hours. The only exception are extreme conditions that present a potential threat to the health and/or safety of personnel at the radar site in which case Forces Surveillance Support Center (FSSC) will make a determination to shut down radar operations until the condition is mitigated. Severe storms such as a hurricane may cause a radar site to shut down and send personnel home. The Contractor shall be knowledgeable of historical weather conditions for all geographical areas where the radar sites are located.

- Virginia sites - seasonal snow, ice, storms, flooding, and hurricanes can affect travel to/from these sites.

- Texas sites - seasonal storms and flooding can impact travel to/from these sites. Also, there is approximately a twelve-mile unimproved road leading to the ROTHr Receiver (Rx) site located at Freer, Texas. This road is constructed of Caliche (a calcium carbonate mineral) material and is typically rutted and uneven. Four wheel drive vehicles are typically used to travel this road especially during periods of rain and/or minor flooding. The road becomes impassable during periods of heavy flooding, typically lasting less than 24 hours.

- Puerto Rico Sites - seasonal storms, flooding, lightning, and hurricanes can affect travel to/from these sites. Adverse weather conditions or other interruptions can affect commercial air and marine carriers to/from the ROTHr Transmitter site at the Island of Vieques.

2.0 MISSION & BACKGROUND

The mission of Forces Surveillance Support Center (FSSC) is to provide tactically significant air and maritime track data to JIATF-S, resulting in multiple JIATF-S products that counter illicit trafficking posing a threat to National Security. The ROTHr system supports the National Drug Control strategy with detection and monitoring of the Source Zone through the Transit Zone 24 hours a day, 7 days a week. ROTHr is tactically controlled by the Joint Interagency Task Force South (JIATF-S) in Key West, FL.

ROTHR was developed in the mid-1980s during the Cold War to combat the Backfire bomber threat to the US Navy. Fleet Surveillance Support Command (FSSC) was established in 1987 to operate and maintain 13 systems worldwide to provide over-the-horizon surveillance for the carrier battle groups. As the Cold War was ending, a limited production buy of three systems occurred in 1989 with intentions to mothball the systems after acceptance testing. A prototype ROTHr system underwent Operational Evaluation (OPEVAL) in 1989 then deployed to Amchitka, Alaska from 1991 to 1993. The mission changed to detection and monitoring to support counterdrug operations in 1993. Except for military personnel funding, all navy operational funding ceased in 1994 and was replaced by DoD fenced counterdrug funding. ROTHr-VA was declared Full Operational Capability in June 1993. ROTHr-TX was declared Full Operational Capability in June 1995. ROTHr-PR was declared Full Operational Capability in June 2000. Fleet Surveillance Support Command transitioned to Forces Surveillance Support Center (FSSC) with civilian personnel when all military personnel were returned to the Fleet in September 2004.

ROTHR consists of the Operations Control Center (OCC) system, three land-based, bi-static, high frequency, Doppler radar systems consisting of Transmitter and Receiver sites, and support facilities. The three ROTHr systems are located in Virginia, Texas, and Puerto Rico. ROTHr Virginia Receiver site consists of the Operations Control Center (OCC) system in Bldg. 344, support facilities in Bldg. 310 and Bldg. 344, storage facility in Bldg. 363, and antenna maintenance facility in Bldg. 446 located at Naval Support Activity Hampton Roads, Northwest Annex (NSA HR NW Annex), Ballahack Road, Chesapeake, Virginia. The ROTHr Virginia Transmitter site, consists of a support building (NK-1), Government support building (NK-2), grounds maintenance building (NK-3), and storage building (NK-4), and is located in New Kent County, Virginia. ROTHr Texas Transmitter site consists of a support building (TX-1), grounds maintenance building (TX-2), and electronics maintenance building (TX-3), is located approximately one mile south of the intersection of routes US 281 and TX 141 approximately 20 miles west of Kingsville, Texas. The ROTHr Texas Transmitter site is expanding to include a Transmitter support building and antenna field associated with the Maritime Capability (MARCAP) program. The ROTHr Texas Receiver site consist of support building (TR-1) and a grounds maintenance building (TR-2), and is expanding to include a Receiver support building. The ROTHr Texas Receiver site is located approximately 13 miles on County Road 401 off route TX 44 near the intersection of routes TX 16 and TX 44 in Freer, Texas. ROTHr Puerto Rico Transmitter

site, consist of a support building (PX-1), grounds maintenance facility (PX-2), and equipment storage shed (PX-3), and is located on the southwest end of the Island of Vieques, Puerto Rico. The ROTHr Puerto Rico Receiver site consists of a support building (PR-1), and grounds maintenance facility (PR-2), and is located at Fort Allen in Juana Diaz, Puerto Rico approximately 16 miles from Ponce, Puerto Rico. The Government will provide physical security services to protect the radar at both Puerto Rico sites.

A Maritime Capability (MARCAP) initiative is currently in progress to enhance maritime radar capabilities for JIATF-S. As part of this effort, the ROTHr Texas Transmitter site has recently expanded to include an additional eight-element transmitter array and a new transmitter amplifier support building. Meanwhile, the ROTHr Texas Receiver site has deployed a new digital receiver subsystem, which will be integrated into the ROTHr system over the next few years.

The ROTHr Virginia Receiver site is scheduled to install and integrate the digital receiver system between 2026 and 2027. Additionally, plans are in place to expand the ROTHr Virginia Transmitter site to support MARCAP within the next five years. A new maritime signal processing suite is also being introduced to bolster MARCAP, with additional operators scheduled to be deployed as capabilities at both ROTHr Texas and Virginia come online.

In 2027, a new digital receiver subsystem is expected to be installed at the Puerto Rico Receiver site; however, there are currently no plans to expand the ROTHr Puerto Rico Transmitter site to support MARCAP. Planning is underway to replace the antenna towers, supporting array elements (such as dipoles and guywires), and foundations at the ROTHr Puerto Rico Transmitter site within the next three years.

3.0 ROTHr Operations

3.1 Operations Control Center (OCC)

Operate the Virginia, Texas, and Puerto Rico ROTHr systems 24 hours/day, 7 days/week, 365/366 days/year. Radar operations include system operations, detection and tracking, evaluation analysis, training, and supervision.

3.1.1 OCC Watch Stations

- a. The OCC includes the following function per shift:

Watch Supervisor (WS)

- b. The OCC includes the following functions per shift per system:

Senior Radar Operator (SRO)
Resource Management Operator (RMO)
Detection and Tracking Operator (DTO)

- c. Function descriptions:

- (1) Watch Supervisor – The Watch Supervisor is ultimately responsible for optimizing system performance to meet the user agencies surveillance requirements. The Watch Supervisor monitors the equipment status and effective performance of the ROTHr System. The Watch Supervisor is responsible for his/her assigned personnel's performance, training, and professionalism. The Watch Supervisor shall be capable of fulfilling the duties of any functional duties described in this section. The Watch Supervisor communicates with external agencies as it relates to the ROTHr system and the tactical situation.
- (2) Senior Radar Operator (SRO) – The Senior Radar Operator (SRO) is responsible to the Watch Supervisor for the performance of his/her assigned operators. The SRO is

responsible for, but not limited to, the following: Monitoring the creation, planning and activation of tasking; Monitoring the creation, planning, activation and assignment of aircraft and maritime surveillance Dwell Illumination Regions (DIRs); Monitoring system status, ensuring the accuracy and correct modeling of the Quasi Vertical Incidence (QVI) and Wideband Sweep Backscatter Ionogram (WSBI) sectors. The SRO is also responsible to the Watch Supervisor for his/her system status and parameters of Dwell Illumination Regions (DIRs) including but not limited to selection of the Coherent Integration Time (CIT), revisit rate, Waveform Repetition Frequency (WRF), Non-Recurrent Waveform (NRWF) and operating frequency. The SRO is responsible for the operations of the Global Command and Control System Joint (GCCS-J).

- (3) Resource Management Operator (RMO) - The Resource Management Operator (RMO) function allows the operator to assist with the addition/deletion/modification all the tasking and DIR parameters, which involves selection of operating frequency and adjustment of surveillance parameters to include, but not limited to Direction of Interest, Speed of Interest, waveform repetition frequency, bandwidth, revisit rate, CIT, and Non-Recurrent waveform (NRWF). Allows the operator the ability to assess and adjust the current propagation environment and current radar performance to choose the best available operating parameters over the Surveillance Area (SA). The (RMO) will update, validate and maintain a model, every 12 minutes, of current ionosphere propagation in all sectors to ensure precise performance requirements in tracking accuracy, coordinate conversion tables, predicted detection and optimum operating frequencies are generated from this model. Proper ionospheric model selection is critical to achieving accurate target ground positions and resolving multiple ionospheric propagation modes. Assists the Detection and Tracking Operator (DTO) during times when he/she is not performing the RMO functions.
- (4) Detection and Tracking Operator (DTO) – The Detection and Tracking Operator (DTO) function detects and tracks aircraft and maritime contacts in radar slant coordinates, implements a conversion to ground coordinates for verified tracks, and monitors tracking conditions. Allows the operator the ability to monitor and supplement the automatic features of the ROTHr tracker's target detection and tracking function and to manually validate and report all tracks meeting operational requirements and end users direction and speed of interest. The DTO assists with the parameter selection of assigned Dwell Illumination Regions (DIRs) to provide optimal tracking conditions including but not limited to selection of CIT, revisit rate, WRF, Non-Recurrent waveform and operating frequency.

3.1.2 Detection and Tracking

- a. Provide track data on real time "all source" counter drug confirmed tracks of interest for aircraft events at a rate of 98% for participation and 98% for continuous tracking, and surface events at a rate of 70%. "Participation" is defined as at a minimum two standard ROTHr position reports consisting of latitude, longitude, course, and speed that are correlated to the target of interest (TOI). "Continuous tracking" is defined as continuous (no gap in reporting > 10 minutes) standard ROTHr position reports (latitude, longitude, course, speed) that are correlated to the Target of Interest (TOI).
 - (1) The below listed events are not considered "Confirmed Tracks of Interest (CTOIs)" for purposes of computing participation and continuous tracking percentage, and, therefore are not charged against the contractor:
 - a) Post-event intelligence of successful drug trafficking.
 - b) Events that occurred entirely outside of the ROTHr coverage area.

- c) Events the ROTHr Watch Team (comprised of those positions defined in Section 3.1.1) was unaware of as the event was occurring (unless reasonable to believe they should have been aware).
 - d) Events the ROTHr Watch Team was unable to participate in because the Tasking Authority directed ROTHr surveillance elsewhere.
 - e) Events the ROTHr Watch Team was unable to participate in due to system and/or ionospheric limitation.
- (2) ROTHr tracking time methods for these events shall be validated but not limited to any of the following methods:
 - a) Commander Task Group 4.1 Situation Report (SITREP) – INTENTIONS
 - b) Director Joint Inter-Agency Task Force South (DIRJIATFSOUTH) Drug Activity Summary
 - c) Target of Interest (TOI) Event Packages
 - d) ROTHr Watch Supervisor Log
 - e) JIATF-S Log
 - f) Global Command and Control System – Joint (GCCS-J)
 - g) Playback analysis
- b. "Confirmed Tracks of Interest (CTOI)" are those specifically designated by the Director, Joint Interagency Task Force South (JIATF-South).
- c. "All source" tracking time is defined as the total time a CTOI was tracked by any Counter drug Detection and Monitoring or Law Enforcement Interdiction and Apprehension asset, including ROTHr. This includes but is not limited to Ships, Ground Based Radars (GBRs), Aerostats, Aircraft, Visual Sightings, FAA Radars, and Interceptors.
- d. Optimally manage all (between 10 to 17 nominal) required Dwell Illumination Regions (DIRs) per system to meet operational tasking requirements assigned by tasking authority and/or FSSC Operations Officer. The average time from system verification of track detection to reporting tracks that meet the End User's direction and speed of interest should be less than 13.00 minutes per radar. Ensure quality tracks are reported in a timely manner by manually evaluating and reporting all tracks meeting operational requirements, End User's direction, and speed of interest criteria. Model the ionosphere and adjust frequencies to ensure optimal radar performance and coverage.
- e. Perform post analysis of ALL confirmed targets of interest (CTOIs) and submit findings and an electronic copy of the CTOI Suspect Event Tracking Percentage Page (CDRL Q010) and Data Collections, Playbacks / Reviews (CDRL O004) to FSSC Operations Analyst due on the 15th day of the following month.

3.1.3 Communication, Coordination, and Support

- a. Provide continuous communication, coordination, and support to JIATF-South for all aspects of ROTHr wide area surveillance air and maritime track information.
- b. Provide tracking support for special operational requirements such as search and rescue missions, satellite launches, and other surveillance tasks.
- c. Maintain a master ROTHr electronic Watch Log containing entries from the Operations Control Center (OCC) and all sites providing detailed information to adequately investigate and evaluate activities pertaining to the site or system. The O&M Contractor shall furnish connectivity to the master ROTHr electronic Watch Log for all radar sites for access by both Contractor and FSSC Quality Assurance (QA) personnel. Provide FSSC QA personnel in Bldg. 310 with real time

access to the electronic Watch Log with the same view and tabs as the Watch Supervisor. It is the Contractor's prerogative to determine the type of connectivity to meet this requirement. The master ROTHr electronic Watch Log shall include at a minimum:

- (1) System configuration at watch turnover and configuration changes made during the watch;
- (2) System outage cause and duration;
- (3) Significant changes in tactics;
- (4) Cased events with or without seizures; events resulting in seizures;
- (5) Regional intelligence information that affects ROTHr;
- (6) Maintenance functions or failures that may take equipment down;
- (7) Unscheduled outages and system or software tests, reboots, recycles, and resets
- (8) Equipment restoral actions and times.
- (9) Issues that may require further investigation (track "maintains", unknown assumed suspects (UAS), system degradations, changes to operational configuration, severe weather or ionospheric impact upon radar performance that affect JIATF-South tasking);
- (10) Task changes, special operations or any operational changes to the radar directed by JIATF-South or by the Operations Officer;
- (11) Changed conditions on the OCC Watch Floor, fire drills, medical emergencies, and any other operational, system and non-system issues.

All sites shall have connectivity to the electronic master Watch Log and each site shall enter their own information including recording tape changes. All events that require a SITREP shall be entered into the master Watch Log. When any site loses connectivity to the electronic master Watch Log, the site personnel shall call-in their information to the OCC for entering into the master Watch Log. The (OCC) shall annotate the loss of connectivity to the master Watch Log. Provide FSSC QA with real time access to the electronic master Watch Log with the same view and tabs as the Watch Supervisor and provide FSSC QA and Department Heads an electronic copy of the master Watch Log no later than 6 hours after new day Zulu.

- d. Provide a weekly Operations and Maintenance Summary Report covering all ROTHr activity from the previous seven days.
 - (1) The Operations Summary shall include significant changes in tactics; cased events with or without seizures; events resulting in seizures; regional intelligence information that affects ROTHr; issues that may require further investigation (maintains, unknown assumed suspects (UAS), system degradations, severe weather or ionospheric impact upon radar performance that affect JIATF-South tasking); task changes, special operations or any operational changes to the radar directed by JIATF-South or by the Operations Officer; changed conditions on the OCC Watch Floor, fire drills, medical emergencies; and any other operational/system issues.
 - (2) The Maintenance Summary shall include all ROTHr outages, regardless of duration or cause (information will include date, duration, site, description, root cause, corrective actions taken); a two-week and one month outlook of the ROTHr maintenance schedule and upcoming maintenance events (information will include date, site, project/task name. Highlight any changes or proposed changes from previous brief); updated status and estimated completion dates of ROTHr Project / Procurement Plan projects and expenditures previously approved by the FSSC Director (information will include project/task name, description, current status, and estimated completion date). ROTHr configuration status shall be included in the Maintenance Summary only when there is a change in the ROTHr configuration. When reporting a change in ROTHr configuration, highlight the changes and include the following: current operating system build and software configuration of all components of the RSM, TSM, and OCC for each ROTHr site; the most current OCC configuration associated with each system, including Fusion; and any hardware configuration

changes affecting system operations. Provide a daily oral briefing to the FSSC Operations Officer covering all ROTHr activity including a review of the Watch Log entries.

- e. Provide a Monthly Performance Report including cumulative surface performance summary for the calendar year, graphic display of reported surface tracks for the calendar year, and air operations summary of reported tracks, suspect tracks, initial detects, and total kilograms seized. Due monthly to the FSSC Operations Officer by the fifth working day of the month.
- f. Monitor C2 communications circuits, (both Defense Information Systems Agency (DISA) and Commercial) between ROTHr OCC and external customers (e.g. JIATF-South) for the receipt of tasking, transmission of ROTHr surveillance contacts, status report products, and the exchange of narrative Operational Notes (OPNOTES) between the FSSC Operations Officer and his/her counterparts at the external tasking agencies. The Contractor shall possess the knowledge and operate the Global Command and Control System Joint (GCCS-J) system. Monitor ROTHr C2 processor functions and provide technical assistance to the FSSC Cyber Security during the activation and/or recovery of DISA communications circuits. The technical assistance does include performing troubleshooting and corrective maintenance actions on the equipment in the Communications Center. Communication circuits' information and support requirements are provided in Section J - Attachment 1 - ROTHr/FSSC Wide Area Network (WAN) Communication Support.
- g. Immediately notify the FSSC Operations Officer of any system degradations or outages greater than 60 minutes or any deviations from standard operational tasking directed by tasking authority. The FSSC Operations Officer will be available during normal working hours, Monday through Friday. The FSSC Operations Officer will be 'on-call' during other hours.
- h. Provide recommendations to FSSC Operations Officer to improve radar operations and performance.
- i. The Contractor shall provide radar operations, analysis indoctrination and familiarization training including all areas of ROTHr to Government personnel on an 'as needed' or 'as requested' basis. Historically, three to four trainings per year have been required. The total estimated training time needed for Government personnel is estimated to be no more than 800 man-hours per year.

3.1.4 Deliverables:

- a. Operations and Maintenance Summary Report (Ref PWS 3.1.3.d). CDRL O001
- b. Monthly Performance Report (Ref PWS 3.1.3.e). CDRL O002
- c. Electronic Master Watch Log (Ref PWS 3.1.3.c). CDRL O003
- d. Data Collection, Playback / Reviews (Ref PWS 6.5). CDRL O004
- e. Training Report (Ref PWS 10.4). CDRL Q009
- f. CTOI Event Page (Ref PWS 3.1.2). CDRL Q010

3.1.5 Operating Constraints:

- a. Seasonal flooding causing impassable travel may be experienced on the roads leading to the Freer Texas site, both Virginia sites, and both Puerto Rico sites.
- b. Adverse weather conditions and/or interruptions to airline/marine carriers may prevent travel to or from the radar site at the Island of Vieques, Puerto Rico.
- c. Extreme Health emergencies declared in localities near ROTHr sites.

4.0 ROTHr Maintenance and Repair

4.1 Radar Systems Maintenance & Repair

4.1.1 Maintain ROTHr System to Meet or Exceed Performance Standards

The Contractor shall maintain the AN/TPS-71 Relocatable Over-the-Horizon RADAR (ROTHR) and associated systems to meet or exceed the performance standards specified in Contract Specifications ELEX-R-570, Rev B. The Contractor shall provide Organizational, Intermediate and Depot level maintenance on all assigned ROTHR and associated systems equipment for optimal radar performance and as otherwise necessary to maintain, repair, and upgrade the radar systems. The Contractor shall maintain the ROTHR system, to include mission computer and peripheral equipment needed to support radar operations, in a serviceable, safe and properly configured manner. The Contractor shall maintain, calibrate and repair the ROTHR system and support systems in a continuous state of readiness, within specified performance standards, to meet ROTHR mission requirements. The Contractor shall investigate, identify and resolve problems and issues concerning the operations and maintenance of the ROTHR system. The Contractor shall respond to Government requests for operational and/or technical within five business days.

ROTHR system includes, at a minimum, the Operations Control Center (OCC) system; Backscatter RADAR (BSR) transmitter and receiver subsystems; Backscatter Sounder (BSS) subsystems; shelters; system trainer/test bed; air conditioning, mechanical, electrical, fire suppression systems and subsystems; test equipment; and new system configurations upon installation.

4.1.2 Maintenance of ROTHR RADAR Transmit Subsystems.

The Contractor shall perform Organizational, Intermediate and Depot level maintenance, repairs and upgrades on all BSR Transmit subsystem elements for optimal radar performance. Major elements of the BSR Transmit Sub-system include: 16 High Power Amplifier (HPA) Transmitters and associated Hi/Lo Coaxial RF switches; 16 High Band antenna elements, 16 Low Band antenna elements, two Sounder antenna elements and all associated RF coaxial cabling; one Quasi-Vertical Incidence (QVI) Sounder antenna; 10 HPA shelters; one Transmit Sounder shelter; and one Transmit Site Monitor (TSM) shelter complex. At a minimum:

- a. The Contractor shall maintain and calibrate the BSR Transmitter HPAs in accordance with (IAW) ROTHR Preventive Maintenance standards and Standard Operating Procedures (SOPs) to provide total optimal power of 200KW.
- b. The Contractor shall monitor the Digital Waveform Generator (DWG) program daily to ensure that the Transmitter subsystem remains within calibration standards. Calibration standards are 90% of RADAR transmission side lobe levels shall measure below -20dB. The Contractor shall monitor and report in the Daily Watch Log any equipment failures, maintenance actions and all equipment status that result in transmitter subsystem degradation or adversely affect the mission.
- c. The Contractor shall maintain and repair all High and Low Band antenna elements in such a manner as to meet or exceed minimum voltage standing wave ratio (VSWR) requirements. The Contractor will perform a Transmit array Mutual Coupling test for each ROTHR transmit subsystem no less than semi-annually IAW ROTHR Subsystem Acceptance Tests and SOPs. The antenna array Mutual Coupling test demonstrates that the RADAR and sounder antenna arrays meet minimum voltage standing wave ratio (VSWR) requirements across the operating frequency of 5-28 Mhz. The minimum requirements for both the high and low band arrays composite VSWR, with all elements excited are: 85% probability less than 1.7:1 ratio and 96% probability less than 2.0:1 ratio. Each individual element shall meet the requirements identified in the mutual coupling historical data attachment.
- d. For each ROTHR Transmit site, the Contractor shall perform, annual Depot level inspection and maintenance on all components of the High Band, Low Band, Sounder and QVI Antenna elements to include supporting guide wires, foundations, and mounting hardware. The Contractor shall perform antenna tower inspections The Contractor shall provide a written report of inspection results and recommended corrective actions to the Government within 45 calendar days of

completion of each site inspection. In support of the Navy CNO-directed Facilities and Assets Requiring Specialized Inspection program, the Contractor shall coordinate, and assist as required, the COMNAVFACENGSYSCOM Tower Specialized Infrastructure Inspection Program (SIIP) inspection of the ROTHr Antenna Towers.

4.1.3 Maintenance of the Backscatter RADAR (BSR) Receive Subsystems

The Contractor shall perform Organizational, Intermediate and Depot level maintenance, repairs and upgrades on all BSR Receive sub-system elements for optimal radar performance. Major elements of the BSR Receiver Sub-system include: 372 receivers (250 in Puerto Rico); 372 Twin-Monopole End-Fire Receive Pairs (TWERP) antenna assemblies (250 in Puerto Rico) and all associated RF coaxial cabling; one Quasi-Vertical Incidence (QVI) Sounder antenna; 12 Receive shelters (6 in Puerto Rico); one Receive Sounder shelter; and one Receive Site Monitor (RSM) shelter complex. At a minimum:

- a. The Contractor shall perform a Sub-Clutter Visibility (SCV) test for each ROTHr Receive subsystem semi-annually IAW ROTHr Subsystem Acceptance Tests and SOPs. Achievable system SCV, as limited by discrete power line and spurious signals, shall exceed 70 dB. The harmonics average for each wave form code (WFC) for individual sites will meet the requirements identified in the SCV historical data attachment.
- b. The Contractor shall maintain and repair all Receive Antenna array elements in such a manner as to meet or exceed minimum voltage standing wave ratio (VSWR) requirements. The Contractor will perform a Receive array Mutual Coupling test for each ROTHr receive subsystem no less than annually IAW ROTHr Subsystem Acceptance Tests and Standard Operating Procedures. The minimum requirement for the radar receive antenna side lobe level is 90% of the side lobes shall be greater than or equal to 30db down from beam maximum.
- c. For each ROTHr Receive site, the Contractor shall perform, annual Depot level inspection and maintenance on all components of the Receive Antenna Array and QVI Antenna elements to include foundations and mounting hardware. The Contractor shall provide a written report of inspection results and recommended any corrective actions to the Government within 45 calendar days of completion of each site inspection.

4.1.4 Maintenance of Backscatter Sounder (BSS) Subsystems

The Contractor shall perform a Sounder array Mutual Coupling test for each ROTHr sounder subsystem semi-annually IAW ROTHr Subsystem Acceptance Tests and SOPs. The sounder antenna array mutual coupling test demonstrates that the sounder antenna arrays meet minimum voltage standing wave ratio (VSWR) requirements across the operating frequency of 5-28 Mhz. The minimum requirements for the Sounder array composite VSWR, with both elements excited are: 90% probability less than 1.7:1 and 96% probability less than 2.0:1. Each individual sounder element shall meet the requirements identified in the mutual coupling historical data attachment.

4.1.5 Repair of Off-Equipment

The Contractor shall be responsible for all Organizational, Intermediate and Depot level repairs of equipment/assemblies in accordance with Source, Maintainability and Recoverability (SM&R) coding. Any SM&R codes that dictate Depot repair is 'required' can be interpreted as 'recommended'. The Contractor shall determine the most economical means to accomplish repairs that may include in-house workforce, subcontracting, and/or use of Government/Contractor/Vendor/Original Equipment Manufacturer (OEM) repair facilities. The Contractor shall directly reimburse any Government Depot repair facility for services rendered. The Contractor shall perform repairs on equipment/assemblies using Government approved Intermediate Maintenance Instructions (IMIs) to the maximum extent possible. Any repair procedures performed and/or using equipment not IAW IMIs shall be documented in detail (i.e. step-by-step procedures) and delivered to FSSC via the Investigation Request (IR) process.

4.1.6 Testing and Data Collection

The Contractor shall conduct formal and informal testing, data collection, and site work; collect and review system status data to determine re-tuning and repair requirements; develop and implement new/improved testing processes; train site technicians on performance of advanced system testing processes; collect system evaluation data; determine proper installation and testing of Engineering Change Plans (ECPs); provide on-site technical assistance to (1) augment the on-site technical staff to collect system evaluation data and (2) augment on-site technical staff using system operating and maintenance procedures (SOPs) to troubleshoot, align, reconfigure equipment and modify/repair equipment, as necessary.

- a. Changes/Upgrades/Enhancements. The ROTHRO O&M Contractor shall coordinate (via the Contracting Officer's Representative (COR)) with other ROTHRO support contractors in performing the seamless transition of any and all system and facility changes, upgrades and enhancements. These upgrades/enhancements can vary in size and complexities and will occur at all ROTHRO sites.
- b. Field Change Kits (FCK). Perform installation, testing, and provide test results and cost estimates; provide system access and facilitate and support FCK installation and test efforts being performed by others; and coordinate and liaison with FSSC Life Cycle Management (LCM) Department and others.
- c. Alteration Equivalent to Repair (AER). Perform installation, testing, and provide test results and cost estimates; provide system access and facilitate and support AER installation and test efforts being performed by others or in-house; and coordinate and liaison with FSSC Life Cycle Management Department and FSSC Maintenance Management Department.

4.1.7 Electromagnetic Interference

- a. The Contractor shall maintain electrical and electronics equipment to the electromagnetic interference (EMI) requirements specified in MIL-STD-461G Requirements for the Control of Electromagnetic Interference Characteristics of Subsystems and Equipment, MIL-STD-188-124 Rev B Notice 4 Grounding, Bonding and Shielding and NFPA-780 -2020 Standard for the installation of lightning Protection Systems Current Edition 2020, or latest edition.
- b. The Contractor shall generate EAM/MMIS Work Orders on all corrective actions taken to mitigate ROTHRO component noise sources detected during routine operations and maintenance. When EMI surveys detect and characterize ROTHRO component noise sources, the Contractor will troubleshoot and report to FSSC Maintenance Management Department within 30 days all corrective actions taken to mitigate the reported noise sources.
- c. The Contractor shall immediately notify the OCC Watch Supervisor of EMI affecting ROTHRO operations. The Contractor shall determine if EMI interference is external or internal. The Contractor shall troubleshoot and mitigate / resolve sources of internal interference. The Contractor shall provide signal characteristics for external interference, if available, to the Electromagnetic Interference Working Group (EMIWG). The Contractor shall notify the OCC when the interference changes or ceases within thirty (30) minutes of a change or cessation. The Contractor shall record the start/stop time, frequency characteristics, and any subsequent changes and anomalies in the Daily Watch Log.

4.2 Radiation Hazard Measurements

The Contractor shall control personnel radio frequency radiation exposures to comply with the permissible exposure limits (PELs) set by the American National Standards Institute/Institute of Electrical and

Electronics Engineers (ANSI/IEEE). The Contractor shall practice maintenance safety procedures and conduct radiation hazard measurements in accordance with Occupational Safety and Health (OSH) requirements.

4.3 Collect and Report Maintenance Data

4.3.1 Report Equipment Status

Generate a Work Order for all maintenance & repair efforts in Enterprise Asset Management system (EAM/MMIS) within five (5) business days of identifying the requirements and report all completed work in EAM/MMIS. The Work Order shall contain all the data found within a Standard Failure Reporting, Analysis and Corrective Action System (FRACAS) report; see System Reliability Toolkit, Reliability Information Analysis Center, International Standard book Number-10 (ISBN-10) 1-933904-00-3 and ISBN-13 978-1-933904-00-9. Critical repairs shall be completed immediately and routine repairs shall be completed within 15 calendar days unless awaiting parts (AWP). All substantiating documentation (Inspection sheets, check sheets, maintenance sheets, data sheets, estimates, etc.) resulting from a Work Order in EAM/MMIS, shall be uploaded and attached to the work order in EAM/MMIS prior to being closed.

Perform failure data compilation and analysis of all failures or malfunctions of each ROTH system. Enter all data, to include various system issues, problems, failures including critical failures exceeding 15 minutes, analysis, O&M emergent field problems, and/or status including hardware, parts, equipment, software, repairs, depot/vendor repairs, etc., in the EAM/MMIS within five (5) working days from identification of each failure and subsequent action to correct the failure.

4.3.2 Corrective Action/Maintenance Data Collection

- a. Contractor shall perform weekly systems analysis functions. The Contractor shall review site \ generated reports and Watch Logs, and identify problem areas. The Contractor shall analyze data in the event of an anomalous situation, determine the probable cause and recommend possible corrective action.
- b. The Contractor shall document analyses conducted in the Corrective Action/Maintenance Data Report. The Corrective Action Report shall include all systems analysis conducted between Monday and Sunday of the previous week, including identified problem areas and occurrences, probable cause and recommend possible corrective action, and any action taken or planned.
- c. The Contractor shall provide a written technical report to FSSC Maintenance Management Department (N4) no later than (4) business days after the FSSC Director's Weekly Brief and upload a copy of the report to EAM/MMIS and archive supporting data.
- d. The Contractor shall analyze occurrences of system outages or system operational degradation and provide a complete analysis of each event, to include (but not limited to) the following:
 1. Unscheduled outages
 2. Indications of radar sub-system degradation
 3. Uncommon computer equipment halts or hangs
 4. System or Software tests, reboots, recycles, and reset
 5. EMI
 6. Other abnormal data, performance, and occurrences

4.3.3 Reliability, Maintainability and Availability (RM&A)

The Contractor shall track and report Reliability and Maintainability, as defined for each ROTH system and major subassembly listed in Section J - Attachment 16. The Contractor shall maintain, track and report Availability of each ROTH System. The Contractor shall calculate all times to within .01 hours.

a. Reliability

- (1) The Contractor shall track and report for each system and major subassembly the monthly and yearly the Mean Time Between Failures (MTBF) and Mean Time Between Critical Failure (MTBCF). The Contractor shall calculate MTBF as follows:

Monthly Total Time (TOT) = Total days in month times 24 hours.

Annual Total Time (ATOT) = Total days in the year times 24 hours

Possible Operating Time (POT) = TOT – Losses

Losses are defined in PWS Paragraph 4.3.3.c.3. below.

MTBF = POT/total number of all failures

MTBCF = POT/total number of critical outages/failures

b. Maintainability

- (1) The Contractor shall track and report for each system the monthly and annual Mean Time To Restore Failures (MTTRF). MTTRF shall be calculated as follows:

MTTRF = Total failure time (all)/total number of (all) failures.

c. Availability

- (1) The Contractor shall track and report for each system the monthly Operational Availability (A_o). The A_o shall be equal to or greater than 97% for each system. The Contractor shall calculate the A_o as follows:

- Total Time (TOT) = Total days in month times 24 hours
- Possible Operating Time (POT) = TOT – Losses (Losses are defined in Paragraph 4.3.3.c.3)
- $A_o = (POT) - \text{losses defined in paragraph 4.3.3.c.3} / (POT)$

- (2) The Contractor shall manage availability of each system to maximize total end-user availability (E_o) and shall notify the FSSC Operations Officer for resolution in the event that E_o for any system cannot be managed to achieve 95%. The Contractor shall track and report E_o for each system as calculated below:

$E_o = (TOT) - \text{Sum of ALL down times} / (TOT)$

- (3) The ROTH System is considered NOT available/not operational if any of the following conditions occur:
- a) Two transmitter shelters down; 10% of receivers faulted as measured by ROTH system internal and external means.
 - b) Tasking and reporting capability outages are greater than two (2) minutes. If automatic reporting capability is lost, the Contractor shall demonstrate the reporting of all reportable tracks through other circuits or voice transmission and record the activity in a

log to add to the total count of tracks for the day. The start and stop times shall be entered into the OCC master Watch Log.

c) Loss of Quasi-Vertical Incidence (QVI) grayscale, QVI peak, Wideband Sweep Backscatter Ionogram (WSBI) correlation and WSBI grayscale data, or the ability to display those data in the OCC for more than thirty-six (36) minutes. The Contractor shall demonstrate detection capability without current QVI or WSBI data, based upon historical models and various frequency selection feedback techniques not to exceed 4 hours during stable atmospheric conditions. Loss of Spectrum Monitor for more than twelve (12) minutes.

d) Loss of radar peak data or the ability to display radar peak data in the OCC from all DIRs for more than 5.99 minutes. For purposes of clarification, the test DIR does not meet this requirement.

e) Radar peak data not maintained for more than 1.99 minutes. For purposes of clarification the test DIR does not meet this requirement. Loss of External ROTHr System lines, equipment and cabling that are the Contractor's maintenance responsibility. This includes the ROTHr Ultra High Frequency Satellite Communication (UHF SATCOM) antenna with associated cabling.

f) Downtime taken in excess of the pre-approved and scheduled down time.

(4) System availability losses for each site do not include:

a) Time lost as a result of failed IWNNet/JIATF-S, CN401, ABD Net, SecureVoice/SVOIP, Secret Internet Protocol Router Network (SIPRNET) and DISA/DITCO communication circuits for the reason of:

1. DISA/DITCO MPLS-IP and T-1 circuits unserviceable between Naval Support Activity Hampton Roads, Northwest Annex (NSA HR NW Annex) and ROTHr Transmit/Receive remote locations.
2. Faults caused by electrical power fluctuations.
3. Power/line/equipment problems external to the Communications Center, except for external ROTHr system lines, equipment, cabling and ROTHr Receive site emergency power generators that are the Contractor's maintenance responsibility.
4. DISA's Authorized Service Interruptions (ASIs) alerts on the CONUS portion of the DISA Global Information Grid.

b) Time lost attributed to Government Induced Procedural Error (GIPE) with Government approval.

c) Time lost as a result of excessive transit time to the spares location, greater than ten (10) minutes, not caused by the Contractor with Government approval.

d) Time lost as a result of an act of God, of the public enemy, fire, floods, epidemics, quarantine restrictions, strikes, freight embargoes and unusually severe weather with Government approval.

e) Time lost resulting from the Government not providing AC power, as defined within ELEX R-570, to the ROTHr system except for ROTHr emergency power generators (EPGs) that are the Contractor's maintenance responsibility.

f) Time allocated to perform Preventive Maintenance (PM) procedures documented in the approved PM schedules.

g) All other losses not defined.

- (5) Operational Day: An Operational Day is defined as 0000z to 2400z.
- (6) Operational Week: An Operational Week is defined as from Monday 0000z to Sunday 2400z.
- (7) Critical Failure: A Critical Failure is any outage that renders the system completely inoperable, not to include planned system outages.
- (8) Combined End-User Availability (A_e) shall be calculated for VA and SW as follows:

$A_e = (TOT) - (\text{Sum of all simultaneous VA (Virginia System) and SW (Texas System) down times from paragraphs 4.3.3.c.3, 4/TOT.}$

d. The Contractor shall report monthly for each system, the Reliability (MTBCF) (MTBF), Maintainability (MTTRF), Availability (A_o) and End-User Availability (E_o). The Contractor shall report monthly the A_e for Texas and Virginia systems. The Contractor will calculate and report both a monthly and rolling RM&A using data from the reported month and from the previous 12-months. As a minimum, the report shall contain:

- (1) The cause of all failures and the associated downtime and an analysis of the cause associated with it.
- (2) Meant Time Between Critical Failures (MTBCF)
- (3) Mean Time Between Failures (MTBF)
- (4) Mean Time To Restore Failures (MTTRF)
- (5) A_o (Defined in PWS Paragraph 4.3.3(c)1)
- (6) E_o (Defined in PWS Paragraph 4.3.3(c)2)
- (7) A_e (Defined in PWS Paragraph 4.3.3(c)8)
- (8) Associated Trouble Failure Report (TFR)/Software Operational Discrepancy Report (SODR) numbers

4.4 Maintenance Management

4.4.1 Preventive and Corrective Maintenance Program. Implement a Preventive Maintenance and Corrective Maintenance Program using OPNAVINST 4790 (series), Intermediate Maintenance Instructions (IMIs), User's Logistics Support Summary (ULSS), and current technical manuals as procedural guidelines.

- a. The Contractor shall maintain a monthly ROTHr Preventive Maintenance Recorded Accomplishment Rate (RAR) of 95% for each ROTHr site. RAR shall be calculated by dividing the number of fully accomplished maintenance requirements by the number of maintenance requirements scheduled for the month in which the RAR is calculated. Contractor will report RAR in the Preventive Maintenance Completion Report (CDRL M002)
- b. Separate Preventative Maintenance Schedule (PMS) schedules shall be generated for ROTHr Technical Work Centers and ROTHr Facilities and Grounds Work Centers. PMS schedules will be updated, generated and posted weekly at each radar site.

- (1) Provide a Preventative Maintenance Schedule Report listing all Preventative Maintenance work scheduled for the next month. At a minimum the report shall identify each PM task, radar site, Work Center, and scheduled completion date. This report shall be delivered to FSSC Maintenance Management Department electronically in Contractor's format by the 5th of each month.
 - (2) Provide a Preventive Maintenance Completion Report containing all Preventative Maintenance work completed the previous month. At a minimum the report shall identify each task, radar site, Work Center, scheduled completion date, actual completion date, technician performing the work, and provide a justification for any PMs not completed within the scheduled periodicity as defined in OPNAVINST 4790 (series). This report shall be delivered electronically in Contractor's format by the 5th of each month.
 - (3) Contractor Supervisors shall perform and report monthly spot checks of 10% of scheduled maintenance actions per work center. Spot checks will validate that technicians are performing and completing maintenance IAW approved Maintenance Requirement Cards (MRCs), SOPs and any Contractor-generated procedures. Reports will include reason for any failures and proposed corrective actions. Spot check reports will be included in the Preventive Maintenance Completion Report (CDRL M002).
- c. Any system downtime required for maintenance & repair shall be coordinated with the FSSC Maintenance Management Department Head and other FSSC support contractors, as necessary, and approved by the FSSC Operations Officer. The Contractor shall accommodate and facilitate related downtime needs as part of routine O&M activities as approved by the FSSC Operations Officer.
 - d. Submit a Planned Maintenance System Feedback Report (PMSFBR) to the O&M Contracting Officer Representative (COR) documenting or requesting changes to any PMS procedures or documentation. If a PMSFBR requires an item to be deleted from the Allowance Parts List (APL), the Contractor shall provide disposition/disposal instructions and properly dispose of all items identified in the PMSFBR. Disposition/disposal actions shall be approved by the FSSC Property Administrator. Submit as needed.
 - e. Submit an Investigation Request (IR) to provide test results detailing a change/upgrade evaluation, propose suggestions for improvements or make recommendations for upgrades, modifications, or alterations of hardware/software to enhance system performance, improve system resolution, and/or identify areas of future production model improvement. Submit as needed.
 - f. The Contractor's workforce performing radar systems maintenance and repair shall also coordinate (via the COR) with other FSSC support contractors, to ensure a seamless transition of any and all system changes, upgrades, enhancements, etc. This effort includes installation of routine repair or upgrade kits, conducting system equipment evaluation, analysis, testing, documentation of changes, logistic support requirements, and property transfer etc.

4.4.2 Corrosion Prevention and Control (CPC)

Implement an effective Corrosion Prevention and Control Plan and procedures to prevent and control corrosion on the ROTH system and its associated hardware and equipment IAW current DoD instructions and guidelines. Provide a Corrosion Prevention and Control Plan detailing the Contractor's procedures for maintaining the operational capability of the ROTH Systems and its associated hardware and equipment. Submit the plan within 45 days after contract start date and within 30 days following any revisions thereto. CPC planning is required in DoD Directive (DODD) 5000.01, DoD Instruction (DODI) 5000.02, DODI 5000.67. CDRL Q002.

4.5 Electronics Systems Maintenance and Calibration

4.5.1 Test, Measurement and Diagnostic Equipment

The Contractor shall repair system and support test equipment and calibrate system and support test equipment (as required) to maintain current calibration traceable to the National Institute of Standards and Technology (NIST). Identify emerging test equipment requirements and obsolescence issues and notify the FSSC Test Equipment Manager in the FSSC Lifecycle Management Department within 5 business days of discovery.

4.6.1 Deliverables:

- a. Planned Maintenance System Feedback Report (PMSFBR) (Ref PWS 4.4.1.d). CDRL L001.
- b. Investigation Request (IR) (Ref PWS 4.4.1.e). CDRL L002.
- c. Preventative Maintenance Schedule Report (Ref PWS 4.4.1.b.1). CDRL M001.
- d. Preventive Maintenance Completion Report (Ref PWS 4.4.1.b.2). CDRL M002.
- e. Reliability, Maintainability & Availability (RM&A) Report (Ref PWS 4.3.3). CDRL M003.
- f. Corrective Action/Maintenance Data Collection Report (Ref PWS 4.3.2). CDRL M004.
- g. Corrosion Prevention and Control Plan (Ref PWS 4.4.2). CDRL Q002.

5.0 Installation Support

5.1 Facilities Maintenance & Repair

5.1.1 Facilities Maintenance & Repair for ROTH Virginia Transmit Site (VA Tx), New Kent, VA; ROTH Virginia Receive Site, (VA Rx), Chesapeake VA; ROTH Texas Transmit Site (TX Tx), Premont, TX; ROTH Texas Receive Site (TX Rx), Freer, TX; ROTH Puerto Rico Transmit Site (PR Tx), Island of Vieques, PR; ROTH Puerto Rico Receive Site (PR Rx), Juana Diaz, PR.

- a. The Contractor shall operate, maintain and repair all facilities (including Resource Protection Shacks in Puerto Rico), grounds, and related systems and support equipment at the ROTH sites as specified herein. Work includes preventive maintenance, corrective maintenance and repair/replacement, grounds maintenance, janitorial services, pest and weed control, and emergency repairs. Facilities drawings for all sites are maintained on CD-ROM in the Technical Library (see PWS Paragraph 9.1).

- (1) Generate a Work Order for all maintenance & repair effort in EAM/MMIS within five (5) business days of identifying the requirement and report all completed work in EAM/MMIS. The Contractor shall complete a detail report in the comments section in the maintenance Work Order, to include, who, what, how and why or an attachment of the steps to complete the maintenance action. Maintain detailed records in the EAM/MMIS to include:

- a) an inventory of equipment, material, components associated with the facilities systems
- b) a maintenance plan for all facilities systems
- c) historical data related to all systems repair and maintenance efforts
- d) work control program that has specific numerical identifiers for each facilities item
- e) all substantiating documentation (Inspection sheets, check sheets, maintenance sheets,

data sheets, estimates, etc.) resulting from a Work Order in EAM/MMIS, shall be uploaded and attached to the Work Order in EAM/MMIS prior to being closed.

- (2) Maintain current facility records including operating manuals for equipment including spare parts requirements and other data required for operation, evaluation, and analysis; vendor's literature describing the equipment and maintenance procedures; warranty/guarantee records for all equipment and materials; HVAC equipment one line diagrams; and electrical distribution one line diagrams.
 - (3) All work shall be in accordance with manufacturer's O&M manuals and warranties, Naval Facilities Engineering Command (NAVFAC) facilities publications, DOD facilities publications, and sound engineering/maintenance practices.
- b. Scope of work includes providing maintenance and repair services for the following:
1. Interior Voltage Power (routine maintenance will mainly consist of work for less than 600 volts however, some work over 600 volts will be required)
 2. Electrical Distribution System
 3. Uninterruptible Power Supply (UPS) Systems
 4. Cell Watch Battery Monitor System
 5. Electrical Grounds Systems (including perimeter fence grounding)
 6. Electrical Surge Arresters (ESA)
 7. Potable Water Supply Systems (exception VA Rx)
 8. All building Structures (exception VA Rx)
 9. Sanitary Sewer System (exception VA Rx)
 10. Lightning Protection System
 11. Waste Disposal System (exception VA Rx)
 12. Special Purpose Vehicles and Grounds Maintenance Equipment
 13. Weather Monitoring Systems
 14. Emergency Electrical Power Generators
 15. Fence Lines (including vinyl, chain link, wire mesh, wooden, stockade, snow fencing, cabling, gates, electric gate opener mechanisms)
 16. Concrete Drainage Ditches (exception VA Rx)
 17. Power Filters and Conditioning System
 18. Building HVAC Systems (exception VA Rx)
 19. Building exhaust fans (exception VA Rx)
- c. It is expected that the majority of all Facility maintenance, repairs and/or replacements can be completed within 32 labor hours per occurrence or event. In situations where the Contractor anticipates a task may exceed 32 labor hours to complete, before work commences the Contractor shall immediately provide the COR an estimated cost (including labor hours) to complete the task. Upon mutual agreement of the parties, the COR will direct the Contractor to perform the task.
- d. Preventive Maintenance: The Contractor shall perform regularly recurring, preventative maintenance and inspections on all site support equipment and systems in accordance with manufacturer's Operations & Maintenance manuals and warranties, Naval Facilities Engineering Command (NAVFAC) guidance, other DOD facilities publications, sound engineering practices and as otherwise specified herein. The Contractor shall maintain within the Enterprise Asset Management System (EAM/MMIS) a detailed, searchable, database record and archive of all preventive maintenance work. The Contractor shall install routine repair and upgrade kits, conduct system equipment evaluations, analysis and testing.
- e. Corrective Maintenance: The Contractor shall perform troubleshooting, corrective maintenance and repairs/replacements for all site support equipment and systems in accordance with manufacturer's O&M manuals and warranties, NAVFAC, other DOD facilities publications,

sound engineering practices and as otherwise specified herein. Repairs are limited to normal wear and tear items. Routine repairs shall be completed within thirty (30) days unless parts are unavailable locally. Contractor shall perform immediate repairs/replacements when required to prevent additional damage or degradation to equipment. The Contractor shall evaluate and provide the COR information on damage/casualties in accordance with this PWS. The Contractor shall be able to demonstrate satisfactory repair progress at all times. The Contractor shall maintain within the EAM/MMIS a detailed, searchable, database record and archive of all corrective maintenance and repair work.

- f. Emergency Repair: The Contractor shall arrest all emergencies and prevent further damage to personnel, facilities, systems or equipment.
- g. Response Times:
 - (1) The Contractor shall immediately perform Emergency Repairs deemed necessary to prevent the loss of life, facilities and equipment, and shall continue such efforts until the emergency is mitigated or corrected. The Contractor shall notify the COR immediately of all emergencies.
 - (2) The Contractor shall complete the Urgent Repairs deemed necessary to either ensure or restore the safety, security and operational conditions of personnel, facilities, infrastructure and equipment within 48 hours of identifying the requirement and creating a Work Order in the EAM/MMIS.
 - (3) The Contractor shall complete any other repairs as Routine Repairs within thirty (30) calendar days of identifying the requirement and creating a work order in the EAM/MMIS database.
- h. Janitorial:
 - (1) The Contractor shall provide janitorial/services maintenance for the ROTH Virginia Receive Site Building 344. Weekly trash removal will be provided except for OCC system spaces (Rooms 123, 125, 127, 128, 129, 130), hallway (Room/space 122), Mixer/repair Room (Room 124) and Room 108. The Contractor shall provide janitorial/services maintenance for the ROTH Virginia Receive Site Building(s) 363 (except restroom), and 446 (except restroom).
 - (2) The Contractor shall provide janitorial maintenance for all Virginia Transmit, Texas Transmit and Receive and Puerto Rico Transmit and Receive site buildings and spaces (including Government spaces at the Puerto Rico Sites) identified in PWS Paragraph 5.1.2a)
 - a. The Contractor shall routinely clean to maintain sanitary conditions and to provide a pleasant appearance. Floors shall be cleaned, polished and free of scuffmarks and dust/wax buildup in the corners, by the Contractor. Carpet shall be cleaned and maintained by the Contractor. Windows shall be kept clean and ceilings, lighting fixtures and walls cleaned of dirt accumulations, by the Contractor. Equipment cabinets shall be free of dust and foreign matter accumulation. Contractor shall disinfect daily: food preparation surfaces and other high-touch surfaces, including light switches, faucets, remote controls, doorknobs, refrigerator door and microwave handles, and computer keyboards. Garbage and trash receptacles shall be emptied by the Contractor on a daily basis into the main trash receptacle.
 - b. Scope and Frequency of Cleaning: As part of the Facilities Maintenance Plan, the Contractor shall submit a detailed schedule outlining the scope and frequency of the

above requirements. At a minimum, the Contractor shall ensure proper operation of equipment, safety of people and equipment, sanitation and healthy standards required by State regulations, a clean environment for employees, visitors and the public. If circumstances occur that require additional cleaning, the Contractor shall increase the frequency of cleaning to maintain sanitary conditions.

i. Grounds Maintenance for all sites:

- (1) Grounds Maintenance Plan: The Contractor shall perform grounds maintenance of all improved areas (see Section J - Attachment 10) at all radar sites to preserve the land, provide a well-groomed appearance of the vegetation, maintain proper drainage, and provide a safe environment for the property, the buildings and the personnel. Forested/woodland areas and agricultural lease areas do not require services. All grounds maintenance operations shall avoid damaging the radar ground screen, radials and perimeter wire. Attachment 10 drawings do not indicate detailed existing obstructions such as trees, stumps, shrubs, concrete blocks, ditch lines, transformers, signs, fences, etc. and other obstacles. The Contractor shall carefully examine the areas to be maintained and determine to their own satisfaction the type of vegetation, acreage, amount of edge trimming, and extent of obstructions to be encountered. Grounds maintenance shall be planned and executed in accordance with the following:
 - a. Mowing: The Contractor shall perform mowing as required to maintain grass height identified in Attachment 10. All "A" areas are maintained at approximately 4 inches in height to represent "improved" areas. "B" areas (semi-improved) are maintained within the required 6 to 9 inches in height using conventional grass cutting procedures and the application of herbicides to control weeds in areas that are impractical to cut. "C" (unimproved) areas are maintained at a maximum height of 24 inches so as to keep down the rodent and snake population and improve drainage. The Contractor shall perform mowing as required to maintain grass height between 6 and no greater than 9 inches. Grass mowing by the Contractor shall be accomplished in a manner such that it is free from scalping, rutting, bruising, uneven and rough cuttings. If any bare ground within the limits of an area included in this specification becomes populated with grass or weeds through natural spread, i.e., not artificially planted, the Contractor shall maintain such area(s) as a part of the contract. Prior to mowing, the Contractor shall remove all rubbish, debris, and trash including leaves, rocks, paper, and other portable objects within the maintenance area, and shall include trash, papers and leaves lodged in shrubs, hedges, fences, along foundation walls, and shall dispose of off station in an approved local, city or county land fill or disposal site.
 - b. Trimming: The Contractor shall trim around all buildings, antennas and shelters, trees, shrubs, cultivated areas, fences, poles, walls, sprinkler heads, fire hydrants, transformer compounds, air conditioning equipment compounds, buildings, facilities, structures, power pole guide wires, valves and other similar, existing or which may be placed in the future, to match the height appearance of surrounding vegetation. After trimming, all debris shall be removed by Contractor; sidewalks and paved areas cleaned and all trash debris resulting from the Contractor's operations shall be removed by the Contractor from the site and disposed of off the site by the Contractor each day work is performed.
 - c. Fence Lines: The Contractor shall maintain all fences lines (vinyl, chain link, wire mesh, wooden, stockade, etc.) vegetation free at all times from top to bottom of the fabric posts. The Contractor shall maintain a 20-foot easement on both sides of all fences. The Contractor shall maintain the ground level of all security fencing to prevent gaps that could allow animals or people to gain access to a restricted area.

d. Roads, Pavement and Parking Lots: The Contractor shall inspect all roadways and parking surfaces, drainage swales, and adjacent drainage ways and correct all minor discrepancies within 30 calendar days. This effort includes minor repair and patching of pavements, other improved surfaces, overruns, hard stands, appurtenant drainage systems, drainage swales, curbs, gutters, traffic signs, markings, and protective devices. The Contractor shall immediately report major discrepancies and repairs to the COR.

e. Ditch/Drainage Swale Maintenance: The Contractor shall maintain grass height for ditches and road drainage swales between 6 and no greater than 9 inches. For ditches/drainage swales containing water at the time of mowing, the Contractor shall cut ditch/drainage swales bottoms to the existing water level. Ditch/drainage swale bottoms not containing water shall be cut by the Contractor to a height not exceeding twice the cutting height of adjacent mowed areas. Contractor shall maintain a minimum, 6 foot easement on both sides of all ditches and road drainage swales. All obstructions (foreign or vegetative) to water flow in ditches/drainage swales shall be removed and disposed of by the Contractor off base.

f. Irrigation and Seeding: In areas requiring erosion control, the Contractor shall promote growth and health of land, vegetation and trees.

g. Vegetation Control: The Contractor shall provide effective vegetation control and herbicide application services through the use of either properly trained and licensed employees or Sub-Contractors. See ROTHF O&M Environmental Specification, Section J, Attachment 2, for specific guidance and reporting requirements.

h. ROTHF Puerto Rico Transmit Site Coconut Road: Grounds and tree-vegetation clearing and control shall be completed/performed 4 times a year along both east and west sides of Coconut Road (2.1 miles) (See Attachment 10, "D" areas). Work shall control easement areas free of trees and clear of vegetation cut to a height not to exceed 3-inches from the ground. Road easement width areas shall be maintained at least 8 feet from the edge of the road.

i. ROTHF Puerto Rico Transmit Site Aerial power line right-of-way easement: Grounds and tree vegetation clearing and control of the aerial power line right-of-way easement shall be completed along the entire run along Coconut Road (1.6 miles) on a quarterly basis (See Attachment 10, "D" areas). Grounds and tree vegetation clearing and control of the aerial power line right-of-way easement between Coconut Road and the site perimeter fence (0.3 miles) shall be completed on a quarterly basis. Work shall control easement ground areas free of trees and clear vegetation cut to a height not to exceed 3 inches from the ground. Aerial power line right-of-way easement width area shall be maintained at least 15 feet on each side of aerial power line. In addition, a 15-foot easement around power poles and power poles that support guide wires.

j. ROTHF Puerto Rico Transmit Site Electrical Substation: A 20 foot wide clearing area around the substation shall be maintained, as often as necessary, controlled free of trees, and cleared free of vegetation to a height not to exceed 6 inches from the ground.

k. ROTHF Texas Sites: Establish and maintain a firebreak approximately 10-feet wide. Firebreak to encompass the entire compound/site. Firebreak shall be clear of all vegetation or other combustible material.

l. ROTHF Puerto Rico Receive Site Aerial power line right-of-way easement: Grounds and tree vegetation clearing and control of the aerial power line right-of-way easement shall be completed along the entire run from the metering pole to the dip pole. Aerial power line right-of-way easement width area shall be maintained at least 15-feet on each

side of aerial power line. In addition, a 15-foot easement around power poles and power poles that support guide wires. Contractor shall maintain a 15-foot easement for the underground conductor from the dip pole to the ROTHr substation. Contractor shall maintain a 15-foot easement around all utility manholes. All utility manhole covers shall be kept clean of all dirt and debris.

m. ROTHr Virginia Transmit Site RADHAZ Fence: An 8-foot wide path shall be maintained on the outside (non-RADHAZ area) of the RADHAZ fence. Contractor shall remove any type of vegetation that comes in contact with the fence. Vegetation height shall not exceed 12 inches in the 8-foot wide path.

n. The Contractor shall provide all labor, materials, tools, supplies and equipment necessary to perform grounds litter policing and removal services from all ROTHr Sites. Responsibilities shall include the removal and disposal of all natural debris (tree limbs, dry brush, dead animals, etc.), removal and disposal of all manmade debris, including paper cans, bottles and cigarette butts.

j. Fences:

The Contractor shall maintain all fences (chain link, vinyl, cable and barbwire) at each location. Broken vinyl fence sections shall be replaced with new. Repairs of security fences and gates shall be in accordance with Unified Facilities Criteria (UFC 4-022-03). Contractor shall inspect to make sure all grounding for the fence line is maintained to retain its effectiveness.

5.1.2 Government Furnished Support

a. The Government will furnish the following support to the Contractor:

- (1) Operational and Administrative Facilities: Rooms 106, 119 and 111 in Building PX-1 at the ROTHr Puerto Rico Transmit Site, Room 111 in Building PR-1 at the ROTHr Puerto Rico Receive Site and Room 109A in TR-1 at the ROTHr Texas Receive Site are designated as Government space. All other building spaces referenced in paragraph 5.1.2 are designated as Contractor space.
- (2) Operational and Administrative Facilities: Assigned Contractor spaces for ROTHr Virginia Receive Site Buildings 310 and 344 will be provided to the Contractor upon contract award. All of Building 363 and 446 are designated Contractor space.
- (3) Electric Power: The Government will provide electric power to all sites from commercial sources. Backup emergency power generator, and uninterruptible power supply (UPS) will be provided at all sites. The Contractor shall ensure the most effective and efficient use of utilities to conserve energy and natural resources.
- (4) Telephone Lines: The Government will provide connectivity to local telephone service vendors via Government owned communications infrastructure. The Government will provide three local commercial phone lines per remote site: New Kent, VA, Freer, TX, Premont, TX, Juana Diaz, PR, and Playa Grande, PR. This does not include the ROTHr Admin Network responsibilities outlined in Section J - Attachment 11.
- (5) Fuel: The Government will provide diesel fuel for Generator and grounds equipment at the Puerto Rico Sites, Texas Sites, and Virginia Transmit Site. The Government will provide diesel fuel for Generator only at the Virginia Receive Site. When requested, Contractor shall provide site escort for diesel fuel delivery driver, monitor fuel offload, sign for delivery of the fuel and provide fuel receipt to the local Government representative or Government Facility Manager. During emergencies, Contractor shall

provide fuel for all Emergency Power Generator Diesel Equipment and Diesel Ground Maintenance Equipment at all sites when requested by the COR.

- (6) Water: The Government will provide potable water at the ROTH Virginia Transmit Site, New Kent, VA and at the ROTH Virginia Receive Site, Chesapeake, VA. The Government will provide potable water at the ROTH Puerto Rico Receive Site, Juana Diaz, PR. The well water source at the ROTH Texas Transmit Site is not potable per Navy Bureau of Medicine and Surgery (BUMED), and should not be used for drinking or cooking. ROTH Texas Receive Site, Freer Texas does not have any source of water and only has a 5,000 gallon water tank. Contractor shall be responsible for filling/maintaining the 5,000 gallon water tank as this is the only source of water for the site. Per Navy Bureau of Medicine and Surgery (BUMED), it is determined that the water is **not potable**, and per BUMED direction is **not to be used for drinking or cooking**. Purchase and provision of bottled water is approved at the ROTH Texas Transmit Site, Premont, TX and at the ROTH Texas Receive Site, Freer, TX. Source water at the ROTH Texas Transmit Site, Premont, Texas site shall be tested periodically by the Contractor to ensure safety and/or reconfirm non-potability. The Water source at the ROTH Puerto Rico Transmit Site, Vieques Island, Puerto Rico was tested and the water is **not potable** and is **not to be used for drinking or cooking**. Purchase and provision of bottled water is approved at the ROTH Puerto Rico Transmit Site, Vieques Island, Puerto Rico since the available water is non-potable.
- (7) Sewage: The Government will provide base sewage services for the Virginia Receive Site, Chesapeake, VA and the ROTH Receive Site Juana Diaz, PR. At the ROTH Receive Site San Juan, PR, Contractor is responsible for repairs of the sewage line that is within the site boundary. The ROTH Transmit Site, New Kent, VA, ROTH Texas Transmit Site, Premont, TX, ROTH Receive Site, Freer, TX and the ROTH Transmit Site Vieques, PR , are all on septic systems. Contractor is responsible for the maintenance and repair of all septic systems, which includes tanks, pumps, alarms, and septic lines. Contractor shall pump the septic tanks at each site on an annual basis.

5.1.3 Buildings, Structures, Systems, Water Tanks& Equipment:

- a. Buildings/structures: The Contractor shall maintain all buildings, water tanks and structures, including but not limited to the following areas (Excluding VA Rx):
 - (1) Exterior walls, framing, masonry units and exterior trim. Exterior and interior finishes shall be maintained as required to correct all defects and damage, such as spall areas, eroded joints, badly stained or disfigured areas and to keep the facility in good operational and sanitary conditions in order to preserve the components.
 - (2) Exterior doors, windows and screens.
 - (3) Repainting of exterior and interior surfaces. Interior and exterior painting shall be accomplished when necessary to maintain sanitary conditions and/or protect surfaces.
 - (4) Roofing, flashing and gravel stops that are deteriorated or defective shall be repaired/replaced in such a manner as to render the work waterproof and weather tight. Trees, limbs and other debris shall be removed from the roofs.
 - (5) Exterior and interior doors and hardware.
 - (6) Interior walls, framing, and partitions. Foundations, columns, structural frames and connections.

- (7) Drop-in ceiling grid and tiles shall be replaced when damaged, within 7 days of discovery.
 - (8) Maintain floor covering and floors to ensure the floors safe, sanitary, and usable. Broken, chipped and torn pattern coverings shall be replaced. The replacements shall be of the same quality, pattern and color as existing, unless otherwise authorized by the FSSC Facilities Manager.
 - (9) Signs attached to, a part of, or installed in assigned building structures.
- b. Interior/Exterior Electrical Systems: The Contractor shall ensure the proper operation of electrical systems. All work shall conform to the current National Electric Code (NEC) or applicable state or local instruction or standards. Replacement shall be the same kind, equal or better type, style, quality, grade or class in order to obtain specific operating characteristics to match other items in place. The work under this paragraph shall include:
- (1) Inspection, maintenance/repair/replacement of complete building structure wiring system, entrance and distribution panels, switchgear, cable system, conductors, conduits, controls, transformers, switches, receptacles, outlets, device plates, ground systems, emergency lights, light fixtures, motor-generator sets, and related appurtenances. (Excluding VA Rx)
 - (2) Exterior lights or fixtures located on assigned buildings/structures including walkways and parking lot lighting. (Excluding VA Rx)
 - (3) Electrical disconnect switches and breaker controllers for all voltage equipment. (Excluding VA Rx Buildings).
 - (4) Replacement of light bulbs or tubes shall be included. (Excluding VA Rx)
 - (5) Inspection, maintenance/repair/replacement of uninterruptible power supply (UPS) system
 - (6) Generators, switchgear (including Gas Insulated Switch(s)) are free of mold. Paint when needed.
- c. Heating/Ventilation/Air Condition System (HVAC): The Contractor shall ensure the proper operation of the HVAC systems. (Excluding VA Rx buildings) This work shall include, but not be limited, to the following:
- (1) Compressors, motors, coils, drive assemblies and fans.
 - (2) Guards, casing, hangers, support, platforms and mountings.
 - (3) Changing Air filters per manufactures recommendations.
 - (4) Filter Units.
 - (5) Insulation.
 - (6) Power controls.
 - (7) Inspections/preventative maintenance per manufactures recommendations.
 - (8) Calibrations.

- (9) Replacement of HVAC systems.
- d. Control of Refrigerant: The Clean Air Act Amendments of 1990 (CAAA-90) prohibits the release of refrigerant into the atmosphere while repairing or servicing appliance, motor vehicle or industrial refrigeration equipment. The Contractor shall submit to the EPA, via the COR the names and addresses of all personnel certified to perform work applicable to this paragraph and the serial number of EPA approved refrigerant recycling equipment that will be used in support of this work. Due within 45 days after the contract performance start date and immediately after any changes.
- e. Plumbing: (Excluding VA Rx buildings). The Contractor shall ensure the proper operation of plumbing systems. Leaking faucets, broken water lines, broken/clogged sewage lines and damaged fixtures shall be repaired immediately or replaced as needed by the Contractor. Plumbing systems include:
- (1) Wall interior piping and that exterior piping within the compounds.
 - (2) Interior hot water piping and water heaters.
 - (3) Rest Room Fixtures, sinks, shower stalls, toilets and urinals.
 - (4) Exterior hose bibs, pumps, wells and associated equipment.
 - (5) Chlorine Disinfection System at both Texas Sites, which includes the maintenance/repair and maintaining proper chlorine levels.
 - (6) 5,000 Gallon Water Tanks at both Texas Sites
 - (7) Water well pumps
- f. Fire Extinguishers: (Excluding VA Rx buildings). The Contractor shall maintain Fire Extinguishing devices and related equipment in good working order at all times. Contractor actions shall at all times comply with Federal, State, Local, DoD and Navy laws, regulations, policies, guidance and instructions.
- g. Emergency Power Generator Diesel Equipment: The Contractor shall be required to operate and maintain stand-by emergency power generator. The Contractor shall create and maintain an Emergency Power Generator Operating Log reflective of, as a minimum, the starting and securing of the generator, the total elapsed and respective segment run-time, the calendar date and the quantities of Diesel fuel that are delivery or otherwise transferred into the generator fuel tank. This operating log shall always be immediately available for review by Government personnel, Regulatory Agencies, and other individuals. The Contractor shall perform maintenance for the electrical power systems including electronic equipment, support equipment, loads, and switchgear, in accordance with current National Electrical Codes. The Contractor shall schedule protective relay, circuit breaker, and grounding system testing. The Contractor shall maintain the controls for the electrical power systems. The Contractor shall manage, operate, maintain, and repair electrical power generating equipment in accordance with manufacturer's recommendations. The Contractor shall reestablish electrical power to the Site and all critical support equipment required for the mission within 30 minutes maximum, in case of primary power loss. The Contractor shall document maintenance activities in the EAM/MMIS database and the Emergency Power Generator Operating Log. The Emergency Power Generator Operating Log shall be submitted to the COR every three months. Contractor shall notify the COR and Maintenance Management Department when generator fuel tank reaches 50% of total capacity. Contractor shall schedule Quarterly Preventative Maintenance. Preventative maintenance/repairs shall be performed by manufacturer's certified maintenance personnel and all substantiating

documentation resulting from the preventative maintenance/repair work order, shall be uploaded and attached to the work order in EAM/MMIS prior to being closed.

- h. Facility Support Request: The Contractor shall move, relocate, place out of the way, or assist in moving ROTHr system, Test Bed or support equipment in order for other Government support contractors to repair/replace building or site infrastructure items (i.e., HVAC items, electrical power and distribution, lighting UPS, etc.). The Contractor shall return or assist in returning system or equipment to functional location when Government support tasking is complete.
- i. Provide other facilities/infrastructure repairs/replacements at all ROTHr Sites as determined by the Government.

5.2 Environmental and Safety:

- 5.2.1 Establish and maintain an Environmental Health & Safety (EH&S) Program that will ensure full compliance with all contract performance requirements, the applicable federal, state, local, DoD, Navy, and FSSC policy and procedures, and the ROTHr O&M Environmental Specification provided in Section J - Attachment 2. The EH&S staff members assigned to each ROTHr System – Virginia, Texas, and Puerto Rico – shall have at least 5 years of practical experience in EH&S operations. All substantiating documentation (Inspection sheets, check sheets, maintenance sheets, data sheets etc.) resulting from a Work Order in EAM/MMIS, shall be uploaded and attached to the Work Order in EAM/MMIS prior to being closed.

- 5.2.2 Provide an EH&S Program Plan in accordance with OSHA, Title 29 CFR1910 and 1926 that will identify and support the training and the certification, when required, for each area. The Contractor shall provide the EH&S Program Plan within 45 days after the contract performance start date and immediately after any revisions. The Plan shall address, at a minimum:

- General Safety and Health Provisions.
- Safety Education and Training.
- Toxic Substances & Harmful Physical Agents.
- Respiratory Protection.
- Asbestos & Lead Abatement.
- Lock-out/Tag-out Procedures.
- Electrical Hazards.
- Fall Hazards.
- Infectious Diseases.
- Fire and Explosion Hazards.
- Dangerous Atmospheres.
- Personal Protective Equipment, (PPE).
- Machine Hazards.
- Occupational Noise Exposure and Hearing Protection.
- Hazard Communications Standards.
- Industrial Hygiene.
- Safety Incident Reporting.
- Emergency and Fire Prevention and Response.
- Blood-borne Pathogen Exposure and Response.
- Employee Emergency Response.
- Hazard Analysis Matrix and Supplemental Sheet.
- Supervisor's Mishap Report.
- Hazardous Waste Management Plan (Reference only, as plan is detailed in Environmental Section x-x).

- Pandemic Situations.

5.2.3 Refuse and Solid Waste Management:

The Contractor shall ensure that solid wastes conform to and are disposed of in accordance with Federal, State and local regulations. The volumes of solid wastes and the respective accepting facilities shall be transmitted as a report to the COR every six months. Due semi-annually CDRL F04.

5.2.4 Pest Control (Excluding Virginia RX Site):

The Contractor shall endeavor to control pests, vermin and other vectors through proper sanitation and waste minimization. When additional controls become necessary, the Contractor shall provide effective, licensed pest control services. (see ROTHRO O&M Environmental Specification Section J - Attachment 2 for specific guidance and reporting requirements). Pest control services shall include all buildings and system equipment at all ROTHRO sites, including, substation, switchgear and transformer locations (excluding VA Rx Site).

5.2.5 Hazardous Material and Hazardous Waste:

See ROTHRO O&M Environmental Specification, Section J - Attachment 2.

5.2.6 Spill Response:

- a. The Contractor shall immediately respond to any and all spills and/or unauthorized environmental releases of hazardous materials and hazardous wastes at each ROTHRO site. The Contractor shall make every effort to contain and mitigate the release, immediately report the details of the release and the response efforts to the COR and FSSC Facilities Manager, and follow-up with submission of a Situation Report in accordance with the PWS Paragraph 5.3.2.a. The COR and the FSSC Facilities Manager will work with the Contractor to determine the level of effort necessary to complete a remediation.

- (1) The Contractor is responsible to contain, mitigate, and remediate all spills caused by the O&M Contractor, its subcontractors, vendors, etc., in performance of the O&M requirements.
- (2) The Contractor will be reimbursed for costs to contain, mitigate, and remediate all spills caused by all others.

5.2.7 RADHAZ Area Signage:

The Contractor shall maintain all RADHAZ Area signage at all the sites. Contractor shall replace signage if it becomes illegible or is damaged. RADHAZ signage shall be placed every 100 ft.

5.2.8 Fuel Tank Inspections:

Contractor shall inspect each diesel fuel tank on a monthly and annual basis (excluding Virginia Rx). See Section J - Attachment 17 for the monthly and annual fuel tank check sheet that must be filled out for each inspection / each fuel tank. Completed check sheets must be kept in a binder onsite. Check sheets shall be kept for 3 years.

5.3 Facilities Maintenance Plan for all Sites:

The Contractor shall submit to the COR a Facilities Maintenance Plan within 45 days after the contract performance start date and 30 days after any revision to the initial plan. This plan shall include as a minimum:

- a. Facilities Point of Contact (POC): The Contractor shall designate an individual at each site to serve as the Government's point of contact on matters pertaining to this section of the contract.
- b. Detailed description of the Contractor's plan for completing all facilities requirements including control inspections, preventive maintenance inspections, operator inspections, preventive maintenance/service work, recurring work, etc.
- c. Names, qualifications and, where necessary, the licensing of all personnel, to include sub-contractor personnel, that will be providing services in support of the requirements defined within this section and any sections incorporated by reference in this section.
- d. Detailed schedule providing specific dates for performing all work including control inspections, preventive maintenance inspections, operator inspections, preventive maintenance/service work, recurring work, etc.

5.3.1 ROTH Admin Network (Voice Over Internet Protocol (VOIP)/6000 series phones):

The Contractor shall be responsible for the operation, maintenance and repair of the ROTH Admin Network which includes the VOIP telephone switch in building 344 of the ROTH

Virginia Receive Site that supports local area dialing capabilities to each of the ROTH sites across Commercial Vendor Circuits (See Section J - Attachment 11). Local and long haul connectivity to the VOIP system (COX Business IP- Based) in Building 344. The Commercial Vendor circuits are to be provided by Contractor. The Commercial Vendor circuits shall be a T1 (minimum 1.5 Mbps) to each ROTH site in Puerto Rico, Texas and the Virginia Transmit Site. The Commercial Vendor circuit to the ROTH Virginia Receive Site shall be a minimum 20 Mbps. The Contractor shall also provide a minimum 100 Mbps Circuit at the ROTH Virginia Receive Site to support EAM/MMIS. Contractor shall be responsible for the Data Router (Cisco 4000 series or equivalent, DODIN Authorized Products List (APL) approved device). Contractor's Data Router must be compatible with current Government Furnished Equipment. All other equipment in Section J - Attachment 11 will be provided by the Government.

5.3.2 Other Reports for all Sites:

The Contractor shall provide the following recurring reports:

- a. Situation Reports. The Contractor shall report to the Operations Officer as soon as practical and submit no later than the next business day a Situation Report (SITREP) that shall document in detail any of the following or similar types of events listed below. SITREP formats or templates will be provided by the Government.
 - 1. Personnel injuries or fatalities
 - 2. Facility loss or damages to equipment and facilities
 - 3. Electrical power outages/interruptions/failures affecting facilities/radar operations
 - 4. Communication outages effecting radar operation
 - 5. Hazardous materials and hazardous waste spills or contaminations
 - 6. Halon discharges
 - 7. Security camera/equipment failures
- b. Facilities Work Control Report: The Contractor shall submit to the COR a Facilities Work Control Report that will contain, as a minimum, the following information sorted by site, facility and equipment (Due by the 15th of every month):

- (1) Facilities/Grounds preventative maintenance inspections completed during that month.
 - (2) Facilities/Grounds preventative maintenance inspections cancelled or rescheduled during that month and the proposed performance date(s).
 - (3) Any additional repairs identified and completed as a result of the preventive maintenance.
 - (4) Other maintenance performed outside of the planned performance cycle.
 - (5) Any other facilities, sub-system and equipment repairs that are required and not related to preventative maintenance actions.
 - (6) Planned and any rescheduled maintenance activities identified for the next month.
- c. Fuel Usage Report: The Contractor is responsible for monitoring and reporting on the types, quantities and qualities of fuels delivered to and consumed (diesel and gasoline) at each of the ROTH sites. The Contractor shall submit to the COR a Fuel Delivery and Usage Report that includes: the types and quantities of fuels delivered to a site, regardless of ordering source; a copy of the fuel assay; quantities of fuel consumed and the associated operations / equipment. The Fuel Usage report is due every three months.
- d. Radiation Hazard (RADHAZ) Report: Contractor shall perform a biennial RADHAZ survey and generate a report (CDRL F010) for each transmit site to ensure that Maximum Permissible Exposure levels are within the most current and any subsequent revision to the ANSI/IEEE C95.1 specifications.

5.4 Deliverables:

- Facilities Maintenance Plan (Ref PWS 5.3). CDRL F001.
- Control of Refrigerant Certified Personnel (Ref PWS 5.1.3.d). CDRL F002.
- Emergency Power Generator Operating Log (Ref PWS 5.1.3.g). CDRL F003.
- Refuse and Solid Waste Management Report (Ref PWS 5.2.3). CDRL F004.
- Situation Reports (Ref PWS 5.3.2.a). CDRL F005.
- Facilities Work Control Report (Ref PWS 5.3.2.b). CDRL F006.
- Fuel Usage & Delivery Report (Ref PWS 5.3.2.c). CDRL F007.
- UPS Battery/Cell Watch Condition Report (Ref PWS 5.1.3.b.5). CDRL F008.
- EH&S Program Plan (Ref PWS 5.2.1). CDRL F009.
- Radiation Hazard Report (Ref PWS 5.3.2.d). CDRL F010.

6.0 Quality Control

6.1 Quality Control (QC) Program

The Contractor shall provide and maintain an effective inspection program that ensures full compliance with all contract requirements. Contract Surveillance is the method by which the FSSC Quality Assurance Specialist/Facilities (QAS), and the Industrial Property Management Specialist (IPMS) assess Contractor controls over product quality, Government Property and overall contract compliance.

- 6.1.1 ISO 9001 Compliance. The Contractor's QC Program shall provide a commercial quality system that complies with International Organization of Standardization, ISO 9001:2015; this serves as the foundation for the Quality Management System standards. The Contractor's QC program shall demonstrate a systems

approach for managing quality and process controls that adequately address each element of the standard IAW CDRL Q003 ROTH Inspection Report. The Government may perform any inspections, verifications and evaluations to ascertain conformance to requirements and the adequacy of the quality system. The Contractor shall require subcontractors and vendors to establish a QC program that complies with ISO 9001:2015 and achieves control of the quality of the services and supplies that they provide. The Government reserves the right to disapprove the QC program, or portions thereof, when it fails to meet contractual requirements.

- 6.1.2 Quality Program Plan (QPP). The Contractor will provide FSSC QA a Quality Program Plan (QPP) CDRL Q001 that details the Contractor's inspection program covering all contract requirements including, but not limited to methodologies and approach, schedules for planned inspections; supervisory and management responsibilities for preventing and correcting discrepancies; name, title, and qualifications of all Quality Control personnel. The Contractor shall submit the Quality Program Plan within 45 days after contract start date and within 30 days following any revisions thereto.

6.1.3

Corrective Action Request (CAR) – a Government/Contractor request to provide corrective action bringing the nonconformance(s) back into compliance with regulatory or contractual language.

- a. Has multiple levels that elicit the proper response for nonconformance.
- b. Is the “official” vehicle for requesting a contractual nonconformance be brought back into conformance.
- c. Authority driven by Public Law, FAR, Contractual requirements.
- d. CARs can be initiated and issued by DCMA QA, FSSC QAS, FSSC Facilities, or FSSC Property Administrator and will be issued to the contractor utilizing FSSC's CAR process.
- e. All Corrective Action Request (CAR) documentation shall be routed through the Contracting Officer's Representative (COR).

CAR Level I - Is appropriate for issues that can be corrected on the spot and/or are minor in nature. Level I CAR will be used for documentation of a contractor deficiency. As the definition of a Level I CAR states, it is used “for issues that can be corrected on the spot and/or are minor in nature.” If the discrepancy has been corrected on the spot or is minor in nature, a response may be required as determined by the FSSC QA Supervisor. A repeat discrepancy (systemic in nature) may be escalated to a Level II.

CAR Level II - a nonconformance, other than critical, that is likely to result in failure of the supplies or services, or to materially reduce the usability of the supplies or services for their intended purpose or deficiencies in a Contractor process(es) (e.g., purchasing, configuration management, EVM processes) that are: not a significant breakdown of a higher level system; a deficiency associated with critical characteristics; an escalation of Level I CARs indicating increasing process performance risk; or multiple major product deficiencies indicating a systemic issue throughout the process(es).

- a. Level I CAR's may result in a level II CAR, if trending is consistent with continued program risk or Level I CAR is not implemented in a timely manner.
- b. This condition will require the contractor to provide Root Cause Corrective Action (RCCA).

CAR Level III - a nonconformance that is likely to result (or has the potential to result) in hazardous or unsafe conditions for individuals using, maintaining, or depending upon the supplies or services; or is likely to prevent performance of a vital agency mission or multiple major nonconformance's in a system affecting contractual requirements or program ability to meet cost, schedule or performance requirements; a significant deficiency pursuant to DFARS 252.242-7005, “Contractor Business Systems” or a failure to respond to a lower level CAR, or to remedy recurring noncompliance.

- a. Level II CAR's may result in a level III CAR, if trending is consistent with continued program risk or Level II CAR is not implemented in a timely manner.
- b. A Level III CAR may result in the initiation of available contractual remedies, such as reductions of payments, cost

- c. This condition will require the contractor to provide RCCA.

CAR Level IV – a nonconformance that has resulted in hazardous or unsafe conditions for individuals using, maintaining, or depending upon the supplies or services or multiple major nonconformances in a system affecting contractual requirements or program ability to meet cost, schedule or performance and issued by the Administrative Contracting Officer (ACO).

All Nonconformance and Corrective Action Request (CAR) documentation shall be routed through the Contracting Officer's Representative (COR).

- 6.1.4 Quality Contract Minimums (per Period of Performance). The Contractor shall have no Level III or IV CAR, no more than six (6) Level II and no repeated CARs.

- 6.1.5 Quality Inspection Report. The Contractor shall maintain accurate and complete documentation of all inspections, findings, and corrected deficiencies in the EAM/MMIS database. Provide FSSC QA an Inspection Report summarizing all inspections, findings, and corrected deficiencies. Due monthly CDRL Q003.

6.2 QC Safety

The Contractor's QC Program shall provide for consistently safe operation and maintenance of ROTHF equipment. The Contractor shall conduct oversight for all maintenance actions and all Contractor programs, processes and procedures at all times as part of the QC program. As part of the QC program, the Contractor shall conduct logistics QA internal reviews, surveillances, and audits of Government property IAW FAR 52.245-1 (Government Property clause).

6.3 QC Personnel

The Contractor shall ensure the efforts of personnel and suppliers comply with the quality requirements of this PWS at all times. The Contractor shall provide the following minimum headcount of QC personnel assigned to the Quality Department; one Quality Technician at each site and a Quality Control Manager, for a total of seven personnel in the Quality Department.

6.4 QC Program Plan Updates

The Contractor shall document any changes to their Quality Control Program Plan IAW Quality Control Program Plan Updates (CDRL Q001).

6.5 Operations QA Data.

The Contractor will provide FSSC QA and Operations Department copies of Operations data collection, playbacks/reviews created/obtained by the Contractor in performance of the contract. The Contractor shall provide this information within 15 work days following the end of each month.

6.6 Deliverables:

- Quality Program Plan (QPP) (Ref PWS 6.1.2). CDRL Q001.
- Inspection Report (Ref PWS 6.1.1) .CDRL Q003.
- Data Collection, Playbacks/Reviews (Ref PWS 6.5). CDRL O004.

6.7 Operating Constraints:

- The Contractor's QC program shall be *compliant* with the industry standard ANSI/ISO/ASQC Q9001-2015. The Contractor's program does not need to be certified, just compliant.
- Contractor generated Work Orders in EAM/MMIS are not a substitute for Quality Control inspections or inspection records.

- All Contractor inspections and discrepancies, Quality Deficiency Reports (QDRs), deficiencies or equivalent will be documented in EAM/MMIS as a Work Order.

7.0 Security – Physical, Communication, and Data,

7.1 Overview

Comply with and adhere to OPNAVINST 5530.14 (series), NTTP 3-07.2.3, and FSSC instruction for matters pertaining to a Physical Security Program. Establish and maintain a Communication Security Program and a Cyber Security Program in accordance with, NIST SP 800-53 Revision 4/30, SECNAVINST 5239.3C, National Security Agency Regulations, DOD Contract Security Classification Specification (DD Form 254) provided in Section J - Attachment 3, and applicable contract requirements.

Establish and maintain a System Security Plan (SSP) and a Network Security Plan (NSP) for all Government Owned Contractor Operated (GOCO) systems in Building 344 in accordance with Cyber Security controls identified in the System Categorization Form and outlined in the National Institute of Standards and Technology (NIST) 800-53. The Contractor must maintain a COMSEC account in support of this effort. No classified storage requirements exist at this time for the other facilities. The COR, FSSC Security Manager, and the Contractor shall inventory existing classified material held in GSA approved storage safes transferred to the Contractor. Provide a System Security Plan (SSP) and Network Security Plan (NSP) in accordance with Cyber Security controls identified in the System Categorization Form and outlined in the National Institute of Standards and Technology (NIST) 800-53. The SSP and NSP are due 45 days after the contract performance start date and 30 days after any revision.

7.2 Physical Security Requirements

Comply with physical security and loss prevention requirements of OPNAVINST 5530.14 (series) and provide assistance to the FSSC Security Manager for facilities security functions at all ROTH sites except for location in Puerto Rico (Vieques) which has a dedicated Security Guard force. Provide a dedicated presence at the Front Desk of Building 344 to perform Visitor Control functions from 0800 until 1630. The Contractor shall perform floor and ceiling checks once a month in Building 344 and to sign, time and date a clipboard hanging in each area to document the completed action. Report to the COR and FSSC Security Manager within two hours of any instance where assistance is requested from local authorities. Copies of all police reports shall be provided to the same within 48 hours.

- 7.2.1 Provide daily inspection of ROTH Virginia, Texas, and Puerto Rico to ensure proper operation of electronic security systems (ESS), locking devices, protective lighting and to ensure integrity of site and building perimeter boundaries. Report all discrepancies to the COR and FSSC Security Manager within 48 hours of discovery of the discrepancy. Inspect and maintain fence lines at all sites, except Naval Support Activity Hampton Roads, Northwest Annex (NSA HR NW Annex), in accordance with OPNAVINST 5530.14 (series). The location of the fences is identified on the Facility Drawings maintained in the Technical Library.
- 7.2.2 Electronic Security System (ESS). The ESS at each site is site specific and may consist of intrusion alarm system, closed circuit TV monitoring system (to include thermal cameras), card readers, and cipher lock key pads. The systems provide continuous security 24 hours a day, 7 days a week. When there is a failure of any security system component or alarm on the system, the Contractor shall immediately notify the COR and FSSC Security Manager and provide a brief description of the problem and possible fault isolation. The FSSC Security Manager will immediately report the same to the ESS maintenance Contractor for immediate service repair.
- 7.2.3 Implement a Key Control Program in accordance with OPNAVINST 5530.14 (series) for all ROTH sites for ensuring that all keys and locks issued to the Contractor by the Government are controlled and accounted for. All locks for lost keys shall be replaced or re-keyed. No keys issued by the Government shall be duplicated by the Contractor without approval of the COR. Checkout procedures shall be

employed by the Contractor to the maximum extent in lieu of permanent issuance of keys to personnel. This program shall be incorporated into the Security Program Plan.

- 7.2.4 Ensure that no photographic, video or audio equipment is used without authorization by the FSSC Director or FSSC Security Manager.
- 7.2.5 Warning and Security Signs. Contractor shall ensure warning signs are attached, clear of obstructions, legible, and integrity is not compromised. Contractor shall coordinate with FSSC Security and Facility Manager prior to replacing all damage or missing signs to ensure proper replacements in accordance with Government specification requirements.
- 7.3 Communications Security (COMSEC) Requirements
 - 7.3.1 Establish a COMSEC account in accordance with National Security Agency (NSA), Industrial COMSEC Manual Section III. Contractor personnel managing the Contractor's COMSEC account shall have the security clearance commensurate with the highest level of COMSEC keying material and/or COMSEC material in accordance with the National Industrial Program Operating Manual (NISPOM), Chapter 2, and Section 2. This classification level is defined in the DD Form 254.
 - 7.3.2 Report all COMSEC incidents to the FSSC Security Manager, and NSA as outlined in the NSA Industrial COMSEC manual, section XVI, and the NISPOM chapter 1, section III. Report all COMSEC incidents and Practices Dangerous to Security (PDS) to the FSSC Director, Executive Director, and Security Manager, the Controlling Authority, and Contracting Officer's Representative (COR). Conduct Communications Material System (CMS) maintenance and training in accordance with OPNAVINST 2221.5 (series) and OPNAVINST 2221.3 (series). Provide at least one certified COMSEC technician available for the installation/maintenance/operation of CRYPTO equipment and other COMSEC custodian matters. Cryptographic security guidance is provided in the National Security Agent/Central Security Service (NSA/CSS) Policy Manual dated (Aug 2005 or current).
 - 7.3.3 Load/reload the ROTHRR Global Positioning System (GPS) Receiver Application Module (GB-GRAM)/ Selective Availability Anti-Spoofing Module (SAASM) equipment per operational requirements as directed by the COR and comply with the ROTHRR GPS SAASM Program Protection Implementation Plan (PPIP) for the Puerto Rico sites provided in Section J - Attachment 4. All Keymat for the SAASMs will be maintained at the Chesapeake site. Keymat load will normally be updated once per year at all radar sites by the Contractor. One trip per year to Texas and Puerto Rico is estimated for the Contractor CMS Custodian to load new Keymat. If the crypto load becomes corrupted (examples: lengthy power outage, equipment failure etc.) the CMS custodian will be required to travel to the affected site to load the Keymat into the SAASM at the direction of the COR.
 - 7.3.4 The Contractor shall remain knowledgeable of the Navy Regional Enterprise Messaging System (NREMS) and follow on message processing systems to include, but not limited to Command and Control Information Exchange (C2OIX) to perform the tasks identified herein. Continuously monitor and view "profiled" unclassified and classified messages forwarded to the Watch Supervisor for viewing via the message processing system during the hours of 1600 – 0800, Monday – Friday, on weekends, and on Federal holidays. Notify the FSSC Operations Officer or Cyber Security (CS) Division within one hour after receiving and viewing any 'high priority' action messages. Ensure all personnel working in the Communications Center have the appropriate security clearance. For clarification the FSSC CS Division is responsible for ensuring final message formatting for messages being transmitted (outgoing messages) by the Command, and proper and timely delivery of all unclassified/classified messages coming into the Command (incoming messages). The FSSC CS Division will also be responsible for maintaining the message system profiler.
- 7.4 Cyber Security Requirements

- 7.4.1 Cyber Security Certifications and Qualifications. Contractor personnel performing Cyber Security (CS) functions shall be appropriately certified in accordance with requirements of DoD Manual 8140.03, Cyberspace Workforce Qualification and Management Program (15 Feb 2023 or latest revision). Contracted support personnel assigned to perform cyberspace work roles must meet qualification standards established in supporting issuances, in addition to other existing workforce qualification and training requirements assigned to position requirements (e.g., acquisition, intelligence, communications) as applied in subpart 239.71 of the Defense Federal Acquisition Regulation Supplement (Reference (c)) for contracted support designated to perform cyberspace workforce work roles. The ROTHRO O&M EAM/MMIS Database Administrator (DBA) shall be certified in accordance with DoD Manual 8140.03. The Contractor shall provide copies of the aforementioned documents to the FSSC COR, the FSSC Operations Officer, and the FSSC Cyber Security (CS) Division Chief. The Cyber IT/CSWF certification is due no later than 6 months following the contract start date. The Contractor shall perform CS requirements on all Government furnished information systems which the O&M Contractor shall operate and maintain IAW DoD Instruction 8510.01, Risk Management Framework (RMF) for DoD Systems, 19 July 2022. At a minimum, these systems include the ROTHRO Core Processor (RCP) server, all ROTHRO Global Command and Control System Joint (GCCS-J) workstations, the ROTHRO Server01, DODIN Authorized Products List (APL) Intrusion Detection System (IDS), DODIN (DOD Information Network) APL firewall system, Crypto Equipment, and DODIN APL Cisco routers and network switches, and CISCO Firepower 4110 sensors. All systems are located inside Building 344 at the Chesapeake, VA site.
- 7.4.2 Security and Accreditation. Ensure security of the FSSC SIPRNET. Assist the FSSC C5 Division with the RMF packages to be granted RMF A&A of the FSSC SIPRNET system by providing FSSC SIPRNET related hardware and software material (e.g. configurations, applications, routers/net switches information). The Contractor must supply the FSSC ISSM with all RMF and CORA required deliverables including, but not limited to SCAP scans with benchmarks, audit logs, STIGS checklists, local standard operating procedures and fully credentialed ACAS scans uploaded into VRAM in accordance with Navy Scan Policy requirements, and other systems or requirements as directed.
- 7.4.3 Compliance with National Institute of Standards and Technology (NIST). The Contractor shall develop, document, configuration manage, and maintain a system compliant with the appropriate National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53A assessment procedures and the NIST SP 800-53 Security and Privacy Controls for Federal ISs and Organizations to obtain a Risk Management Framework (RMF) authorization IAW DoDI 8510.01. The Contractor shall practice software assurance including static source code analysis on organic and third party open source software to mitigate software vulnerabilities during development and throughout the Contractor's Information Assurance Vulnerability Management (IAVM) process to maintain the certification.
- 7.4.4 Information Assurance Vulnerability Management (IAVM) Program. The Contractor shall implement an IAVM program. The DoD IAVM program provides electronic security protections against known threats and vulnerabilities. The IAVM program requires the registration of system assets, which then allows for the timely dissemination of critical vulnerability information. It also assists in the documentation and tracking of compliance, providing increased electronic security to relevant systems. As part of the program, the Contractor shall provide a primary and secondary point of contact in VRAM and to the Systems Information Assurance Vulnerability Alert (IAVA) Monitor. Upon receipt of a vulnerability message, the point of contact shall provide an acknowledgment of receipt via VRAM. The Contractor shall thoroughly test all mitigations for the vulnerability, and upon applying the mitigation to the system, report compliance in VRAM.
- 7.4.5 Information Assurance Vulnerability Management (IAVM) Reporting. The Contractor will maintain all IAVM reporting in the DON Vulnerability Remediation Asset Manager (VRAM) system. The Contractor shall assist the Government by preparing RMF documentation and perform auditing and vulnerability testing necessary to assess and authorize the system IAW RMF.
- 7.4.6 Cyber Security Best Practices. The Contractor shall maintain any development environments IAW CS best practices and operational requirements. During product development, the Contractor shall ensure that all

CS mitigation strategies have been applied to the development environment prior to any Government data being loaded onto any assets or software for testing or delivery. CS mitigation strategies include security updates, service packs, and changes to SOPs as physical and cyber vulnerabilities are detected. Operating system, routers, servers, development platforms, and the application being delivered to the Government shall comply with all known applicable DoD Computer Emergency Response Team (DoD-CERT) Alert, Bulletin, and Technical Advisory Notices published during the past 36 months.

- 7.4.7 Cyber Security Passwords. The Contractor shall ensure that all factory-set or default firmware passwords are changed prior to delivery of the System. Each password shall be a minimum length of 15 characters and consists of a mix of upper case letters, lower case letters, numbers, and special characters, including at least two of each. Each password shall be protected such that they are not embedded in access scripts or stored on function keys. The architecture shall be designed to enable future growth with reasonable additional cost so that with Government concurrence, the password complexity can be modified as necessary. The Government understands that any additional work resulting from a changed requirement must have sufficient contract resourcing.
- 7.4.8 Ports, Protocols and Services. The Contractor shall implement ports, protocols, and services IAW DODI 8551.1, Ports, Protocols, and Services Management, 31 May 2023 and uninstall or disable ports, protocols, applications and services which are not used. The Contractor shall comply with all current DoD and DISA standards and requirements for acceptable Ports, Protocols, and Services. Any request for exception to these requirements must be made through the ISSM to the AO. The Contractor shall generate a list of ports, protocols, and services that are in use.
- 7.4.9 DISA Security Technical Implementation Guides (STIGs), Security Checklists, and Security Requirements Guides (SRGs). The Contractor shall evaluate ALL currently available DISA Security Technical Implementation Guides (STIGs), Security Checklists, and Security Requirements Guides (SRGs) (available at <https://cyber.mil/>) for system applicability. The Contractor shall provide a list of those STIGs deemed applicable along with justification for those determined to be Not Applicable for Government concurrence. The Contractor shall implement the Government-approved list of STIGs to the extent possible without adversely affecting system development or operational performance
- 7.4.10 Prohibition of Electronic Devices. The Contractor shall ensure that no personnel operate any cellular phones, Blackberries, personal digital assistants (PDAs), pagers, beepers, RF or Infrared (IR), wireless technologies/devices in an area where classified information is discussed, electronically stored, processed, or transmitted.
- 7.5 Deliverables:
- ROTHr Security Plan For COMSEC And Cyber Security (Ref PWS 7.1). CDRL S001.
 - System Security Plan (Ref PWS 7.1). CDRL S002.
 - Network Security Plan (Ref PWS 7.1). CDRL S003.
 - Cyber Security Workforce Certifications (Ref PWS 7.4.1). CDRL S004.
 - Credentialed ACAS scans uploaded into VRAM as required (Ref PWS 7.4) CDRL S005.
 - System Specific Standard Operating Procedures (Ref PWS 7.4.2) CDRL S006.
 - System Audit Logs (Ref PWS 7.3.1) CDRL S007.
 - List of Ports, Protocols, and Services In Use (Ref PWS 7.4.8) S008.
 - Quarterly .cckl Files For Applicable STIGs (Ref PWS 7.4.9) S009.

8.0 Property & Logistics

- 8.1 The Government will transfer to the Contractor, Government Furnished Property (GFP) identified on the ROTHr Property CD-ROM/DVD or from the Government provide program EAM Maintenance Management Information System (EAM/MMIS). The ROTHr GFP includes, but is not limited to the Operations Control Center (OCC) system; all Transmit and Receive systems and subsystems; air

conditioning, mechanical, electrical, fire suppression systems and subsystems; radar system computers, monitors, hardware, software, and similar items; system parts, components, equipment, test equipment, spares, assemblies required to maintain, repair, and upgrade the radar systems including, but not limited to, power amplifiers, power supplies, synthesizers, microcircuits, resistors, fuses, connectors, switches, modules, circuit card assemblies, ground screen, radials, cable trays, wire, cables, and similar type items; non-commercial special tools, test equipment, analyzers; ground screen, radials, cable trays, wire, cables, computers, monitors, furniture and similar type items. All GFP identified on the ROTH CD-ROM/DVD or EAM/MMIS inventory Excel inventory spreadsheet will be identified by the FAR Part 45 Property classifications, location (ROTHR storerooms), and type (Support Equipment, System Equipment, etc.).

- 8.2 Per FAR 45.102(a) Contractors are ordinarily required to furnish all property necessary to perform Government Contracts. The ROTH GFP listed on the ROTH CD-ROM/DVD EAM/MMIS inventory Excel spreadsheet will include non-system GFP that will be transferred to the Contractor. Non-system GFP shall be repaired/replaced as necessary by the Contractor. The replacement of non-system GFP shall be approved for purchase by the FSSC Contracting Officer Representative (COR) before ordering. The Contractor shall report these Contractor acquired purchases per CDRL P002 Contractor Acquired Property (CAP) report. Examples of non-system GFP are listed below:
- a. Non-radar system computers, hardware, software, interconnection information technology devices and services, and similar items not directly integral to operating the radar systems.
 - b. Furniture, workstations, lighting, chairs, storage/filing cabinets, shelving, commercial telephones, cell phones, copiers, scanners, fax machines, and similar items. OCC chairs will be replaced by the Government due to their 24/7 nature and use upon notice and request by the Contractor.
 - c. Commercially available: hand tools, large and small power tools & equipment, pressure washers, spray equipment, toolboxes, storage cabinets, hazmat cabinets, ladders, hand trucks, safety equipment/products, related parts, and similar items.
 - d. Appliances including coffee makers, toasters, fans, portable room heaters & humidifiers, vacuum cleaners, floor machines, related parts, and similar items.
 - e. Appliances including microwaves, refrigerators, stove tops, etc.
 - f. Vehicles, tractors, mowers, forklifts, man-lifts, incidental maintenance and repair items, related parts, and similar items. Special Purpose Vehicles (TRAXS, Gators, ATV, etc.), Heavy Grounds Maintenance Equipment, Heavy (Tractors, Trailers, Attachments, etc.), Light Grounds Maintenance Equipment, Light (Blowers, Weed Eaters, push and riding mowers, etc.)
- 8.3 Property Acquisition Limit. The Contractor shall obtain written concurrence from the COR prior to the acquisition of new material/property purchases costing \$25,000 or more; replacement and/or repair material/property purchases costing \$25,000 or more, which are authorized by the Government relative to System or On-Board Allowance (OBA). The Contractor shall report these Contractor acquired purchases per CDRL P002
- 8.4 Property Management Program. Establish and maintain a Property Management Program for all Government property in the Contractor's possession in accordance with applicable acquisition regulation (FAR, DFAR, NMCARS), DoD policy/guidance, and this PWS. The Contractor may employ customary practices, voluntary consensus standards, or industry-leading practices and standards that provide effective and efficient Government Property Management.
- 8.5 Department of Defense (DoD) Property Requirements

- a. DoD property requirements are separate and distinct from property requirements dictated by acquisition regulations. The Contractor's Property Management Program shall comply with all DoD requirements for accountability and management of personal property including "DoD Instruction 4161.02 Accountability and Management of Government Contract Property" and other current DoD direction/policies/guidance. The Contractor will support the FSSC Government Property Administrator (GPA) as necessary to ensure full compliance with these requirements.
- b. The Contractor shall communicate to the FSSC GPA on all matters relating to Government Property issues.
- c. The Contractor shall obtain written approval from the FSSC GPA prior to initiating disposition at all sites.
- d. Prior to any reutilization or cannibalization actions, the Contractor shall obtain written approval from the FSSC Contracting Officer Representative.
- e. The Contractor shall provide a property management plan within 45 calendar days following the contract start date and 30 days after any revisions thereafter. Copies of all other property related information, documents, and/or correspondence are due immediately following creation or distribution.
- f. The Contractor shall provide an itemized report (monthly) to the FSSC COR of all Contractor Acquired Property (CAP), including description, nomenclature, manufacturer, cost, purchases order number, serial number, model/part number (both Contractor and Vendor), TDL number (if applicable).
- g. The Contractor shall create and maintain records for all ROTH Government Property while maintaining 100% accountability for all property of any value, including Government Provided Property (GPP), Government Furnished Property (GFP) and Contractor Acquired Property (CAP).
- h. The Contractor shall provide a property inventory schedule for all Government property in its possession to the FSSC GPA.

8.6 Logistics Support

The Contractor shall provide all logistical support necessary to ensure that all sites have the material, parts, equipment, tools, supplies, products, and all other items necessary for compliance with contract requirements and for continuous operation of the radar systems and facilities. Provide logistical support including inventory, packaging, shipping, transportation, delivery, receipt, staging, disposal/disposition and storage of property intended for future system changes, upgrades, enhancements, field change kits (FCKs), and alterations equivalent to repair (AER).

Provide life-cycle support for ROTH system equipment testing, evaluation, and repair of prototype parts/equipment and/or excess parts/equipment maintained in storage. Perform form, fit, and function evaluation and analysis to determine suitability of alternate or substitute parts/equipment. Review upgrades and Engineering Change Proposals (ECPs) provided by FSSC. Perform ROTH asset/equipment performance 'verification' and 'validation' processes and report findings. Evaluate proposed system changes to determine system performance.

8.6.1 Inventory. All inventories conducted will be documented in the ROTH Government provided program EAM/Maintenance Management Information System (EAM/MMIS) Database to ensure the last inventory date field is populated with the inventory completion date, to facilitate any necessary inventory audits.

- a. All inventories scheduled and completed will be submitted to the FSSC GPA no later than five working days after the scheduled inventory completion date. If a scheduled inventory is not completed as scheduled, the Contractor shall submit justification why the inventory was not completed and request an alternative completion date.

- b. The Contractor will conduct an annual Wall-to-Wall 100% inventory (Book to Floor / Floor to Book validation) for each site at the beginning of each option year. The annual wall to-wall inventory will be conducted over a thirty-day period and the results will be reported to FSSC GPA.
- 8.6.2. Packaging. In accordance ASTM_D3951 Standard Practice for Commercial Packaging and contents within this contract, the Contractor, independently and not as an agent of the Government, shall provide all necessary materials, labor, equipment, and facilities, except as specified herein to be furnished by the Government, and shall do all that which is necessary or incident to the satisfactory and timely performance of packaging to meet Government required delivery dates and mission requirements. The Government will provide sufficient time and notification for packaging requirement to the Contractor to meet required delivery schedules or mission requirements.
- 8.6.3. Shipping/Transportation. The Contractor shall be required to provide, operate and maintain transportation equipment and material handling equipment as part of the PWS. This may consist of, but not be limited to; forklifts to 10,000LB Capacity, pallet jacks, and hand trucks. The Contractor shall ensure employees designated to operate this equipment have and maintain appropriate licenses and or qualification and training.
- 8.6.4. Delivery. Conduct material distribution to coordinate delivery of all Government procured assets and materials to the location desired, utilizing Direct Vendor Delivery (DVD), or third-party logistics distribution provider, in accordance with policies.
- 8.6.5. Receipt. Conduct Warehouse operations to support material and assets maintained by EAM/MMIS, to include receipt, inspection, acceptance, storage, in-stores care/preventative maintenance, and Packaging, Packing and Preservation (PP&P) for shipment in accordance with DoD and ASTM D3951 practices. Receipts are required to be completed, by the Contractor, and are maintained in the EAM/MMIS Database. Receipts shall have the quantity circled, each document signed and dated. The Contractor shall establish a filing system of receipts to enhance an effective and efficient audit.
- 8.6.6. Staging. The Contractor shall stage material in the most efficient means to support rapid deployment and shipment to meet mission requirements.
- 8.6.7. Disposal. All GFP for disposal is transferred to FSSC within EAM/MMIS. Excess property, material and equipment shall be kept to a minimum to help maintain needed Warehouse space and to help expedite the completion of required inventory. The Contractor will conduct a review of excess property to determine a requirement or future need of the property. The Contractor will deliver an Excess Material List from EAM/MMIS quarterly (CDRL P005) and submit to the FSSC GPA for disposition authorization and disposal of property instructions. All material that is disposed of will be documented in EAM/MMIS and copy of the documents will be provided to the FSSC GPA.
- 8.7. Item Unique Identification (IUID). Item Unique Identification of Government Property is applicable to this contract. The Contractor shall provide identification of GFP in accordance with DoD Instruction 8320.04 Item Unique Identification (IUID) Standards for Tangible Personal Property. All GFP shall be recorded in the EAM/MMIS Database.
- 8.8. Transfer of Government Property. Transfer of all Government property, to/from the O&M contract will be coordinated by the FSSC GPA. All ROTH property transfers shall be documented by a DD Form 1149 (Requisition and Invoice/Shipping Document), or other approved form as authorized by the FSSC GPA. The DD Form 1149 will be signed by the FSSC GPA and the Contractor's designated representative. The Contractor shall ensure all property data for GFP, CAP, additions/deletions of property are maintained, current and up to date in the EAM/ MMIS Database. The Contractor shall update and provide quarterly to the FSSC GPA and the FSSC COR an Excel spreadsheet form EAM/MMIS listing all GFP/CAP, referenced in PWS Paragraph 8.10. All GFP transactions (deletions and additions) will be updated on the Procurement Integrated Enterprise Environment (PIEE) website and the GFP module.

8.9 Inventory Transition. To ensure a smooth phase-out to the next service provider and to prevent possible decreases in productivity or service quality, the Contractor will use the Government provided program EAM/MMIS to conduct a 60-calendar day inventory transition prior to Contract conclusion date. During this period, the Contractor will conduct a wall-to-wall inventory jointly with Government personnel and representatives of the incoming Contractor. The Contractor will use the Government provided program EAM/MMIS to turn over all historical records including vendor lists, maintenance records, inventory records, all archived data, all pending requisition data, and all Government-owned Intellectual Property (IP) and information. The Contractor will coordinate with the FSSC GPA to provide the next service provider with procedures for conducting Government business and conduct work site orientation visits. During the Inventory Phase Out period, the Contractor shall provide required training on existing logistics processes and conduct material, equipment, and tools transfers.

8.10 Deliverables:

- Property Management Plan (Ref PWS 8.5.e). CDRL P001.
- CAP / Cost Reimbursable Items Purchased Report (Ref PWS 8.5.f). CDRL P002.
- Loss of Government Property Report (Ref PWS 8.5.e). CDRL P003.
- Government Furnished Property Listing. CDRL P004.
- Excess Material List from EAM/MMIS (Ref PWS 8.6.7). CDRL P005.

8.11 Operating Constraints:

- Within 45 calendar days after the contract start date and prior to implementation, the Contractor shall provide the FSSC GPA Property Management Plan detailing all processes, systems, and procedures including any changes.
- All Contractor-owned property shall be clearly identified and labeled as Contractor-owned so as to avoid any confusion between what Government Property and Contractor-owned property. Purchase records for Contractor-owned property shall be maintained and readily available for Government review at the specific sites where the property is used.

9.0 Technical Library & Software

9.1 Technical Library

FSSC will turnover Master Technical Library at the Virginia Receive Site, Building 344, and Technical Libraries located at each radar site, consisting of all documentation and data used in or relevant to performance of this contract. The Master Technical Library and all site libraries are the property of FSSC. Effective on the contract performance start date the Contractor shall be responsible to maintain all libraries as specified herein. The Master Technical Library includes the following items:

- ROTH Type II Drawings (MIL-DTL-31000 Level 2 Engineering Data Package drawings).
- Intermediate Maintenance Instructions.
- Technical files, records.
- System test procedures of all installed components and systems.
- Commercial Off-the-Shelf technical data/manuals and spare parts listings.
- System Operator manuals, instructions, procedures, guidelines, checklists.
- Operating manuals, instructions, procedures, guidelines, checklists.
- Current ROTH operating specifications.
- Facility technical data, construction/as-built drawings, manuals, spare parts lists.
- Facility equipment data, operating/maintenance/repair data, warranty, spare parts lists.
- System manufacturer's spare parts lists.
- Applicable FSSC publications and regulations.

- All Contractor prepared manuals, instructions, procedures, guidelines, checklists (for all sites).
 - Applicable documents required in the PWS.
 - All documentation required to operate or maintain the system and/or site.
 - All other documentation, records, information, and or data generated by the Contractor during performance of this contract.
 - Master copies of all system and support software, licenses, warranties, and instructions.
 - All documentation and data used at the radar sites.
 - Training Package (all information/data used for training).
 - Licenses, permits, clearances.
- a. The Contractor shall maintain a Technical Library at the other Transmit and Receive sites consisting of Technical Manuals (U.S. Navy and commercial), MIL-DTL-31000 Level 2 Engineering Data Package drawings, installation data, operating procedures, and all other system, facility or equipment data pertinent to the specific radar site.
- b. The Contractor shall maintain a comprehensive and accurate index in the EAM/MMIS database of all Master and Site Library information, data, and software, by location including all manuals, operation/maintenance/repair procedures, and all other items maintained in the Master and site libraries. The index shall facilitate user-friendly search and retrieval of desired information. Provide FSSC Maintenance Management Department and FSSC Life Cycle Management (LCM) a hard-copy of the comprehensive index. Due quarterly CDRL Q004.
- c. The Contractor shall maintain Standard Operating Procedures (SOPs), Local Operating Procedures (LOPs), and other formal or informal operating procedures used by Contractor personnel in performance of the contract. Create and/or update procedures as circumstances dictate. Provide a list of all new, updated or revised manuals, operating procedures, or other library items, including location, to FSSC Maintenance Management Department. Due quarterly CDRL Q005.
- d. All changes to technical data (publications, manuals, Intermediate Maintenance Instructions (IMIs), etc.) shall be recorded on the Change Page. Report all technical manual deficiencies to FSSC Life Cycle Management (LCM) Department using the Technical Manual Deficiency & Evaluation Report (TMDER). Due within 10 calendar days following identification of the deficiency. CDRL L003.
- e. The Contractor shall maintain a current and complete Training Package covering OCC, RX, TX and Site Support Personnel, and any other training materials utilized in support of this contract. At a minimum, the Training Package shall include: an index of all contents, instructor guides (or equivalent), job qualification requirements (JQRs), training materials (documents, manuals, procedures, handouts, slides, etc.) all training material or information under development. Provide FSSC QA an index for the training package that facilitates user-friendly search and retrieval of desired information. Due quarterly CDRL Q006.
- f. The Contractor shall digitize, maintain and deliver all current technical library items (Master and each Radar Site) to FSSC Maintenance Management Department and FSSC Life Cycle Management (LCM) Department. Due quarterly CDRL Q007.
- g. The Contractor shall support the Configuration Management (CM) program commensurate with compliance of the applicable Government Configuration Management Plan (CMP) requirements, the ULSS and other contract requirements. The Contractor shall review and provide comments for Engineering Change Proposals (ECPs), participate in the Configuration Control Review Board and ECP implementation/Transition Decision efforts. The Contractor shall provide hard copy of complete documentation of VALIDATED current generation ROTH System Configuration (AKA "FAMILY TREE") in Type II Drawing format semi-annually and 60 days prior to contract expiration. CDRL L004.

- 9.2 Software. All software used for the performance of the O&M contract requirements including software developed for system maintenance processes shall be licensed to FSSC. All Commercial Off The Shelf (COTS) software purchased for FSSC must be approved in DADMS and support agreements must be maintained. The Contractor shall provide a description, inventory, and license for all software within 30 calendar days following the end of the contract base performance period and each subsequent option period. The Contractor shall turn over all software to the Government at the end of complete contract performance. All software records/documentation shall be maintained in the Master Technical Library. This requirement excludes any Contractor-provided software used solely for non-O&M performance, such as for Contractor internal requirements, and for which the Contractor did not receive Government reimbursement for the software purchase. CDRL Q011.
- 9.3 Deliverables:
- Comprehensive Index of Master and Site Libraries (Ref PWS 9.1.b). CDRL Q004.
 - List of New, Updated or Revised Manuals, Operating Procedures, or Other Library Items. CDRL Q005.
 - Technical Manual Deficiency & Evaluation Report (Ref PWS 9.1.d). CDRL L003.
 - Index of Training Package (Ref PWS 9.1.e). CDRL Q006.
 - Digitize all library items on DVD (Ref PWS 9.1.f). CDRL Q007.
 - Copy of Software and License for Software Utilized in Performance of Maintenance Functions, i.e. Automated Test Procedures/Software routines (Ref PWS 9.2). CDRL Q011.
 - ROTH System Configuration Type II Drawings hard copy (Large Format) and DVD Provide a digital (CD/DVD) current listing by searchable part number of components. Listing should consist of manufacturers part number, any Contractor assigned part numbers, assembly, next highest and lowest assembly. CDRL L004.

10.0 Training, Qualifications, Certifications

- 10.1 Contractor Training. Contractor personnel shall obtain all training required or otherwise necessary to ensure full compliance with the contract requirements. Document and record all training in the EAM/MMIS Database within five (5) business days of completion of such training.
- 10.2 Government Training. Complete all training courses mandated for Contractor personnel by the U.S. Government, DOD, Navy, or FSSC. Training requirements cover a diversified range of topics including, Safety, Security, Environmental, Information Technology and Cyber Security, Ethics, Privacy Act, Human Rights, etc.
- 10.3 Training Curriculum. Provide FSSC QA with electronic copies of all lesson plans, curriculum, class outlines, training aids, manuals, and any other material pertaining to the training course immediately after a training course is prepared, updated, or as requested by FSSC. Maintain copies of all training course material in the ROTH Master Technical Library.
- 10.4 Training Report. Provide FSSC QA a report detailing all contract related training covering all radar sites. Training reports are due within 15 working days following each calendar month. The report shall include the following minimum information:
- Date of training.
 - Type of training including EAM/MMIS "Event ID" (i.e. Recurrent, Qualification, Equipment, Operator, Safety, etc.).
 - Training topic.
 - Training syllabus and material.
 - Length of training.
 - Names of personnel with required certifications expiring within sixty calendar days.
 - Names of personnel with required training due within thirty calendar days.

- Site & group receiving training.
- Names of all personnel receiving the training.
- Name(s) and organization/agency conducting the training.
- Note any curriculum development or updates to the ROTH Training Package.
- The report shall state “no training conducted” when applicable.

10.5 Deliverables:

- Copies of Training Course Material (various) (Ref PWS 10.3). CDRL Q008.
- Training Report (Ref PWS 10.4). CDRL Q009

11.0 Licenses, Permits, Clearances

- a. The Contractor shall obtain all required licenses, permits, clearances, etc. required or necessary for complying with any Federal, State, municipal, and the Commonwealth of Puerto Rico laws, codes, and regulations applicable to the performance of the contract with the exception of those permits that are inherently Governmental, e.g., Air Emissions Permits, and Hazardous Waste Generator Permit.
- b. The Contractor shall maintain copies of all licenses, permits, clearances in the Master Technical Library.

12.0 Management Support

12.1 Meetings and Working Groups. The Contractor’s Program Manager shall participate in or lead various meetings and working groups, the majority of which will be conducted at the ROTH Chesapeake, Virginia site. The Contractor shall provide various routine reports, feedback, and/or submittals resulting from these meetings or working groups, or as requested by FSSC. Typical duration of these meetings is between 1 to 2 hours per occurrence. Following is a typical list of meetings/working groups, frequency, and description:

- a. FSSC Director’s Weekly Brief: Contractor shall present a weekly brief of the Operations and Maintenance Summary Report to the Government. Contents of the brief will be IAW PWS paragraph 3.1.3.d. The brief shall be a Power Point presentation to the FSSC Director, and/or designated representatives, typically on the first workday of the week in Building 310 or Building 344 Conference Room, as directed. Contractor shall forward a copy of the brief to the FSSC Operations Officer, Assistance Operations Officer and Maintenance Management Department Head and Contracting Officer’s Representative (COR) no later than thirty minutes prior to presentation. Contractor shall provide answers to Government questions, all issues requiring further review or investigation, and any operational events not covered in the brief to the FSSC Operations Officer, no later than close of business on the third workday following the presentation.
- b. ROTH O&M Contract Performance Review (Monthly): Contractor shall participate in monthly Contract Performance Reviews.
- c. Discrepancy Working Group (Monthly): Contractor shall participate in a monthly review of various discrepancies, corrective actions, and status.
- d. Scheduled Downtime Meeting (Monthly): Contractor shall participate in a monthly review of planned ROTH system downtime.
- e. Maintenance Improvement Working Group (MIWG) (Monthly): Contractor shall participate in a monthly review focusing on identifying areas for maintenance improvement in order to improve ROTH data and track quality with O&M/Sustainment techniques.

- f. Operations Improvement Working Group (OIWG) (Monthly): Contractor shall participate in monthly reviews to develop ROTH Operations improvement strategies and resolve ongoing ROTH Operations issues.
- g. Logistics Working Group (Quarterly): Contractor shall participate in a quarterly review of Logistics and EAM/MMIS related issues chaired by FSSC Maintenance Management Department.
- h. System Trouble Report Working Group (STRWG) (Quarterly): Contractor shall participate in a quarterly review of ROTH system trouble issues and investigation requests and are coincident with the System Engineering Integrated Process Team (SEIPT) meetings and chaired by FSSC Life Cycle Management (LCM) Department.
- i. Configuration Control Review Board (CCRB) (Quarterly): Contractor shall participate in a quarterly review of ROTH engineering changes chaired by FSSC Life Cycle Management (LCM) Department.
- j. Systems Engineering Integrated Process Team (SEIPT) (Semi-Annually or as required): Contractor shall participate in a semi-annual review of ROTH systems engineering issues chaired by FSSC Life Cycle Management (LCM) Department and as required System Engineering Working Group meetings
- k. Readiness Integrated Process Team (Semi-Annually): Contractor shall participate in a semi-annual review of ROTH Operational and Maintenance initiatives designed to improve ROTH performance co-chaired by FSSC Operations and Maintenance Management Departments.
- l. Failure Review Board (FRB) (As Required): Contractor shall participate in a review of ROTH system failures, trends, and end-of-life issues chaired by FSSC Life Cycle Management (LCM) Department.
- m. Selective Subsystem Repair/Replacement Working Group (S2R2WG) (As required): Contractor shall participate in a review of subsystem repair and replacement and chaired by FSSC Life Cycle Management (LCM) Department.
- n. Sustainment Working Group (Monthly): Contractor shall participate in SWG meetings chaired by FSSC Life Cycle Management (LCM) Department.
- o. Consolidated Counter-Drug Data Base (CCDB) Meetings (Quarterly): Contractor shall participate in a quarterly review of counter drug events.
- p. Enhancement Integrated Process Team (Semi-Annually): Contractor shall participate in a quarterly review of perspective technology upgrades to the ROTH system chaired by FSSC Life Cycle Management (LCM) Department.
- q. JIATF-South J3 Working Group Meeting (Quarterly): Contractor shall participate in a quarterly review of ROTH operations with JIATF-South J3.
- r. JIATF-South J3 Training Meeting (Quarterly): Contractor shall participate in a quarterly training meeting with JIATF-South J3.
- s. U.S./Australia Collaboration Meeting (Annually): Contractor shall participate in operations and training requirements supporting the USA/AUS OTHR collaboration agreement. This requirement is in accordance with the stated objectives of High Frequency Radar Science and Technologies Project Arrangement under the Memorandum of Understanding (MOU) between the Department of Defense of the United States of America and the Australia Department of Defense

concerning Cooperation on Maritime Research, Development, Test, Evaluation and Prototyping Projects.

- t. ROTHHR Briefs and Site Tours (As required): Contractor shall participate in conducting briefs and tours. Historically, this has been required 1-2 times per month.
- u. Other Meetings and Working Groups (As required): Contractor shall participate in meetings and working groups, as required.
- v. FSSC Director's O&M Program Review): The Contractor shall present an O&M Program Review at the FSSC Director's Review, covering all aspects of contract performance to include significant accomplishments and program effectiveness. The Review shall be led by the Contractor's Program Manager, with Contractor Subject Matter Experts (SMEs) presenting their areas of responsibility. The presentation will be in MS Power Point format. The audience will typically include the FSSC Director, Executive Director, FSSC Department Heads, COR, other FSSC personnel, and other Contractors and parties supporting the ROTHHR program. E-mail the COR an electronic copy of the FSSC Director's O&M Program Review in MS Power Point no later than 5 business days prior to the presentation. The O&M Program Review shall address the following minimum requirements:
 - (1) Summary of significant Operations and Maintenance (O&M) accomplishments since the previous Director's O&M Program Review and a preview of the tasks, projects and issues/concerns for the previous period. Separately address each major area of performance and provide current status, events, observations, findings, corrective action, issues and/or concerns. Provide a current status on all Work Orders opened for more than 90 calendar days for which the O&M Contractor is responsible to complete. Additional information may be required as the Operational environment changes. The Contractor will address the following major areas of performance including all program risks:
 - a) Radar Operations, to include cased events with or without seizures; events resulting in seizures; regional intelligence information that affects ROTHHR; system degradations, severe weather or ionospheric impact upon radar performance that affect JIATF-South tasking.
 - b) Radar Systems Maintenance & Repair, to include failure data compilation and analysis for each system, equipment, parts; critical obsolescence issues and mitigation techniques; major system outages cause and duration; any new and/or improved maintenance practices; identified anomalies and their impact on system performance; maintenance functions or repairs that may take equipment down; ROTHHR Reliability Maintainability & Availability (RM&A) data for each system. The Contractor shall include recommendations for improvement and any corrective actions taken.
 - c) Facilities Maintenance & Repair, to include significant facilities and grounds projects at each site, status of licenses and permits and similar type information.
 - d) Quality Control, to include a review effectiveness of Quality Control (QC) program and proactive action taken; list discrepancies observed and corrective action taken.
 - e) Property & Logistics, to include current Government Furnished Property (GFP) inventory, stocking levels; Contractor Acquired Property (CAP) purchased; and inventory results.

- f) Environmental, Health & Safety (EH&S): Separately address each system (VA, TX, and PR) and review the effectiveness of EH&S Program and proactive action taken; list number and type of inspections performed, discrepancies observed and corrective action taken.
- g) Security: Review effectiveness of Physical Security Program, Information Security Program, and Cyber Security Program, number of Visitors by site and classification level; and all other related activity and effort; review deliverables; and similar type information.
- h) Technical Library & Software: Review index of Master Library items, technical data, software, operating procedures, recent technical changes/updates; progress on digitizing all library items; review deliverables; and similar type information.
- i) Training, Qualifications, & Certifications: Review all training, qualifications and certifications (completed, current, and upcoming); review deliverables and similar type information.
- j) Management Support: Review current Organizational diagram, staffing, and any changes in personnel; review reimbursable costs incurred to date for all Cost Reimbursable requirements (example: Travel and Material, Systems Support, Other Direct Costs, etc.); review all Technical Direction Letters (TDLs) (completed/current), projected completion dates.

12.2 Reports. The Contractor shall provide the following reports:

- a. ROTHRO O&M Management Report. Provide a detailed and comprehensive monthly report covering all aspects of contract performance. Provide a summary of significant Operations and Maintenance (O&M) accomplishments for the previous month and a preview of the tasks, projects and issues/concerns for the following month. Provide the information under PWS Paragraph 12.1.v for the FSSC Director's O&M Program Review. Report details and/or format may change during the life of the contract as requested by FSSC at no additional cost to the contract. Report format shall be in MS Power Point format sent by email to the COR two (2) business days prior to presentation at the Monthly ROTHRO O&M Contract Performance Review.
- b. Report for FSSC Comptroller. This report is for the purpose of assisting the FSSC Comptroller in their obligations to report on a quarterly basis on the cost to the Government of the operation and of the maintenance of each separate Transmit/Receive site. The Contractor is required to provide an estimated breakdown of their cost amount per site. The Contractor shall provide this report within 45 days after the start of each contract performance period and revise on a quarterly basis with actuals for the cost CLINs, if the estimate has changed as a result of experience gleaned during performance.
- c. ROTHRO O&M Cost Report. This report is for the purpose of assisting O&M COR in obtaining actual cost of Operating & Maintaining each separate Transmit/Receive Site. The Contractor is required to report their actual cost amounts into the following categories; 1) Maintenance/System Labor Virginia Sites, 2) Maintenance/System Labor Texas Sites, 3) Maintenance/System Labor Puerto Rico Sites, 4) TDL Material, 5) TDL Labor, 6) Repair Material, 7) Travel costs and 8) Air Transportation for Puerto Rico Transmit Site. The Contractor shall provide this report to the COR within 45 days after contract start and monthly throughout life of contract.
- d. Trip Report. The Contractor shall provide a summary trip report to the COR within 14 days of completion of any travel conducted in support of the contract. Only one report is required per trip. Contractor may list multiple travelers on a single report. Trip reports will contain dates and

purpose for travel, names of personnel traveling, and a summary of events, issues and outcomes from the trip.

- 12.3 Organizational Diagram. Provide to the COR a detailed color Organizational diagram depicting all positions directly supporting contract performance. Initial deliverable is due 15 calendar days after the contract start date. Submit all changes monthly or as they occur. At a minimum the diagram shall identify each radar Receive and Transmit site, OCC, all other key functional areas, and the following:

- Position functional title;
- Employee name;
- Position DOL classification title (or indicate “Exempt”);
- Full Time Equivalent (e.g. 1. FTE, .5 FTE, etc); and
- Prime or subcontractor.
- Essential and Key Personnel

- 12.4 Deliverables.

- FSSC Director’s Weekly Operations and Maintenance Summary Report (Ref PWS 12.1.a). CDRL O001.
- Electronic copy of the FSSC Director’s O&M Program Review (Ref PWS 12.1.v). CDRL C001.
- ROTHRO&M Program Management Report (Ref PWS 12.2.a). CDRL C002.
- FSSC Finance Department Report (Ref PWS 12.2.b). CDRL C003.
- Organizational Diagram (Ref PWS 12.3). CDRL C004.
- ROTHRO&M Cost Report (Ref PWS 12.2.c). CDRL C005.
- Trip Report (Ref PWS 12.2.d). CDRL C006.

13.0 Enterprise Asset Management System (EAM/MMIS) / Maintenance Management Information System (MMIS)

- 13.1 Overview. EAM/MMIS is a Government-owned database for joint-use by both FSSC and the O&M Contractor to manage O&M contract Operation & Maintenance information/data for the FSSC ROTHRO&M program. FSSC will provide the O&M Contractor with the existing EAM/MMIS server that hosts the application software platform, including all EAM/MMIS system information (i.e. software, source code, operational code, functional specification, User Manuals, access codes/passwords, etc.), located in the Master Technical Library. The Government shall maintain three System Administrators accounts (One FSSC Administrator each for LCM, O&M, and Property) in the EAM/MMIS software for the purpose of maintaining the Government user accounts and user groups, query reports writing, and for the creation and maintenance of new organizations within the software, for Government use as necessary.
- 13.2. The Contractor shall provide a full-time EAM/MMIS system/Database Administrator on-site at Chesapeake Virginia, who will be responsible for providing support to FSSC as it pertains to data/information access to EAM/MMIS, and accurate information management of EAM/MMIS data. Minimum requirements are:
- a. Operate and Maintain the EAM/MMIS to provide 98% availability to all users at all radar sites including FSSC Building 310 NSA HR NW Annex, Chesapeake, Va. Anticipate 40 FSSC users in addition to O&M Contractor personnel;
 - b. Programming, development, and expansion of existing modules & new modules;
 - c. Programming, development, generation of various reports, graphs, charts, etc.;
 - d. Provide timely and accurate data entry as required throughout the PWS;

- e. Maintain a current EAM/MMIS User's Guide. Provide an updated copy to the COR within 5 work days following any revision;
 - f. Maintain all EAM/MMIS information in the Master technical Library including software, source code, operational code, functional specification, user guide, access codes/ passwords, etc.;
 - g. Participate in EAM/MMIS Working Group meetings;
 - h. Provide continuous training to the FSSC EAM/MMIS Administrator in all aspects of the EAM/MMIS system including operation, maintenance, and programming.
 - i. Coordinate all EAM/MMIS effort in a timely manner with the FSSC EAM/MMIS Administrator.
 - j. Provide internet connectivity in/to Building 344 with a minimum of 100MB speed to connect EAM/MMIS server to the internet (See Section J - Attachment 11).
 - k. Act as liaison between the EAM/MMIS software vendor and all FSSC EAM/MMIS Administrators to field software questions, information requests, and enhancement requests.
- 13.3 EAM/MMIS Replacement. FSSC reserves the right to replace the existing EAM/MMIS platform with a next-generation application software and server having web-based capability to access EAM/MMIS data, with possible third-party operations. The O&M Contractor may be tasked to purchase and/or install the replacement system as determined by FSSC.
- 13.4 Deliverables:
- EAM/MMIS Users Guide (Ref PWS 13.2.e). CDRL M005.
- 13.5 Operating Constraints:
- EAM/MMIS shall be utilized solely for ROTH contract performance independent of other databases, servers, and Contractor company requirements.
 - The EAM/MMIS system including the platform, software, source code, operational code, design documentation, test documentation, supporting documentation, modules, user manuals, operating procedures, logical diagrams, physical/functional diagrams, licenses, and access codes/passwords are the property of FSSC.
- 14.0 Contract Phase-In and Phase-Out Requirements.**
- 14.1 Phase-In Period:
- a. The Contractor shall take all necessary actions to be fully prepared and ready to perform all contractual requirements beginning on the first day of contract performance.
 - b. Government Furnished Property (GFP) Turnover. FSSC will make available to the Contractor all GFP on the contract start date. The Contractor shall accept from FSSC during the first 30 days, in writing, all GFP as satisfactory unless noted otherwise. Deficiencies/discrepancies shall be noted by the Contractor on the turnover document. If no deficiencies/discrepancies are found, this fact shall be noted by the Contractor on the FSSC provided turnover document. Deficiencies noted which adversely affect the Operational performance will disqualify any equipment/system from being accepted by the Contractor for operation and maintenance, but will become the FSSC's responsibility to either correct or designate in writing as acceptable for the purpose of Contract performance. The FSSC Property Manager and the Contractor will sign the turnover document indicating acceptance.

- c. Facilities Turnover. During the first 30 calendar days following the contract start date the Contractor shall document all facilities related problems on a turnover document provided by FSSC. Deficiencies/discrepancies which do not adversely affect Operational performance shall not relieve the Contractor from accepting any facility or system for operation and maintenance, but, will become FSSC's responsibility to either correct, direct the Contractor to correct, or designate in writing that the facility is acceptable for the purpose of Contractor performance.
- d. Security Turnover. During the first 30 calendar days following the contract start date the COR, FSSC Security Manager, and the Contractor shall inventory existing classified material in approved storage safes transferred to the Contractor.

14.2 Phase-Out Period:

- a. The Contractor shall take all necessary actions to perform all contract requirements through the last day of the contract performance period.
- b. As the contract approaches completion, the Contractor shall provide a transition team to facilitate a successful transition to the Government or an alternate Contractor. The transition team shall be comprised of all key personnel and functional experts possessing expert knowledge and experience with the expiring contract. The transition team shall conduct a comprehensive review and practical hands-on indoctrination of all aspects of the ROTHRO O&M performance.
- c. Government Furnished Property (GFP) Turnover. The Contractor shall provide property closeout coordination and perform a joint 100% inventory of GFP with the FSSC Property Manager.
- d. Facilities Turnover. During the last 30 calendar days of contract performance the Contractor shall provide the COR a list of all facilities related problems and discrepancies.
- e. Security Turnover. During the last 30 calendar days of contract performance the COR, FSSC Security Manager, and the Contractor shall inventory existing classified material in approved storage safes for transfer to FSSC.

15.0 MATERIALS/TRAVEL/OTHER DIRECT COSTS (ODCs)

15.1 Material, Parts, and Equipment

- a. The COR may issue TDLs to the Contractor for specific material, parts, and equipment.
- b. Costs for shipping, transportation, and disposal of all Government Furnished Property (GFP), including hazardous material / hazardous waste (HAZMAT/HAZWASTE), are cost reimbursable. Disposal proceeds shall be returned to either the U. S. Treasury or to this contract as designated.
- c. Procure authorized spares to maintain stocking levels identified in the latest Allowance Parts Lists (APL) and Allowance Equipage List (AEL) for each site and at the wholesale level. Ensure the latest APL and AEL data are incorporated into EAM/MMIS and identify any discrepancies or recommend changes via the Allowance Change Request (ACR) process.

15.2 Travel

- a. The COR may issue TDLs to the Contractor for travel requirements. The Contractor will be reimbursed AT COST for this Travel in accordance with the Joint Travel Regulations.
- b. Government personnel supporting the ROTHRO program shall be allowed to fill, at no additional cost to the Contractor or Government, any open seats that are available after the inclusion of all Contractor personnel on the chartered transportation to and from the Puerto Rico Radar Sites. The Contractor is

not required to provide or arrange transportation to and from the Puerto Rico sites for the Government personnel supporting the ROTH program if all of the available seating on the Contractor chartered transportation is needed for Contractor purposes. The Government shall indemnify and hold harmless the Contractor, and its officers, employees and agents, from and against all damages, costs, expenses, liabilities, claims, demands, and judgments of whatever kind or nature arising from the transportation provided to Government personnel, except where such indemnification is prohibited by respective federal laws or regulations, including but not limited to the Antideficiency Act and the Federal Tort Claims Act.

15.3 Other Direct Costs (ODCs)

- a. The COR may issue TDLs directing the Contractor to incur specific ODC charges for efforts in support of the Cost Plus Requirements. Prior to issuance of a TDL the COR and Contractor will review the ODC requirement to clarify scope, performance schedule, and resource requirements, however, the COR may issue the TDL without this review.
- b. The Contractor will be reimbursed at cost for these ODCs.
- c. ODC charges may include:
 - Shipping and transportation of GFP in accordance with PWS 8.0.
 - Replacement EAM/MMIS application and set-up in accordance with PWS 13.0.
 - Installation of equipment and components
 - Grounds upkeep and repair

16.0 CONTRACT DATA REQUIREMENTS LIST (CDRLs)

Contract Data Requirements List (CDRLs) referenced throughout the PWS and the Data Distribution List are provided in Section J - Attachment 5.

17.0 MINIMUM PERSONNEL QUALIFICATIONS

The Contractor shall be responsible for providing personnel with the below expertise; however, equivalent and relevant experience may be considered in lieu of education requirements, at the discretion of the Government.

17.1 Program Manager.

A Program Manager shall be located at the Chesapeake site with primary responsibility for overall contract performance and point of contact for the COR. Minimum Qualifications: A Bachelors Degree in electronics, electrical engineering, computer science or physics from an accredited university or college. A Bachelors Degree in electronics or engineering technology is acceptable if the person has passed the Engineering-In-Training (EIT). Individual shall have at least eight years of experience in design or support engineering of large commercial or military radar and communications or digital electronic systems. Individual must have six years of supervisory experience over technical personnel responsible for performance of operations and maintenance, field modifications or repair of radar systems.

17.2 Radar Operations Manager.

A Radar Operations Manager shall be located at the Chesapeake site with primary responsibility for radar operations requirements in accordance with the PWS. Minimum Qualifications: Successful graduation in engineering technology from a resident study program at an accredited technical institute above high school, with a minimum curriculum length of two years, or Successful completion of a military operations specialist technical school with a combined curriculum length of no less than six months. The individual shall have no less than 6 years of tactical watch experience and at least four years of experience with HF

Over the Horizon (OTH) radar operation, HF propagation, ionospheric disturbances, and principles of electronic waveforming equipment. Must have knowledge of the Naval communications system and air navigation plotting. Individual must have two years of supervisory experience over personnel performing electronic surveillance task.

17.3 Radar Watch Supervisor.

Multiple Radar Watch Supervisors shall be located on the Watch Floor at the Chesapeake site with primary responsibility for radar operations requirements in accordance with the PWS Paragraph 3.1.1.c(1). A minimum of one (1) Radar Watch Supervisor is required per shift. Minimum Qualifications: Successful graduation from high school and successful completion of a military operations specialists technical school, having a minimum curriculum length of six months, or successful completion of a military technical school having a curriculum length of six months, or successful completion of a military technical school having a curriculum length of three weeks designed to train personnel for familiarization with HF Over the Horizon (OTH) radar operations or equivalent experience gained by on-the-job-training(OJT) on similar systems. The individual shall have at least six years of experience directing a tactical watch team such as FAA Tower, Flight Controlling Center, Navy/Air Force airfield operations or Navy Combat Information Center, Navy/Air Force Air Field operations or Navy Combat Information Center (CIC). Knowledge of radar operations and peripheral equipment is necessary for processing and analysis of returned signals. The individual shall have at least two years of experience with HF Over The Horizon (OTH) radar operation, HF propagation, ionospheric disturbance and principles of electronic waveforming equipment. The individual shall have knowledge of Naval communications systems. Individual must have a minimum of six-years of supervisory experience over personnel performing electronics surveillance tasks. The individual shall have knowledge in reading, interpreting, dissemination all messages pertaining to operations. The individual shall be knowledgeable in providing tactically useable and timely track data to external tasking agencies.

17.4 System Manager.

A System Manager shall be located at each system site (Virginia, Texas, and Puerto Rico) with primary responsibility for contract performance requirements at the Receive and Transmit sites. Minimum Qualifications: Successful graduation in electronic or electrical engineering technology from a resident study program at an accredited technical institute above high school, with a minimum curriculum length of two years, or successful completion of a military technical school, having a minimum curriculum length of six months, designed to train personnel for independent performance in selecting and using electronic test equipment and systematic procedures for troubleshooting, overhaul, fault isolation and repair of major electronic systems comprised of receiver and transmitter antenna system functions. Individual shall have six years of technical level experience in assembly, overhaul, repair, modification, operation, troubleshooting and maintenance of radar, communications or digital electronic systems. Individual must have two years of supervisory experience over technical personnel responsible for performance of operations and maintenance, field modifications or repair of radar systems.

17.5 Radar Systems Maintenance & Repair Manager.

A Radar Systems Maintenance & Repair Manager shall have primary responsibility for radar systems maintenance & repair requirements for all systems in accordance with the PWS. Minimum Qualifications: Two years of supervisory experience performing routine maintenance and repair tasks of HF Over the Horizon (OTH) radar operation. The individual shall have experience in the supervision of maintenance and training personnel, observing that all applicable regulatory and safety agency requirements are met. The individual must have experience in directing maintenance and on-the-job training of HF Over the Horizon (OTH) radar operations. The individual shall have experience in coordinating logistics issues with many departments in order to complete the assign task. The individual ensures the availability of parts, supplies and manpower to complete all tasks by their deadlines.

17.6 Facilities Maintenance and Repair Manager.

A Facilities Maintenance and Repair Manager shall have primary responsibility for facilities maintenance and repair requirements for all sites in accordance with the PWS. Minimum Qualifications: Bachelor of Science Degree in Engineering/Management or other related discipline. Five years of prior experience in managing and maintaining remote sites with multiple facilities operating in a 24/7 environment. A thorough maintenance engineering background in infrastructure, utilities, buildings systems, grounds and facilities support equipment. Five years previous project management experience in leading facilities projects. Proven competencies in facilities project/program budget preparation and monitoring, contract administration, maintenance planning, Planned Maintenance System (PMS) and remote site management. Documented experience supervising professional, technical, and clerical personnel. Familiarization with Naval Facilities Engineering requirements for shore facilities. Experience in the use of Program Management Software related to facilities issues.

17.7 Quality Control Manager.

A Quality Control Manager shall have primary responsibility for quality control requirements in accordance with the PWS. Minimum Qualifications: Successful graduation in Electronic or Electrical Engineering Technology from a resident study program at an accredited technical institute above high school, with a minimum curriculum length of two years, or successful completion of a military technical school with a minimum curriculum length of six months. Individual must have a minimum of six years of experience in Quality Control with documented evidence of ISO 9000 Compliant experience. Individual shall have six years of experience in the Navy's PMS and documentation processes as well as test equipment calibration procedures and maintenance and repair procedure documentation. Additionally, shall be familiar with Field Change Kits (FCKs), modifications and logistics. This position requires four years of experience supervising technical Quality Control personnel located jointly and remotely.

17.8 Property & Logistics Manager.

A Property & Logistics Manager shall have primary responsibility for property & logistics requirements in accordance with the PWS. Minimum Qualifications: Successful graduation in engineering technology or logistics related degree from a resident study program at an accredited technical institute above high school, with a minimum curriculum length of two years, or successful completion of a military technical school pertaining to budgeting and logistics. Individual must have three years of experience in military logistics, or equivalent including experience with electronic repair parts storage, receipt and issue, requisition procedures, stock records posting, and policies and procedures of the federal supply systems, federal and DoD acquisition regulation for property administration and disposition, and SECNAV requirements. Individual must be familiar with ASTM (American Society for Testing and Materials) Standards. Individual must have two years of supervisory experience over personnel performing logistical services.

17.9 Environmental & Safety Manager.

An Environmental & Safety Manager shall have primary responsibility for safety & environmental requirements for all sites in accordance with the PWS. Minimum Qualifications: Bachelor's degree within the safety sciences (environmental science, industrial hygiene/health or industrial operations) and/or professional certification (CIH, CSP, CHMM) in the non-degree fields, and five years of job related experience managing a comparable EH&S program. An equivalent combination of experience, education and training will be considered. Individual will possess the abilities to: develop, implement and monitor industrial safety practices that ensure operational compliance with OSHA Regulations; develop, implement and monitor environmental practices that comply with current and future local, state and federal Environmental and Transportation regulations, with specific emphasis on RCRA Compliance, i.e., manage hazardous materials, resultant hazardous waste streams and respective documentation; perform planned or unplanned environmental and safety audits, analyze data, implement corrective actions and report results; identify and conduct, or otherwise source the training necessary to ensure an operationally safe and environmentally compliant program.

18.0 Defense Biometric Identification System (DBIDS)

All Contractors, vendors, and suppliers must have DBIDS credential for Base access.

DBIDS increases installation security and communications by receiving frequent database updates on changes to personnel/credential status, law enforcement warrants, lost/stolen cards, and force protection conditions. The system provides a continuous vetting anytime the DBIDS card is scanned at an installation entry point. The process of obtaining DBIDS credentials is as follows:

- Present a completed copy of the SECNAV 5512/1 form to obtain your background check.
- Upon completion of the background check, the Visitor Control Center representative will complete the DBIDS enrollment process, which includes your photo, finger prints, base restrictions, and several other assessments; after all this is done, you will be provided with your new DBIDS credential.

REIMBURSEMENT OF TRAVEL COST (SEP 2015)**(a) Travel**

(1) Area of Travel. Performance under this contract may require travel by contractor personnel. If travel, domestic or overseas, is required, the contractor is responsible for making all needed arrangements for his personnel. This includes but is not limited to the following:

Medical Examinations

Immunization

Passports, visas, etc.

Security Clearances

All contractor personnel required to perform work on any U.S. Navy vessel will have to obtain boarding authorization from the Commanding Officer of the vessel prior to boarding.

(2) Travel Policy. The Government will reimburse the contractor for allowable travel costs incurred by the contractor in performance of the contract and determined to be in accordance with FAR subpart 31.2, subject to the following provisions:

Travel required for tasks assigned under this contract shall be governed in accordance with rules set forth for temporary duty travel in FAR 31.205-46.

(3) Travel. Travel, subsistence, and associated labor charges for travel time are authorized, whenever a task assignment requires work to be accomplished at a temporary alternate worksite.

Travel performed for personal convenience and daily travel to and from work at contractor's facility will not be reimbursed.

(4) Per Diem. Per diem for travel on work assigned under this contract will be reimbursed to employees consistent with company policy, but not to exceed the amount authorized in the Department of Defense Joint Travel Regulations.

(5) Shipboard Stays. Whenever work assignments require temporary duty aboard a Government ship, the contractor will be reimbursed at the per diem rates identified in paragraphs C8101.2C or C81181.3B(6) of the DOD Joint Travel Regulations, Volume 2.

(6) Air/Rail Travel. In rendering the services, the contractor shall be reimbursed for the actual costs of transportation incurred by its personnel not to exceed the cost of tourist class rail, or plane fare, to the extent that such transportation is necessary for the performance of the services hereunder and is authorized by the Ordering Officer. Such authorization by the Ordering Officer shall be indicated in the order or in some other suitable written form.

NOTE: To the maximum extent practicable without the impairment of the effectiveness of the mission, transportation shall be tourist class. In the event that only first class travel is available, it will be allowed, provided justification therefore is fully documented and warranted.

(7) Private Automobile. The use of privately owned conveyance within the continental United States by the traveler will be reimbursed to the contractor at the mileage rate allowed by Joint Travel Regulations. Authorization for the use of privately owned conveyance shall be indicated on the order. Distances traveled between points shall be shown in standard highway mileage guides. Any deviations from distance shown in such standard mileage guides shall be explained by the traveler on his expense sheet.

(8) Car Rental. The contractor shall be entitled to reimbursement for car rental, exclusive of mileage charges, as authorized by each order, when the services are required to be performed outside the normal commuting distance from the contractor's facilities. Car rental for TDY teams will be limited to a rate of one car for every four (4) persons on TDY at one site.

(1) SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION

The security text does not apply in cases where the contractor/vendor does not have access to Navy Marine Corps Intranet (NMCI) computers, is not issued a Common Access Card (CAC) and is involved in training or other short term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This local text does not apply to non-United States (U.S.) Nationals (foreign nationals) who are contractor employees performing work overseas. This text is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DoDM) 5200.2, Department of Defense (DoD) components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required

contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at11/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a Federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed Electronic Investigation (e-QIP)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile.
- e. Common Access Card (CAC)
- f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret).

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEM

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to

Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officers Representative (COR) shall sign the SAAR-N as the supervisor.

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The CSM may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

- a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.
- b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
- c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information.
- d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the contractor's security representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the contractor's security representative. The contractor's security representative shall be the primary point of contact on any security matter. The contractor's security representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure

investigations remain current (not older than ten (10) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the U.S. (as required by the Deputy Secretary of Defense DTM 08-006 or its subsequent DoD Instruction (INST)) and
- Must have a favorably completed NACI or T1 investigation or equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the CSR must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions
- Two FD-258 Applicant Fingerprint Cards (or the preferred method - electronic fingerprint submission)
- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed NACI or T1 equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM.

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

REQUIRED STANDARD OF WORKMANSHIP (OCT 1992)

Unless otherwise specifically provided in this contract, the quality of all services rendered hereunder shall conform to the highest standards in the relevant profession, trade or field of endeavor. All services shall be rendered by or supervised directly by individuals fully qualified in the relevant profession, trade or field, and holding any licenses required by law.

EMPLOYMENT OF DEPARTMENT OF DEFENSE PERSONNEL RESTRICTED

In performing this contract, the contractor will not use as a consultant or employ (on either a full or part time basis) any current Department of Defense (DoD) personnel (civilian or military) without the prior approval of the Contracting Officer. Such approval may be given only in circumstances where it is clear that no laws and no DoD or Navy instructions, regulations, or policies might possibly be contravened and no appearance of a conflict of interest will result.

Section D - Packaging and Marking

CLAUSES INCORPORATED BY REFERENCE

252.209-7004	Subcontracting With Firms That Are Owned or Controlled By MAY 2019 The Government of a Country that is a State Sponsor of Terrorism	
252.211-7003	Item Unique Identification and Valuation	JAN 2023
252.211-7008	Use of Government-Assigned Serial Numbers	SEP 2010
252.223-7001	Hazard Warning Labels	DEC 1991
252.245-7003	Contractor Property Management System Administration	APR 2012
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations	OCT 2010
252.246-7008	Sources of Electronic Parts	JAN 2023

SECTION D LANGUAGESECTION D LANGUAGE

HAZARDOUS MATERIALS (JAN 1999) (NAVSUP)

(a) Hazardous materials as used in this clause means any material defined as hazardous within the applicable modal regulations governing packaging, handling, storage and transportation (including revisions adopted during the term of this contract). Such definitions include the following:

<u>Class/Division</u>	<u>Definition</u>
1	Explosives
2.1	Flammable Gas
2.2	Non-Flammable, Non-poisonous Compressed Gas
2.3	Gas Poisonous by Inhalation
3	Flammable Liquid (flash point not more than 141 degrees F)
4.1	Flammable Solid
4.2	Spontaneously Combustible Material
4.3	Dangerous When Wet Material
5.1	Oxidizer
5.2	Organic Peroxides
6.1	Poisonous Materials
6.2	Infectious Substance
7	Radioactive Material
8	Corrosive Material
9	Miscellaneous Hazardous Material
None	Other Regulated Material (ORM)

(b) Preservation, packaging and packing of hazardous materials shipped hereunder shall be in accordance with the requirements of Department of Transportation Code of Federal Regulation, Title 49, Part 100 - 199, as applicable. In the event of any discrepancy between the contract and title 49, Title 49 shall govern, unless another modal regulation is applicable (See paragraphs (e), (f) and (g) below.

(c) Marking and labeling shall be in accordance with MIL-STD-129 and Title 49, as applicable. In the event of any contradiction between the two documents, Title 49 shall govern.

(d) Transportation shall be in accordance with Title 49; however, hazardous material shipped via the U.S. Postal Service shall be shipped in accordance with U.S. Postal Service Publication.

(e) Hazardous materials intended for shipment via water transportation shall be packaged, packed, marked and labeled in accordance with the International Maritime Organization International Maritime Dangerous Goods (IMDG) Code.

(f) Hazardous materials intended for shipment, via commercial air, shall be packaged, packed, marked, labeled, and certified in accordance with the International Civil Aviation Organization (ICAO) Technical Instructions for the Safe Transport of Dangerous Goods by Air or the International Air Transport Association (IATA) Dangerous Goods Regulations.

(g) Hazardous materials intended for shipment, via military aircraft shall be packaged, packed, marked, labeled, and certified in accordance with joint manual AFJMAN 24-204/NAVSUP PUB 505/TM 38-250/ /MCO P4030.19/DLA 14145.3 (Preparing Hazardous Material For Military Air Shipments).

(h) If the hazardous material required to be shipped under this contract is a non-regulated limited quantity as defined by applicable modal regulations, it shall be packaged to meet the requirements of Level A packaging listed in MIL-STD-2073.

(i) In addition to the above, packaging (container and containment components) designs shall pass all applicable packaging performance tests in accordance with Title 49, the ICAO/IATA and IMDG, as applicable. Compressed gasses are excluded from these tests. Each packaging of acceptable design shall bear certification markings outlined in Title 49. All certificates and test reports indicating test compliance shall be available for inspection by authorized government representatives.

(j) A test report and special packaging instruction shall be submitted in accordance with DD Form 1423, Contract Data Requirements List, referencing Data item Descriptions (DIDs) DI-PACK-81059 (Performance Oriented Packaging Test Report) and DI-PACK-80121 (Special Packaging Instruction). When these DIDs are referenced, only packaging materials controlled by Military or Federal Specifications may be used, unless superseded by commercial standards which have been adopted for government use.

(k) A Material Safety Data Sheet, prepared in accordance with FED-STD-313, and a copy of the Hazard Warning Labels shall be forwarded to the applicable contracting activity.

PINEWOOD NEMATODE FREE SOLID WOOD PACKING MATERIAL (SWPM) (NOV 2002)

(a) Definition. "Pinewood nematode" as used in this provision, means a microscopic roundworm that has infested coniferous (softwood) trees.

(b) All non-manufactured wood lumber, pallets, boxes, crates, containers, reels, blocking and bracing, dunnage, drums, etc. for all shipments are required to be certified pest-(pinewood nematode) free. All wood pallets, boxes, crates, containers, reels, blocking and bracing, dunnage, drums, etc. ordered/delivered from vendors/suppliers shall be heat-treated and marked to the American Lumber Standards Committee (ALSC), NMWP policy and enforcement standards. The approved method for ensuring NMWP material is pinewood nematode free is as follows:

(i) Heat-treated to a minimum core temperature of 56°C (133°F) for at least 30-minutes in a closed chamber that has been tested, evaluated, and approved officially for this purpose. In addition, the susceptible wood shall display an officially approved heat-treated marking enabling the identification of where and by whom the above treatment has been carried out.

(c) All bulk limber procured for the fabrication of pallets, boxes, crates, containers, reels, skids, blocking and bracing, dunnage, drums, etc., shall be certified and marked as a part of the fabrication process, to the ALSC NMWP policy and enforcement standards. Vendors/Suppliers using ALSC-certified lumber to make or repair wooden boxes, crates, skids, containers, pallets, reels, drums, etc., must have formal processing procedures and documentation to ensure that only certified lumber leaves their fabrication point.

(d) This provision is self-deleting if no solid wood packing materials are being shipped.

MARKING OF SHIPMENTS (COMMERCIALY PACKAGED ITEMS) (MAR 1999)

Marking shall be in accordance with ASTM D-3951-95 "Standard Practice for Commercial Packaging."

PREPARATION FOR DELIVERY (COMMERCIALY PACKAGED ITEMS) (MAR 1999)

Preservation, packaging and packing shall be in accordance with ASTM D-3951-95, "Commercial Packaging of Supplies and Equipment."

UNPACKING INSTRUCTIONS: COMPLEX OR DELICATE EQUIPMENT (OCT 1992)

(a) Location on Container. When practical, one set of the unpacking instructions will be placed in a heavy water-proof envelope prominently marked "UNPACKING INFORMATION" and firmly affixed to the outside of the shipping container in a protected location, preferably between the cleats on the end of the container adjacent to the identification marking. If the instructions will be affixed to the number one container of the set. When the unpacking instruction are too voluminous to be affixed to the exterior of the container, they will be placed inside and directions for locating them will be provided in the envelope marked "UNPACKING INFORMATION."

(b) Marking Containers. When unpacking instructions are provided shipping containers will be stenciled "CAUTION-THIS EQUIPMENT MAY BE SERIOUSLY DAMAGED UNLESS UNPACKING INSTRUCTIONS

ARE CAREFULLY FOLLOWED. UNPACKING INSTRUCTIONS ARE LOCATED (state where located).”
When practical, this marking will be applied adjacent to the identification marking on the side of the container.
(c) Marking. All shipping containers will be marked in accordance with the Military Standard Marking for Shipment and Storage, MIL-STD-129.

PREPARATION FOR DELIVERY (DATA ITEMS)

Data furnished hereunder shall be adequately packaged to assure safe delivery at destination.
In the event it becomes necessary to transmit classified matter by mail, the transmittal shall be in accordance with the National Industrial Security Program Operating Manual (DD 5220.22-M).

PROHIBITED PACKING/PACKAGING MATERIALS

The use of asbestos, excelsior, newspaper or shredded paper (all types including waxed paper, computer paper and similar hygroscopic or non-neutral material) is prohibited. In addition, loose fill polystyrene is prohibited for shipboard use.

Section E - Inspection and Acceptance

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government
0002	N/A	N/A	N/A	N/A
1001	Destination	Government	Destination	Government
1002	N/A	N/A	N/A	N/A
2001	Destination	Government	Destination	Government
2002	N/A	N/A	N/A	N/A
3001	Destination	Government	Destination	Government
3002	N/A	N/A	N/A	N/A
4001	Destination	Government	Destination	Government
4002	N/A	N/A	N/A	N/A

CLAUSES INCORPORATED BY REFERENCE

52.246-3	Inspection Of Supplies Cost-Reimbursement	MAY 2001
52.246-5	Inspection Of Services Cost-Reimbursement	APR 1984
52.246-16	Responsibility For Supplies	APR 1984

SECTION E LANGUAGE**INSPECTION AND ACCEPTANCE (SERVICES) (OCT 1992)**

Inspection and acceptance of services to be furnished hereunder shall be made, upon completion of the services, by the Contracting Officer's Representative (COR) or his/her designated official.

(End of Provision)

Section F - Deliveries or Performance

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	POP 01-MAY-2026 TO 30-APR-2027	N/A	FORCES SURVEILLANCE SUPPORT CENTER MICHAEL OLEARZYK 1298 OLYMPIC BLVD CHESAPEAKE VA 23322-4098 757-421-8448 FOB: Destination	N45854
0002	N/A	N/A	N/A	N/A
1001	POP 01-MAY-2027 TO 30-APR-2028	N/A	FORCES SURVEILLANCE SUPPORT CENTER MICHAEL OLEARZYK 1298 OLYMPIC BLVD CHESAPEAKE VA 23322-4098 757-421-8448 FOB: Destination	N45854
1002	N/A	N/A	N/A	N/A
2001	POP 01-MAY-2028 TO 30-APR-2029	N/A	FORCES SURVEILLANCE SUPPORT CENTER MICHAEL OLEARZYK 1298 OLYMPIC BLVD CHESAPEAKE VA 23322-4098 757-421-8448 FOB: Destination	N45854
2002	N/A	N/A	N/A	N/A
3001	POP 01-MAY-2029 TO 30-APR-2030	N/A	FORCES SURVEILLANCE SUPPORT CENTER MICHAEL OLEARZYK 1298 OLYMPIC BLVD CHESAPEAKE VA 23322-4098 757-421-8448 FOB: Destination	N45854
3002	N/A	N/A	N/A	N/A

4001	POP 01-MAY-2030 TO 30-APR-2031	N/A	FORCES SURVEILLANCE SUPPORT CENTER MICHAEL OLEARZYK 1298 OLYMPIC BLVD CHESAPEAKE VA 23322-4098 757-421-8448 FOB: Destination	N45854
4002	N/A	N/A	N/A	N/A

CLAUSES INCORPORATED BY REFERENCE

52.242-15	Stop-Work Order	AUG 1989
252.247-7023	Transportation of Supplies by Sea	OCT 2024

SECTION F LANGUAGE

DELIVERY OF DATA (OCT 1992)

Place and time of delivery of data shall be as specified on the DD Form 1423 (Contract Data Requirements List) which is an exhibit to this contract, unless delivery is deferred at the Government's option by written order of the Contracting Officer.

GOVERNMENT FURNISHED PROPERTY

(a) In accordance with the Section C, Performance Work Statement (PWS), and the Section J, Attachment 6, Government Furnished Property, the Government will furnish property to the Contractor for use in performance of this contract.

The Government Furnished Property (GFP) includes, but is not limited to the OCC system; system trainer/test bed; all transmit and receive systems and subsystems; air conditioning, mechanical, electrical, fire suppression systems and subsystems; radar system computers, monitors, hardware, software, and similar items; system parts, components, equipment, assemblies required to maintain, repair, and upgrade the radar systems including, but not limited to, power amplifiers, power supplies, synthesizers, microcircuits, resistors, fuses, connectors, switches, modules, circuit card assemblies, ground screen, radials, cable trays, wire, cables, and similar type items; commercial and non-commercial special tools, test equipment, analyzers; ground screen, radials, cable trays, wire, cables, and similar type items.

(b) The property will be delivered at Government's expense at the applicable radar sites. FSSC will make available to the Contractor all GFP on the contract start date. Specific procedures for turnover will be as mutually agreed upon by the FSSC Property Specialist, Property Administrator (PA), and Contractor.

(c) Only the property listed above in the quantity shown will be furnished by the Government. All other property required for performance of this contract shall be furnished by the Contractor.

(d) Within 30 days after Government furnished property is determined by the Contractor to be lost damaged, destroyed, no longer usable, or no longer needed for the performance of the contract, the Contractor shall notify the Contracting Officer, in writing, thereof. The Contractor shall accept from FSSC during the first 30 days, in writing, all GFP as satisfactory unless noted otherwise. Deficiencies/discrepancies shall be noted by the Contractor on the turnover document. If no deficiencies/discrepancies are found, this fact shall be noted by the Contractor on the FSSC provided turnover document. Deficiencies noted which adversely affect the operational performance will disqualify any equipment/system from being accepted by the Contractor for operation and maintenance, but will

become the FSSC's responsibility to either correct or designate in writing as acceptable for the purpose of Contract performance. The FSSC Property Specialist, Property Administrator (PA), and the Contractor will sign the turnover document indicating acceptance."

CONTRACT PERIOD

- (a) The Government expects to award a contract by 1 March 2026.

The contract performance period is anticipated to be 1 May 2026 through 30 April 2027 (30 April 2031 if all options are exercised) based on award by 1 March 2026. Contract ramp-up shall be completed by 01 May 2026 if a contract is awarded on or before 1 March 2026. The Contracting Officer will give written notice of extension of the contract pursuant to the Section I clause 52.217-9 entitled, Option to Extend the Term of the Contract, as enclosed herein not later than 10 days before the Base or Option periods expire.

Section G - Contract Administration Data

CLAUSES INCORPORATED BY REFERENCE

52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.232-18	Availability Of Funds	APR 1984
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018

CLAUSES INCORPORATED BY FULL TEXT

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either “Invoice 2in1” or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	_____
Issue By DoDAAC	_____
Admin DoDAAC**	_____
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____

Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert “See Schedule” or “Not applicable.”)

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity’s WAWF point of contact.

(Contracting Officer: Insert applicable information or “Not applicable.”)

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

CLAUSES INCORPORATED BY REFERENCE

252.201-7000

Contracting Officer's Representative

DEC 1991

SECTION H LANGUAGE***DETERMINATION OF AWARD FEE***

A. This Cost-Plus-Award-Fee (CPAF) contract is based upon five (5) evaluation periods, each with a period of performance of twelve (12) months if all options are exercised. Determination of the Award Fee, if any, earned by the Contractor will be made at the end of each evaluation period.

<u>Evaluation Period</u>	<u>Fee Pool Available</u>	<u>End of Period</u>
1	\$	12 mo. after start
2	\$	24 mo. after start
3	\$	36 mo. after start
4	\$	48 mo. after start
5	\$	60 mo. after start

If , however, base period is less than 12 months, these time periods will be adjusted accordingly.

B. With respect to award fee, the award fee pool will be available for each evaluation period. Further, any amount of available award fee, which is not awarded in any individual evaluation period, will not be carried to any subsequent periods.

NOTE: If the option for a contract line item number (CLIN) is not exercised, the award fee associated with that CLIN would not be included in the available fee pool.

C. The determination of the amount of award fee to be paid, if any, shall be based upon a subjective evaluation by the Government on the quality of the Contractor's performance, judged in light of the criteria set forth below. The weighted score percentage resulting from the Government's subjective evaluation shall be applied to each of the above award fee pool amounts to determine the amount of award fee payable for each evaluation period.

D. The Government may unilaterally revise the award fee criteria as set forth below, provided the Government gives the Contractor at least 30 days notice prior to the start of the evaluation period subject to the revised criteria.

E. During each of the evaluation periods, the Contractor may provide a self-assessment of its performance to the Government. This self-assessment should include the actual costs incurred from the beginning of the evaluation period through 30 days prior to the end of the evaluation period, exclusive of travel, living expenses, and G&A.

F. Award Fee Criteria:

For the award fee, the Contractor shall be rated on four factors:

- 1) Cost Control
- 2) Contractor Performance
- 3) RADAR Performance
- 4) Operations

Cost Control:

The primary factors for Cost Control are the Contractor's skill and ability to control, adjust and project cost aspects of the contract; how actual costs compared to budgeted costs; and the steps taken by the Contractor to reduce cost.

Contractor Performance metrics include:

1) Implement a preventive and corrective maintenance program using OPNAVINST 4790 (series), Intermediate Maintenance Instructions (IMIs), User's Logistics Support Summary (ULSS), and current technical manuals as procedural guidelines. Maintain a monthly ROTHr Preventive Maintenance Recorded Accomplishment Rate (RAR) of 95% for each ROTHr site. The Government will calculate RAR by dividing the number of fully accomplished maintenance requirements by the number of maintenance requirements scheduled for the month in which the RAR is being calculated.

2) Reliability, maintainability and availability of each ROTHr system and major subassembly expressed as a percentage of time. The Contractor shall track and report the monthly Reliability for each system and major subassembly using Mean Time Between Critical Failures (MTBCF) and Mean Time Between (all) Failures (MTBF). The Contractor shall maintain a monthly operational Availability (Ao) greater than 95% for each ROTHr system, using availability criteria contained within the applicable section of the PWS. The Contractor shall track and report the monthly Mean Time to Restore Critical Failures (MTTRCF) and Mean Time to Restore (all) Failures (MTTRF) for each system.

3) Quality of onsite operations and maintenance of grounds, janitorial, facilities and corrosion control, as determined by on-site Government QA and Facilities personnel using Government developed check lists IAW the FSSC Quality Assurance Plan (QASP). These metrics are primarily subjective based on good housekeeping procedures and material condition of grounds, facilities and support equipment, however, the PWS contains criteria such as maximum height of vegetation, and periodicity for cleaning, mowing and maintenance.

4) Effective adherence to contract schedule and contract data deliverables, by meeting established Government project and deliverable deadlines.

5) Effective management and monitoring of Cyber Security controls for networks and ROTHr mission circuits. The Contractor shall develop, document, configuration manage, and maintain a system compliant with the appropriate National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53A assessment procedures and the NIST SP 800-53 Security and Privacy Controls for Federal ISs and Organizations to obtain a Risk Management Framework (RMF) authorization IAW DoDI 8510.01.

RADAR performance metrics include:

1) The Contractor shall perform a Sub-Clutter visibility (SCV) test for each ROTHr receive subsystem semi-annually IAW ROTHr Subsystem Acceptance Tests and Standard Operating Procedures. Achievable system SCV, as limited by discrete power line and spurious signals, shall exceed 70 dB.

2) The Contractor shall perform a Transmit array mutual coupling test for each ROTHr transmit subsystem semi-annually IAW ROTHr Subsystem Acceptance Tests and Standard Operating Procedures. The antenna array mutual coupling test demonstrates that the RADAR and sounder antenna arrays meet minimum voltage standing wave ratio (VSWR) requirements across the operating frequency of 5-28 Mhz. The minimum requirements for both the high and low band arrays VSWR, with all elements excited are: 85% probability less than 1.7:1 and 96% probability less than 2.0:1. The minimum requirements for the Sounder array VSWR, with all elements excited are: 90% probability less than 1.7:1 and 96% probability less than 2.0:1. Each individual element shall meet the same prescribed minimum requirements.

3) The Contractor shall monitor the Digital Waveform Generator program daily to ensure that the transmit subsystem remains within calibration standards. Calibration standards are 90% of RADAR transmission side lobe levels shall measure below -20dB.

Operations metrics include:

1) Provide track data on real time "all source" counter drug confirmed tracks of interest for aircraft events at a rate of 98% for participation and 98% for continuous tracking, and surface events at a rate of 70%. "Participation" is defined as at a minimum 2 standard ROTHr position reports consisting of latitude, longitude, course, and speed that are correlated to the target of interest (TOI). "Continuous tracking" is defined as continuous (no gap in reporting > 10 minutes) standard ROTHr position reports (latitude, longitude, course, speed) that are correlated to the TOI.

2) Optimally manage between 10 to 17 (nominal) Dwell Illumination Regions (DIR) per system to meet operational tasking. The average time from system verification of track detection to reporting tracks that meet the end users direction and speed of interest shall be less than 13.00 minutes per radar. Report quality tracks by manually evaluating and reporting all tracks meeting operational requirements, end users direction, and speed of interest criteria. Model the ionosphere and adjust frequencies to ensure optimal radar performance and coverage.

3) Perform post analysis of ALL confirmed targets of interest (CTOI) and submit findings and an electronic copy of the CTOI Suspect Event Tracking Percentage Page (CDRL Q010) to FSSC Operations Analyst . This page is due on the 15th day of the following month.

G. The following broad categorizations shall serve as subjective guidelines for the Government's evaluation of Contractor performance:

Excellent: 91%-100%. Contractor has exceeded almost all of the significant award-fee criteria and has met overall cost, schedule, and technical performance requirements of the contract in the aggregate, as defined and measured against the criteria in the award-fee plan for the award-fee evaluation period.

Very Good: 76%-90%. Contractor has exceeded many of the significant award-fee criteria and has met overall cost, schedule, and technical performance requirements of the contract in the aggregate, as defined and measured against the criteria in the award-fee plan for the award-fee evaluation period.

Good: 51%-75%. Contractor has exceeded some of the significant award-fee criteria and has met overall cost, schedule, and technical performance requirements of the contract in the aggregate, as defined and measured against the criteria in the award-fee plan for the award-fee evaluation period.

Satisfactory: No greater than 50%. Contractor has met overall cost, schedule, and technical performance requirements of the contract in the aggregate, as defined and measured against the criteria in the award-fee plan for the award-fee evaluation period.

Unsatisfactory: 0%. Contractor has failed to meet overall cost, schedule, and technical performance requirements of the contract in the aggregate, as defined and measured against the criteria in the award-fee plan for the award-fee evaluation period.

The award fee pool will equate to the Contractor's performance score on a one-to-one basis, i.e., a performance score of 97 equates to 97% of the available award fee pool. The RADAR performance (35%) and Operations (35%) metrics will be the biggest factors in the Award Fee determination, with Cost Control and Contractor performance accounting for 15% each.

AWARD FEE SPECIAL PROVISIONS

For the purpose of award fee, only better than good performance will receive an award fee. No award fee will be received unless the subjective performance rating is greater than 75%.

Section I - Contract Clauses

CLAUSES INCORPORATED BY REFERENCE

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-6	Restrictions On Subcontractor Sales To The Government	JUN 2020
52.203-6 Alt I	Restrictions On Subcontractor Sales To The Government (JUN 2020) -- Alternate I	NOV 2021
52.203-7	Anti-Kickback Procedures	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	MAY 2014
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-2	Security Requirements	MAR 2021
52.204-7	System for Award Management	NOV 2024
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-22	Alternative Line Item Proposal	JAN 2017
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.204-29	Federal Acquisition Supply Chain Security Act Orders-- Representation and Disclosures.	DEC 2023
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment	NOV 2021
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.215-2	Audit and Records--Negotiation	JUN 2020
52.215-8	Order of Precedence--Uniform Contract Format	OCT 1997
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data	AUG 2011
52.215-12	Subcontractor Certified Cost or Pricing Data	JUN 2020
52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data	NOV 2021
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data -- Modifications	NOV 2021
52.216-7	Allowable Cost And Payment	AUG 2018
52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns	OCT 2022

52.219-8	Utilization of Small Business Concerns	FEB 2024
52.219-9 Alt II	Small Business Subcontracting Plan (SEP 2023) Alternate II	NOV 2016
52.219-16	Liquidated Damages-Subcontracting Plan	SEP 2021
52.219-28	Post-Award Small Business Program Rerepresentation	FEB 2024
52.222-3	Convict Labor	JUN 2003
52.222-19	Child Labor -- Cooperation with Authorities and Remedies	FEB 2024
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-38	Compliance With Veterans' Employment Reporting Requirements	FEB 2016
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-54	Employment Eligibility Verification	MAY 2022
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	JAN 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	MAY 2024
52.223-3	Hazardous Material Identification And Material Safety Data	FEB 2021
52.223-4	Recovered Material Certification	MAY 2008
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2024
52.223-7	Notice of Radioactive Materials	JAN 1997
52.223-9	Estimate of Percentage of Recovered Material Content for EPA-Designated Items	MAY 2008
52.223-10	Waste Reduction Program	MAY 2024
52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons.	MAY 2024
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners.	MAY 2024
52.223-20	Aerosols	MAY 2024
52.223-21	Foams	MAY 2024
52.223-23	Sustainable Products and Services.	MAY 2024
52.224-3	Privacy Training	JAN 2017
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.226-1	Utilization Of Indian Organizations And Indian-Owned Economic Enterprises	JUN 2000
52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving	MAY 2024
52.227-1	Authorization and Consent	JUN 2020
52.227-2	Notice And Assistance Regarding Patent And Copyright Infringement	JUN 2020
52.227-3	Patent Indemnity	APR 1984
52.227-14	Rights in Data--General	MAY 2014
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.228-7	Insurance--Liability To Third Persons	MAR 1996
52.229-3	Federal, State And Local Taxes	FEB 2013
52.230-2	Cost Accounting Standards	JUN 2020
52.230-6	Administration of Cost Accounting Standards	JUN 2010
52.230-7	Proposal Disclosure--Cost Accounting Practice Change	APR 2005
52.232-1	Payments	APR 1984
52.232-8	Discounts For Prompt Payment	FEB 2002
52.232-11	Extras	APR 1984

52.232-17	Interest	MAY 2014
52.232-18	Availability Of Funds	APR 1984
52.232-20	Limitation Of Cost	APR 1984
52.232-22	Limitation Of Funds	APR 1984
52.232-23	Assignment Of Claims	MAY 2014
52.232-25	Prompt Payment	JAN 2017
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-1	Disputes	MAY 2014
52.233-3 Alt I	Protest After Award (Aug 1996) - Alternate I	JUN 1985
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.237-1	Site Visit	APR 1984
52.237-2	Protection Of Government Buildings, Equipment, And Vegetation	APR 1984
52.239-1	Privacy or Security Safeguards	AUG 1996
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities	NOV 2024
52.242-1	Notice of Intent to Disallow Costs	APR 1984
52.242-3	Penalties for Unallowable Costs	DEC 2022
52.242-4	Certification of Final Indirect Costs	JAN 1997
52.242-5	Payments to Small Business Subcontractors	JAN 2017
52.242-13	Bankruptcy	JUL 1995
52.242-15	Stop-Work Order	AUG 1989
52.243-2	Changes--Cost-Reimbursement	AUG 1987
52.244-2	Subcontracts	JUN 2020
52.244-5	Competition In Subcontracting	AUG 2024
52.245-1	Government Property	SEP 2021
52.245-9	Use And Charges	APR 2012
52.246-25	Limitation Of Liability--Services	FEB 1997
52.246-26	Reporting Nonconforming Items.	AUG 2024
52.247-1	Commercial Bill Of Lading Notations	FEB 2006
52.247-63	Preference for U.S. Flag Air Carriers	JAN 2025
52.247-64	Preference for Privately Owned U.S. - Flag Commercial Vessels	NOV 2021
52.247-67	Submission Of Transportation Documents For Audit	FEB 2006
52.248-1	Value Engineering	JUN 2020
52.249-6	Termination (Cost Reimbursement)	MAY 2004
52.249-14	Excusable Delays	APR 1984
52.251-1	Government Supply Sources	APR 2012
52.253-1	Computer Generated Forms	JAN 1991
252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7001	Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies	JAN 2023
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.203-7003	Agency Office of the Inspector General	AUG 2019
252.203-7005	Representation Relating to Compensation of Former DoD Officials	SEP 2022
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7003	Control Of Government Personnel Work Product	APR 1992

252.204-7004	Antiterrorism Awareness Training for Contractors	JAN 2023
252.204-7008	Compliance With Safeguarding Covered Defense Information Controls	OCT 2016
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information	JAN 2023
252.204-7012 (Dev)	Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2024-O0013 REVISION 1)	MAY 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	JAN 2023
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services -- Representation	MAY 2021
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	JAN 2023
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.204-7020	NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.204-7023	Reporting Requirements for Contracted Services.	JUL 2021
252.204-7024	Notice on the Use of the Supplier Performance Risk System	MAR 2023
252.205-7000	Provision Of Information To Cooperative Agreement Holders	OCT 2024
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.211-7003	Item Unique Identification and Valuation	JAN 2023
252.215-7002	Cost Estimating System Requirements	DEC 2012
252.215-7007	Notice of Intent to Resolicit	JUN 2012
252.215-7008	Only One Offer	DEC 2022
252.215-7016	Notification to Offerors--Postaward Debriefings	DEC 2022
252.216-7004	Award Fee Reduction or Denial for Jeopardizing the Health or Safety of Government Personnel.	SEP 2011
252.219-7000	Advancing Small Business Growth	JUN 2023
252.219-7003	Small Business Subcontracting Plan (DOD Contracts)	DEC 2019
252.219-7004	Small Business Subcontracting Plan (Test Program)	DEC 2022
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements	JAN 2023
252.223-7001	Hazard Warning Labels	DEC 1991
252.223-7006	Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials	SEP 2014
252.223-7008	Prohibition of Hexavalent Chromium	JAN 2023
252.225-7009	Restriction on Acquisition of Certain Articles Containing Specialty Metals	JAN 2023
252.225-7012	Preference For Certain Domestic Commodities	APR 2022
252.225-7016	Restriction on Acquisition of Ball and Roller Bearings	JAN 2023
252.225-7021	Trade Agreements--Basic	FEB 2024
252.225-7030	Restriction On Acquisition Of Carbon, Alloy, And Armor Steel Plate	DEC 2006
252.225-7031	Secondary Arab Boycott Of Israel	JUN 2005
252.225-7043	Antiterrorism/Force Protection Policy for Defense Contractors Outside the United States	JUN 2015
252.225-7048	Export-Controlled Items	JUN 2013
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	MAY 2024
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime	JAN 2023
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region	JUN 2023

252.225-7972 (Dev)	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-O0014)	AUG 2024
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns	JAN 2023
252.227-7013	Rights in Technical Data--Other Than Commercial Products and Commercial Services	MAR 2023
252.227-7016	Rights in Bid or Proposal Information	JAN 2023
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends	JAN 2023
252.227-7030	Technical Data--Withholding Of Payment	MAR 2000
252.227-7037	Validation of Restrictive Markings on Technical Data	JAN 2023
252.231-7000	Supplemental Cost Principles	DEC 1991
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7007	Limitation Of Government's Obligation	APR 2014
252.232-7010	Levies on Contract Payments	DEC 2006
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel	JAN 2023
252.242-7000	Postaward Conference	DEC 1991
252.242-7004	Material Management And Accounting System	MAY 2011
252.243-7002	Requests for Equitable Adjustment	DEC 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services	NOV 2023
252.245-7003	Contractor Property Management System Administration	APR 2012
252.245-7005	Management and Reporting of Government Property	JAN 2024
252.246-7003	Notification of Potential Safety Issues	JAN 2023
252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System	JAN 2023
252.246-7008	Sources of Electronic Parts	JAN 2023
252.247-7023	Transportation of Supplies by Sea	OCT 2024

CLAUSES INCORPORATED BY FULL TEXT

52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (NOV 2021)

(a) Definitions. As used in this clause--

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror () has () does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) The Contractor shall update the information in the Federal Awardee Performance and Integrity Information System (FAPIIS) on a semi-annual basis, throughout the life of the contract, by posting the required information in the System for Award Management Management via <https://www.sam.gov>.

(b) As required by section 3010 of the Supplemental Appropriations Act, 2010 (Pub. L. 111-212), all information posted in FAPIIS on or after April 15, 2011, except past performance reviews, will be publicly available. FAPIIS consists of two segments--

(1) The non-public segment, into which Government officials and the Contractor post information, which can only be viewed by--

(i) Government personnel and authorized users performing business on behalf of the Government; or

(ii) The Contractor, when viewing data on itself; and

(2) The publicly-available segment, to which all data in the non-public segment of FAPIIS is automatically transferred after a waiting period of 14 calendar days, except for--

(i) Past performance reviews required by subpart 42.15;

(ii) Information that was entered prior to April 15, 2011; or

(iii) Information that is withdrawn during the 14-calendar-day waiting period by the Government official who posted it in accordance with paragraph (c)(1) of this clause.

(c) The Contractor will receive notification when the Government posts new information to the Contractor's record.

(1) If the Contractor asserts in writing within 7 calendar days, to the Government official who posted the information, that some of the information posted to the non-public segment of FAPIIS is covered by a disclosure exemption under the Freedom of Information Act, the Government official who posted the information must within 7 calendar days remove the posting from FAPIIS and resolve the issue in accordance with agency Freedom of Information procedures, prior to reposting the releasable information. The contractor must cite 52.209-9 and request removal within 7 calendar days of the posting to FAPIIS.

(2) The Contractor will also have an opportunity to post comments regarding information that has been posted by the Government. The comments will be retained as long as the associated information is retained, i.e., for a total period of 6 years. Contractor comments will remain a part of the record unless the Contractor revises them.

(3) As required by section 3010 of Pub. L. 111-212, all information posted in FAPIIS on or after April 15, 2011, except past performance reviews, will be publicly available.

(d) Public requests for system information posted prior to April 15, 2011, will be handled under Freedom of Information Act procedures, including, where appropriate, procedures promulgated under E.O. 12600.

(End of clause)

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Cost Plus Award Fee contract resulting from this solicitation.

(End of provision)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 10 days of contract expiration.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.

(End of clause)

52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

THIS STATEMENT IS FOR INFORMATION ONLY: IT IS NOT A WAGE DETERMINATION

Employee Class Monetary Wage-Fringe Benefits

Level 4 Drafter	GS-11
Electrician	GS-09
Electronics Tech Maintenance 3	GS-11
Electronics Tech Maintenance 2	GS-10
Engineering Technician 5	GS-12
Engineering Technician 4	GS-11
Engineering Technician 3	GS-10
General Maintenance Worker	GS-05
Grounds Maintenance Worker	GS-02
HVAC Mechanic	GS-09
Janitor	GS-02
Laborer	GS-02

Library Technician	GS-06
Secretary 3	GS-06
Supply Technician	GS-09
Warehouse Specialist	GS-06

(End of clause)

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS--NOTICE AND REPRESENTATION (JUN 2020)

(a) Definitions. As used in this provision--

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means--

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if--
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.
- (d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that--
 - (1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that--I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then--

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Joseph Haviland at joseph.a.haviland2.civ@us.navy.mil.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.246-11 HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT (DEC 2014)

(a) The Contractor shall comply with the higher-level quality standard(s) listed below.

ISO 9001-20

(b) The Contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts, in--

(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or

(2) When the technical requirements of a subcontract require--

- (i) Control of such things as design, work operations, in-process control, testing, and inspection; or
- (ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>

DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of provision)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>

DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of clause)

252.204-7019 NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)

(a) Definitions.

Basic Assessment, Medium Assessment, and High Assessment have the meaning given in the clause 252.204-7020, NIST SP 800-171 DoD Assessments.

Covered contractor information system has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this solicitation.

(b) Requirement. In order to be considered for award, if the Offeror is required to implement NIST SP 800-171, the Offeror shall have a current assessment (i.e., not more than 3 years old unless a lesser time is specified in the

solicitation) (see 252.204-7020) for each covered contractor information system that is relevant to the offer, contract, task order, or delivery order. The Basic, Medium, and High NIST SP 800-171 DoD Assessments are described in the NIST SP 800-171 DoD Assessment Methodology located at <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>.

(c) Procedures.

(1) The Offeror shall verify that summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) for all covered contractor information systems relevant to the offer.

(2) If the Offeror does not have summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the Offeror may conduct and submit a Basic Assessment to webptsmh@navy.mil for posting to SPRS in the format identified in paragraph (d) of this provision.

(d) Summary level scores. Summary level scores for all assessments will be posted 30 days post-assessment in SPRS to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) Basic Assessments. An Offeror may follow the procedures in paragraph (c)(2) of this provision for posting Basic Assessments to SPRS.

(i) The email shall include the following information:

(A) Cybersecurity standard assessed (e.g., NIST SP 800-171 Rev 1).

(B) Organization conducting the assessment (e.g., Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract--

(1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(2) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(ii) If multiple system security plans are addressed in the email described at paragraph (d)(1)(i) of this section, the Offeror shall use the following format for the report:

System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will be achieved

(2) Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system assessed:

- (i) The standard assessed (e.g., NIST SP 800-171 Rev 1).
- (ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).
- (iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.
- (iv) A brief description of the system security plan architecture, if more than one system security plan exists.
- (v) Date and level of the assessment, i.e., medium or high.
- (vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).
- (vii) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(3) Accessibility.

(i) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(ii) Authorized representatives of the Offeror for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(iii) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this section. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(End of provision)

252.204-7020 NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)

(a) Definitions.

Basic Assessment means a contractor's self-assessment of the contractor's implementation of NIST SP 800-171 that-

- (1) Is based on the Contractor's review of their system security plan(s) associated with covered contractor information system(s);
- (2) Is conducted in accordance with the NIST SP 800-171 DoD Assessment Methodology; and

(3) Results in a confidence level of "Low" in the resulting score, because it is a self-generated score.

Covered contractor information system has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

High Assessment means an assessment that is conducted by Government personnel using NIST SP 800-171A, Assessing Security Requirements for Controlled Unclassified Information that--

(1) Consists of--

(i) A review of a contractor's Basic Assessment;

(ii) A thorough document review;

(iii) Verification, examination, and demonstration of a Contractor's system security plan to validate that NIST SP 800-171 security requirements have been implemented as described in the contractor's system security plan; and

(iv) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "High" in the resulting score.

Medium Assessment means an assessment conducted by the Government that--

(1) Consists of--

(i) A review of a contractor's Basic Assessment;

(ii) A thorough document review; and

(iii) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "Medium" in the resulting score.

(b) Applicability. This clause applies to covered contractor information systems that are required to comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, in accordance with Defense Federal Acquisition Regulation System (DFARS) clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

(c) Requirements. The Contractor shall provide access to its facilities, systems, and personnel necessary for the Government to conduct a Medium or High NIST SP 800-171 DoD Assessment, as described in NIST SP 800-171 DoD Assessment Methodology at <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>, if necessary.

(d) Procedures. Summary level scores for all assessments will be posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) Basic Assessments. A contractor may submit, via encrypted email, summary level scores of Basic Assessments conducted in accordance with the NIST SP 800-171 DoD Assessment Methodology to webptsmh@navy.mil for posting to SPRS.

(i) The email shall include the following information:

(A) Version of NIST SP 800-171 against which the assessment was conducted.

(B) Organization conducting the assessment (e.g., Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract--

(1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(2) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(ii) If multiple system security plans are addressed in the email described at paragraph (b)(1)(i) of this section, the Contractor shall use the following format for the report:

System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will be achieved

(2) Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system security plan assessed:

(i) The standard assessed (e.g., NIST SP 800-171 Rev 1).

(ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) A brief description of the system security plan architecture, if more than one system security plan exists.

(v) Date and level of the assessment, i.e., medium or high.

(vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).

(vii) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(e) Rebuttals. (1) DoD will provide Medium and High Assessment summary level scores to the Contractor and offer the opportunity for rebuttal and adjudication of assessment summary level scores prior to posting the summary level scores to SPRS (see SPRS User's Guide https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf).

(2) Upon completion of each assessment, the contractor has 14 business days to provide additional information to demonstrate that they meet any security requirements not observed by the assessment team or to rebut the findings that may be of question.

(f) Accessibility.

(1) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(2) Authorized representatives of the Contractor for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(3) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this clause. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(g) Subcontracts.

(1) The Contractor shall insert the substance of this clause, including this paragraph (g), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services (excluding commercially available off-the-shelf items).

(2) The Contractor shall not award a subcontract or other contractual instrument, that is subject to the implementation of NIST SP 800-171 security requirements, in accordance with DFARS clause 252.204-7012 of this contract, unless the subcontractor has completed, within the last 3 years, at least a Basic NIST SP 800-171 DoD Assessment, as described in <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>, for all covered contractor information systems relevant to its offer that are not part of an information technology service or system operated on behalf of the Government.

(3) If a subcontractor does not have summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the subcontractor may conduct and submit a Basic Assessment, in accordance with the NIST SP 800-171 DoD Assessment Methodology, to webpmsmh@navy.mil for posting to SPRS along with the information required by paragraph (d) of this clause.

(End of clause)

252.225-7012 PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES (APR 2022)

(a) Definitions. As used in this clause--

Component means any item supplied to the Government as part of an end product or of another component.

End product means supplies delivered under a line item of this contract.

Qualifying country means a country with a reciprocal defense procurement memorandum of understanding or international agreement with the United States in which both countries agree to remove barriers to purchases of supplies produced in the other country or services performed by sources of the other country, and the memorandum

or agreement complies, where applicable, with the requirements of section 36 of the Arms Export Control Act (22 U.S.C. 2776) and with 10 U.S.C. 2457. Accordingly, the following are qualifying countries:

Australia
Austria
Belgium
Canada
Czech Republic
Denmark
Egypt
Estonia
Finland
France
Germany
Greece
Israel
Italy
Japan
Latvia
Lithuania
Luxembourg
Netherlands
Norway
Poland
Portugal
Slovenia
Spain
Sweden
Switzerland
Turkey
United Kingdom of Great Britain and Northern Ireland.

Structural component of a tent--

(i) Means a component that contributes to the form and stability of the tent (e.g., poles, frames, flooring, guy ropes, pegs);

(ii) Does not include equipment such as heating, cooling, or lighting.

United States means the 50 States, the District of Columbia, and outlying areas.

U.S.-flag vessel means a vessel of the United States or belonging to the United States, including any vessel registered or having national status under the laws of the United States.

(b) The Contractor shall deliver under this contract only such of the following items, either as end products or components, that have been grown, reprocessed, reused, or produced in the United States:

(1) Food.

(2) Clothing and the materials and components thereof, other than sensors, electronics, or other items added to, and not normally associated with, clothing and the materials and components thereof. Clothing includes items such as outerwear, headwear, underwear, nightwear, footwear, hosiery, handwear, belts, badges, and insignia.

(3) (i) Tents and structural components of tents;

(ii) Tarpaulins; or

(iii) Covers.

(4) Cotton and other natural fiber products.

(5) Woven silk or woven silk blends.

(6) Spun silk yarn for cartridge cloth.

(7) Synthetic fabric, and coated synthetic fabric, including all textile fibers and yarns that are for use in such fabrics.

(8) Canvas products.

(9) Wool (whether in the form of fiber or yarn or contained in fabrics, materials, or manufactured articles).

(10) Any item of individual equipment (Federal Supply Class 8465) manufactured from or containing fibers, yarns, fabrics, or materials listed in this paragraph (b).

(c) This clause does not apply--

(1) To items listed in section 25.104(a) of the Federal Acquisition Regulation (FAR), or other items for which the Government has determined that a satisfactory quality and sufficient quantity cannot be acquired as and when needed at U.S. market prices;

(2) To incidental amounts of cotton, other natural fibers, or wool incorporated in an end product, for which the estimated value of the cotton, other natural fibers, or wool--

(i) Is not more than 10 percent of the total price of the end product; and (ii) Does not exceed the simplified acquisition threshold in FAR part 2;

(3) To waste and byproducts of cotton or wool fiber for use in the production of propellants and explosives;

(4) To foods, other than fish, shellfish, or seafood, that have been manufactured or processed in the United States, regardless of where the foods (and any component if applicable) were grown or produced. Fish, shellfish, or seafood manufactured or processed in the United States and fish, shellfish, or seafood contained in foods manufactured or processed in the United States shall be provided in accordance with paragraph (d) of this clause;

(5) To chemical warfare protective clothing produced in a qualifying country; or

(6) To fibers and yarns that are for use in synthetic fabric or coated synthetic fabric (but does apply to the synthetic or coated synthetic fabric itself), if--

(i) The fabric is to be used as a component of an end product that is not a textile product. Examples of textile products, made in whole or in part of fabric, include--

(A) Draperies, floor coverings, furnishings, and bedding (Federal Supply Group 72, Household and Commercial Furnishings and Appliances);

(B) Items made in whole or in part of fabric in Federal Supply Group 83, Textile/leather/furs/apparel/findings/tents/flags, or Federal Supply Group 84, Clothing, Individual Equipment and Insignia;

(C) Upholstered seats (whether for household, office, or other use); and

(D) Parachutes (Federal Supply Class 1670); or

(ii) The fibers and yarns are para-aramid fibers and continuous filament para-aramid yarns manufactured in a qualifying country.

(d)(1) Fish, shellfish, and seafood delivered under this contract, or contained in foods delivered under this contract--

(i) Shall be taken from the sea by U.S.-flag vessels; or

(ii) If not taken from the sea, shall be obtained from fishing within the United States; and

(2) Any processing or manufacturing of the fish, shellfish, or seafood shall be performed on a U.S.-flag vessel or in the United States.

(End of clause)

252.237-7023 CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) Definitions. As used in this clause-

(1) Essential contractor service means a service provided by a firm or individual under contract to DoD to support mission-essential functions, such as support of vital systems, including ships owned, leased, or operated in support of military missions or roles at sea; associated support activities, including installation, garrison, and base support services; and similar services provided to foreign military sales customers under the Security Assistance Program. Services are essential if the effectiveness of defense systems or operations has the potential to be seriously impaired by the interruption of these services, as determined by the appropriate functional commander or civilian equivalent.

(2) Mission-essential functions means those organizational activities that must be performed under all circumstances to achieve DoD component missions or responsibilities, as determined by the appropriate functional commander or civilian equivalent. Failure to perform or sustain these functions would significantly affect DoD's ability to provide vital services or exercise authority, direction, and control.

(b) The Government has identified all or a portion of the contractor services performed under this contract as essential contractor services in support of mission-essential functions. These services are listed in the Performance Work Statement located in Section C.

(c)(1) The Mission-Essential Contractor Services Plan submitted by the Contractor, is incorporated in this contract.

(2) The Contractor shall maintain and update its plan as necessary. The Contractor shall provide all plan updates to the Contracting Officer for approval.

(3) As directed by the Contracting Officer, the Contractor shall participate in training events, exercises, and drills associated with Government efforts to test the effectiveness of continuity of operations procedures and practices.

(d)(1) Notwithstanding any other clause of this contract, the Contractor shall be responsible to perform those services identified as essential contractor services during crisis situations (as directed by the Contracting Officer), in accordance with its Mission-Essential Contractor Services Plan.

(2) In the event the Contractor anticipates not being able to perform any of the essential contractor services identified in accordance with paragraph (b) of this clause during a crisis situation, the Contractor shall notify the Contracting Officer or other designated representative as expeditiously as possible and use its best efforts to cooperate with the Government in the Government's efforts to maintain the continuity of operations.

(e) The Government reserves the right in such crisis situations to use Federal employees, military personnel, or contract support from other contractors, or to enter into new contracts for essential contractor services.

(f) Changes. The Contractor shall segregate and separately identify all costs incurred in continuing performance of essential services in a crisis situation. The Contractor shall notify the Contracting Officer of an increase or decrease in costs within ninety days after continued performance has been directed by the Contracting Officer, or within any additional period that the Contracting Officer approves in writing, but not later than the date of final payment under the contract. The Contractor's notice shall include the Contractor's proposal for an equitable adjustment and any data supporting the increase or decrease in the form prescribed by the Contracting Officer. The parties shall negotiate an equitable price adjustment to the contract price, delivery schedule, or both as soon as is practicable after receipt of the Contractor's proposal.

(g) The Contractor shall include the substance of this clause, including this paragraph (g), in subcontracts for the essential services.

(End of clause)

252.237-7024 NOTICE OF CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) Definitions. Essential contractor service and mission-essential functions have the meanings given in the clause at 252.237-7023, Continuation of Essential Contractor Services, in this solicitation.

(b) The offeror shall provide with its offer a written plan describing how it will continue to perform the essential contractor services listed in the Performance Work Statement during periods of crisis. The offeror shall--

(1) Identify provisions made for the acquisition of essential personnel and resources, if necessary, for continuity of operations for up to 30 days or until normal operations can be resumed;

(2) Address in the plan, at a minimum--

(i) Challenges associated with maintaining essential contractor services during an extended event, such as a pandemic that occurs in repeated waves;

(ii) The time lapse associated with the initiation of the acquisition of essential personnel and resources and their actual availability on site;

(iii) The components, processes, and requirements for the identification, training, and preparedness of personnel who are capable of relocating to alternate facilities or performing work from home;

(iv) Any established alert and notification procedures for mobilizing identified "essential contractor service" personnel; and

(v) The approach for communicating expectations to contractor employees regarding their roles and responsibilities during a crisis.

(End of provision)

252.245-7005 MANAGEMENT AND REPORTING OF GOVERNMENT PROPERTY (JAN 2024)

(a) Definitions. As used in this clause--

As is means that the Government makes no warranty with respect to the serviceability and/or suitability of the Government property for contract performance and that the Government will not pay for any repairs, replacement, and/or refurbishment of the property.

Commercial and Government Entity (CAGE) code means--

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Contractor-acquired property, contractor inventory, Government property, Government-furnished property, and loss of Government property have the meanings given in the Federal Acquisition Regulation (FAR) 52.245-1, Government Property, clause of this contract.

Demilitarization means the act of eliminating the functional capabilities and inherent military design features from DoD personal property. Methods and degree range from removal and destruction of critical features to total destruction by cutting, tearing, crushing, mangling, shredding, melting, burning, etc.

Export-controlled items has the meaning given in the Defense Federal Acquisition Regulation Supplement (DFARS) 252.225-7048, Export-Controlled Items, clause of this contract.

Ineligible transferee means an individual, an entity, or a country--

(1) Excluded from Federal programs by the General Services Administration as identified in the System for Award Management Exclusions located at <https://sam.gov>;

(2) Delinquent on obligations to the U.S. Government under surplus sales contracts;

(3) Designated by the Department of Defense as ineligible, debarred, or suspended from defense contracts; or

(4) Subject to denial, debarment, or other sanctions under export control laws and related laws and regulations, and orders administered by the Department of State, the Department of Commerce, the Department of Homeland Security, or the Department of the Treasury.

Item unique identification means a system of assigning, reporting, and marking DoD property with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items.

National stock number means a 13-digit stock number used to identify items of supply. It consists of a four-digit Federal Supply Code and a nine-digit National Item Identification Number.

Reparable item means an item, typically in unserviceable condition, furnished to the contractor for maintenance, repair, modification, or overhaul.

Scrap means property that has no value except for its basic material content. For purposes of demilitarization, scrap is defined as recyclable waste and discarded materials derived from items that have been rendered useless beyond

repair, rehabilitation, or restoration such that the item's original identity, utility, form, fit, and function have been destroyed. Items can be classified as scrap if processed by cutting, tearing, crushing, mangling, shredding, or melting. Intact or recognizable components and parts are not "scrap."

Serially-managed item means an item designated by DoD to be uniquely tracked, controlled, or managed in maintenance, repair, and/or supply systems by means of its serial number or unique item identifier.

Serviceable or usable property means property with potential for reutilization or sale as is or with minor repairs or alterations.

Supply condition code means a classification of materiel in terms of readiness for issue and use or to identify action underway to change the status of materiel.

Unique item identifier (UII) means a set of data elements marked on an item that is globally unique and unambiguous. The term includes a concatenated UII or a DoD recognized unique identification equivalent.

(b) Reporting Government property. (1) The Contractor shall use the Government Furnished Property (GFP) module of the Procurement Integrated Enterprise Environment (PIEE) to--

(i) Report receipt of GFP;

(ii) Report the transfer of GFP to another DoD contract;

(iii) Report the shipment of GFP to the Government or to a contractor. The GFP module generates the electronic equivalent of the DD Form 1149, DD Form 1348-1, or other required shipping documents;

(iv) Report when serially-managed items of GFP are incorporated into a higher-level component, assembly, or end item;

(v) Report the loss of Government property in accordance with paragraph (f)(1)(vii) of the FAR 52.245-1 clause of this contract;

(vi) Complete the plant clearance inventory schedule in accordance with paragraph (j)(2) of the FAR 52.245-1 clause of this contract, unless disposition instructions are otherwise included in this contract. The GFP module generates the electronic equivalent of the Standard Form (SF) 1428, Inventory Disposal Schedule; and

(vii) Submit a request to buy back or to convert to GFP items of Contractor-acquired property.

(2) Information regarding the GFP module is available in the GFP Module Vendor Guide at <https://dodprocurementtoolbox.com/site-pages/gfp-resources>. Users may also register for access to the GFP module and obtain training on the PIEE home page at <https://piee.eb.mil>.

(3) In complying with paragraphs (b)(1)(i) through (iv) of this clause, the Contractor shall report the updated status of the property to the GFP module within 7 business days of the date the change in status occurs, unless otherwise specified in the contract.

(4) The Contractor shall use Wide Area WorkFlow in accordance with DFARS Appendix F, Material Inspection and Receiving Report, to report the shipment of reparable items after completion of repair, maintenance, modification, or overhaul.

(5) When Government property is in the possession of subcontractors, the Contractor shall ensure that reporting is accomplished using the data elements required in paragraph (c) of this clause.

(c) Records of Government property. To facilitate reporting of Government property to the GFP module, the Contractor's property records, in addition to the requirements of paragraph (f)(1)(iii) of the FAR 52.245-1 clause of this contract, shall enable recording of the following data elements:

(1) National stock number (NSN). If an NSN is not available, use either the combination of the manufacturer's CAGE code and part number, or model number.

(2) CAGE code on the accountable Government contract.

(3) Received/sent (shipped) date.

(4) Accountable Government contract number.

(5) Serial number (for serially-managed items that do not have a UII); and

(6) Supply condition code (only required for reporting of reparable items). For information on Federal supply condition codes, see DLM 4000.25, Defense Logistics Management Standards (DLMS), Volume 2, Supply Standards and Procedures, Appendix 2.5 at

<https://www.dla.mil/HQ/InformationOperations/DLMS/elibrary/manuals/v2/>.

(d) Marking, reporting, and UII registration of GFP requirements. The Contractor--

(1) Shall assign the UII and mark the reparable items identified as serially managed in the GFP attachment to this contract with an item unique identification (IUID) data matrix, when the technical drawing for the item is accessible to the Contractor and includes IUID data matrix location and marking method;

(2) Shall report the UII either before or during shipment of the repaired item;

(3) Is not required to mark items that were previously marked with an IUID data matrix and registered in accordance with DFARS 252.211-7003, Item Unique Identification and Valuation; and

(4) Shall assign a new UII, then mark and register the item, when the conditions of paragraph (d)(1) are met, if an item is found to be marked but not registered in the IUID Registry.

(e) Disposing of Government property. (1) The Contractor shall complete the plant clearance inventory schedule using the plant clearance capability of the GFP module of the PIEE to generate an electronic equivalent of the SF 1428, Inventory Disposal Schedule. The plant clearance inventory schedule requires the following:

(i) If known, the applicable Federal supply code (FSC) for all items, except items in scrap condition.

(ii) If known, the manufacturer name for all aircraft components under Federal supply group 16 or 17 and FSCs 2620, 2810, 2915, 2925, 2935, 2945, 2995, 4920, 5821, 5826, 5841, 6340, and 6615.

(iii) The manufacturer name, make, model number, model year, and serial number for all aircraft under FSCs 1510 and 1520.

(2) If the schedules are acceptable, the plant clearance officer will confirm acceptance in the GFP module plant clearance capability, which will transmit a notification to the Contractor. The electronic acceptance is equivalent to the DD Form 1637, Notice of Acceptance of Inventory.

(f) Demilitarization, mutilation, and destruction. If demilitarization, mutilation, or destruction of contractor inventory is required, the Contractor shall demilitarize, mutilate, or destroy contractor inventory, in accordance with the terms and conditions of the contract and consistent with Defense Demilitarization Manual, DoD Manual (DoDM) 4160.28-M, edition in effect as of the date of this contract. If the property is available for purchase, the

plant clearance officer may authorize the purchaser to demilitarize, mutilate, or destroy as a condition of sale provided the property is not inherently dangerous to public health and safety.

(g) Classified Contractor inventory. The Contractor shall dispose of classified contractor inventory in accordance with applicable security guides and regulations or as directed by the Contracting Officer.

(h) Inherently dangerous Contractor inventory. Contractor inventory that is dangerous to public health or safety shall not be disposed of unless rendered innocuous or until adequate safeguards are provided.

(i) Contractor inventory located in foreign countries. Consistent with contract terms and conditions, property disposition shall be in accordance with foreign and U.S. laws and regulations, including laws and regulations involving export controls, host nation requirements, final governing standards, and government-to-government agreements. The Contractor's responsibility to comply with all applicable laws and regulations regarding export-controlled items exists independent of, and is not established or limited by, the information provided by this clause.

(j) Disposal of scrap--(1) Contractor scrap procedures. (i) The Contractor shall include, within its property management procedure, a process for the accountability and management of Government-owned scrap. The process shall, at a minimum, provide for the effective and efficient disposition of scrap, including sales to scrap dealers, so as to minimize costs, maximize sales proceeds, and contain the necessary internal controls for mitigating the improper release of non-scrap property.

(ii) The Contractor may commingle Government and contractor-owned scrap and provide routine disposal of scrap, with plant clearance officer concurrence, when determined to be effective and efficient.

(2) Scrap warranty. The plant clearance officer may require the Contractor to secure from scrap buyers a DD Form 1639, Scrap Warranty.

(k) Sale of surplus Contractor inventory--(1) Sales procedures.

(i) The Contractor shall conduct sales of contractor inventory (both useable property and scrap) in accordance with the requirements of this contract and plant clearance officer direction. The Contractor shall include in its invitation for bids the sales terms and conditions provided by the plant clearance officer.

(ii) The Contractor may conduct internet-based sales, to include use of a third party.

(iii) If the Contractor wishes to bid on the sale, the Contractor or its employees shall submit bids to the plant clearance officer prior to soliciting bids from other prospective bidders.

(iv) The Contractor shall solicit bids to obtain adequate competition. Negotiated sales are subject to obtaining such competition as is feasible under the circumstances of the negotiated sale.

(v) The Contractor shall solicit bids at least 15 calendar days before bid opening to allow adequate opportunity to inspect the property and prepare bids.

(vi) For large sales, the Contractor may use summary lists of items offered as bid sheets with detailed descriptions attached.

(vii) In addition to providing notice of the proposed sale to prospective bidders, the Contractor may, when the results are expected to justify the additional expense, display a notice of the proposed sale in appropriate public places, e.g., publish a sales notice on the internet, in appropriate trade journals or magazines, and in local newspapers.

(viii) The plant clearance officer or designated Government representative will witness the bid opening. The Contractor shall submit the bid abstract in electronic format to the plant clearance officer within 2 days of bid opening. If the Contractor is unable to submit the bid abstract electronically, the Contractor may submit 2

copies of the abstract manually within 2 days of bid opening. The plant clearance officer will not approve award to any bidder who is an ineligible transferee.

(2) Required terms and conditions for sales contracts. The Contractor shall include the following terms and conditions in sales contracts:

(i) For sales contracts or other documents transferring title:

"The Purchaser certifies that the property covered by this contract will be used in [insert name of country]. In the event of resale or export by the Purchaser of any of the property, the Purchaser agrees to obtain the appropriate U.S. and foreign export or re-export license approval."

(ii) For sales contracts that require demilitarization, mutilation, or destruction of property:

"The following items [insert list provided by plant clearance officer] require demilitarization, mutilation, or destruction by the Purchaser. Additional instructions are provided in accordance with Defense Demilitarization Manual, DoDM 4160.28-M, edition in effect as of the date of this sales contract. A Government representative will certify and verify demilitarization of items. Prepare demilitarization certificates in accordance with DoDM 4160.28, Volume 2, section 4.5, DEMIL Certificate (see figure 2, Example DEMIL Certificate)."

(iii) Removal and title transfer:

"Property requiring demilitarization shall not be removed, and title shall not pass to the Purchaser, until demilitarization has been accomplished and verified by a Government representative."

(iv) Assumption of cost incident to demilitarization:

"The Purchaser agrees to assume all costs incident to the demilitarization and to restore the working area to its present condition after removing the demilitarized property."

(v) Failure to demilitarize:

"If the Purchaser fails to demilitarize, mutilate, or destroy the property as specified in the sales contract, the Contractor may, upon giving 10 days written notice to the Purchaser--

(A) Repossess, demilitarize, and return the property to the Purchaser, in which case the Purchaser hereby agrees to pay to the Contractor, prior to the return of the property, all costs incurred by the Contractor in repossessing, demilitarizing, and returning the property;

(B) Repossess, demilitarize, and resell the property, and charge the defaulting Purchaser with all costs incurred by the Contractor. The Contractor shall deduct these costs from the purchase price and refund the balance of the purchase price, if any, to the Purchaser. In the event the costs exceed the purchase price, the defaulting Purchaser hereby agrees to pay these costs to the Contractor; or

(C) Repossess and resell the property under similar terms and conditions, and charge the defaulting Purchaser with all costs incurred by the Contractor. The Contractor shall deduct these costs from the original purchase price and refund the balance of the purchase price, if any, to the defaulting Purchaser. Should the excess costs to the Contractor exceed the purchase price, the defaulting Purchaser hereby agrees to pay these costs to the Contractor."

(l) Restrictions on purchase or retention of Contractor inventory. The Contractor may not knowingly sell the inventory to any person or that person's agent, employee, or household member if that person--

(1) Is a civilian employee of DoD or the U.S. Coast Guard;

(2) Is a member of the Armed Forces of the United States, including the U.S. Coast Guard; or

(3) Has any functional or supervisory responsibilities for or within DoD's property disposal, disposition, or plant clearance programs or for the disposal of contractor inventory.

(m) Proceeds from sales of surplus property. Unless otherwise provided in the contract, the proceeds of any sale, purchase, or retention shall be--

(1) Forwarded to the Contracting Officer;

(2) Credited to the Government as part of the settlement agreement pursuant to the termination of the contract;

(3) Credited to the price or cost of the contract; or

(4) Applied as otherwise directed by the Contracting Officer.

(End of clause)

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK/PERFORMANCE WORK STATEMENT.

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The email address and telephone number of the Contracting Officer is:

NAME:	Joseph Haviland
EMAIL ADDRESS:	joseph.a.haviland2.civ@us.navy.mil
TELEPHONE:	(564) 230-2394

SECTION I LANGUAGE

52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003)

(a) Definitions. As used in this clause--

Commercial product, commercial service, and commercially available off-the-shelf item have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.

Subcontract includes a transfer of commercial products or commercial services between divisions, subsidiaries, or affiliates of the Contractor or subcontractor at any tier.

(b) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(c)(1) The Contractor shall insert the following clauses in subcontracts for commercial products or commercial services:

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509), if the subcontract exceeds the threshold specified in FAR 3.1004(a) on the date of subcontract award, and has a performance period of more than 120 days. In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(ii) 52.203-15, Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5), if the subcontract is funded under the Recovery Act.

(iii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community--see FAR 3.900(a).

(iv) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017).

(v) 52.204-21, Basic Safeguarding of Covered Contractor Information Systems (NOV 2021), other than subcontracts for commercially available off-the-shelf items, if flow down is required in accordance with paragraph (c) of FAR clause 52.204-21.

(vi) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(vii) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232)

(viii) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(ix)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(x) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(xi) [Reserved]

(xii) [Reserved]

(xiii) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212(a)).

(xiv) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xv) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xvi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496), if flow down is required in accordance with paragraph (f) of FAR clause 52.222-40.

(xvii)(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xviii) 52.222-55, Minimum Wages for Contractor Workers under Executive Order 14026 (JAN 2022), if flowdown is required in accordance with paragraph (k) of FAR clause 52.222-55.

(xix) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706), if flow down is required in accordance with paragraph (m) of FAR clause 52.222-62.

(xx)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a) if flow down is required in accordance with 52.224-3(f).

(B) Alternate I (JAN 2017) of 52.224-3, if flow down is required in accordance with 52.224-3(f) and the agency specifies that only its agency-provided training is acceptable).

(xxi) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxii) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023), if flow down is required in accordance with paragraph (c) of FAR clause 52.232-40.

(xxiii) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxiv) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631), if flow down is required in accordance with paragraph (d) of FAR clause 52.247-64).

(2) While not required, the Contractor may flow down to subcontracts for commercial products or commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(d) The Contractor shall include the terms of this clause, including this paragraph (d), in subcontracts awarded under this contract.

(End of clause)

Section J - List of Documents, Exhibits and Other Attachments

SECTION J LANGUAGE

Exhibit A	Attachment
Attachment 1	WAN Communication Support
Attachment 2	Environmental Specification
Attachment 3	DD Form 254
Attachment 4	SAASM PPIP for Puerto Rico Sites
Attachment 5	CDRLs and Data Distribution List
Attachment 6	GFP
Attachment 7	DOL SCA Wage Determinations: 15-4313 Rev. 26 dated 7/24/2024 New Kent, VA 15-4341 Rev. 27 dated 7/24/2024 Chesapeake, VA 15-5311 Rev. 24 dated 7/24/2024 Freer, TX (Duval County) 15-5305 Rev. 24 dated 7/24/2024 Premont, TX (Jim Wells County) 15-5703 Rev. 23 dated 7/24/2024 Juana Diaz, PR 15-5713 Rev. 24 dated 7/24/2024 Vieques, PR
Attachment 8	QASP
Attachment 9	Corporate Experience & Past Performance Form
Attachment 10	Ground Maintenance Diagrams
Attachment 11	ROTHR Admin Network
Attachment 12	ROTHR Historical Data
Attachment 13	CAP Cost Type Contract
Attachment 14	SITREP
Attachment 15	Corrective Action/Maintenance Data Collection report (example)
Attachment 16	ROTHR Major Subsystems Table
Attachment 17	Subcontracting Plan – TBD

Section K - Representations, Certifications and Other Statements of Offerors

CLAUSES INCORPORATED BY REFERENCE

52.203-2	Certificate Of Independent Price Determination	APR 1985
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	SEP 2024
52.204-5	Women-Owned Business (Other Than Small Business)	OCT 2014
52.204-6	Unique Entity Identifier	OCT 2016
52.209-5	Certification Regarding Responsibility Matters	AUG 2020
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
52.222-22	Previous Contracts And Compliance Reports	FEB 1999
52.222-25	Affirmative Action Compliance	APR 1984
52.230-1	Cost Accounting Standards Notices And Certification	JUN 2020
252.209-7002	Disclosure of Ownership or Control by a Foreign Government	DEC 2022
252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY 2022
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region - Representation	JUN 2023
252.225-7973 (Dev)	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems - Representation (DEVIATION 2024-O0014)	AUG 2024
252.227-7017	Identification and Assertion of Use, Release, or Disclosure Restrictions	JAN 2023

CLAUSES INCORPORATED BY FULL TEXT

52.204-3 TAXPAYER IDENTIFICATION (OCT 1998)

(a) Definitions.

Common parent, as used in this provision, means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Taxpayer Identification Number (TIN), as used in this provision, means the number required by the Internal Revenue Service (IRS) to be used by the offeror in reporting income tax and other returns. The TIN may be either a Social Security Number or an Employer Identification Number.

(b) All offerors must submit the information required in paragraphs (d) through (f) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the IRS. If the resulting contract is subject to the payment reporting requirements described in Federal Acquisition Regulation (FAR) 4.904, the failure or refusal by the offeror to furnish the information may result in a 31 percent reduction of payments otherwise due under the contract.

(c) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(d) Taxpayer Identification Number (TIN).

___ TIN:-----

___ TIN has been applied for.

___ TIN is not required because:

___ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

___ Offeror is an agency or instrumentality of a foreign government;

___ Offeror is an agency or instrumentality of the Federal Government.

(e) Type of organization.

___ Sole proprietorship;

___ Partnership;

___ Corporate entity (not tax-exempt);

___ Corporate entity (tax-exempt);

___ Government entity (Federal, State, or local);

___ Foreign government;

___ International organization per 26 CFR 1.6049-4;

___ Other-----

(f) Common parent.

___ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision.

___ Name and TIN of common parent:

Name-----

TIN-----

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph

(d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [☐] will, [☐] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [☐] does, [☐] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the

additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (OCT 2020)

(a) Definitions. As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) Representations.

(1) The Offeror represents that it [____] does, [____] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [____] does, [____] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is [insert NAICS code].

(2) The small business size standard is [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that--

(i) It [____] is, [____] is not a small business concern; or

(ii) It [____] is, [____] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [____] is, [____] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(6) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not a veteran-owned small business concern.

(7) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not an SDVOSB concern.

(8) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it [____] is, [____] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(9) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [____] is, [____] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [____] is, [____] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall—

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022)

(a) Definition. Covered DoD official is defined in the clause at 252.203-7000, Requirements Relating to Compensation of Former DoD Officials.

(b) By submission of this offer, the Offeror represents, to the best of its knowledge and belief, that all covered DoD officials employed by or otherwise receiving compensation from the Offeror, and who are expected to undertake activities on behalf of the Offeror for any resulting contract, are presently in compliance with all applicable post-employment restrictions, including those contained in 18 U.S.C. 207, 41 U.S.C. 2101-2107, 5 CFR part 2641,

section 1045 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), and Federal Acquisition Regulation 3.104-2.

(End of provision)

Section L - Instructions, Conditions and Notices to Bidders

SECTION L LANGUAGE**PREPARATION OF PROPOSALS/COST LIMITATION CEILINGS ON INDIRECT RATES (SEP 2015)**

Offerors who are considering the use of cost limitation ceilings in their proposal are advised to refer to “Cost Limitation Ceilings on Indirect Rates” contained herein.

Site Visit Information

Site visits have been scheduled for all interested offerors. Attendance is not mandatory and offerors may elect to attend one or more site visits offered.

Each site visit will consist of a walking tour of the site including Government provided facilities, work spaces, and radar transmit/receive systems. A government representative will conduct each site visit tour and will only provide a brief description of the facilities and spaces. No questions or conversations to local government representative or current contractor are allowed during the site visit. All communication and/or questions shall be submitted by the offeror in writing to the Contracting Office. Written responses to these questions and communications will be addressed by the Contracting Office via a solicitation amendment(s). Offerors are not permitted to use cameras, video, and other visual recording devices during the site visit at any location. Voice-only recorders may be used at all sites during the site visits.

Registration: If you plan to attend any of the scheduled site visits you are required to pre-register via email to the FSSC point of contact, Michelle Corsino at michelle.corsino.civ@us.navy.mil no later than close of business on Friday, **13 June 2025** with a copy of the email request sent to lauren.a.lauver.civ@us.navy.mil at NFLC Norfolk, Contracting Department. Requests received after **13 June 2025** may be denied. Successful registration will be confirmed via a responding email and failure to register will prohibit attendance. The offeror shall submit the following registration data for each applicable site location the offeror requests to visit: (1) company name, (2) no more than two company points of contact or representatives' names (Last Name, First Name, Middle Initial), (3) Date of Birth for each of the two POCs, (4) contact phone numbers/email addresses, and (5) the site the company POCs request to visit. The date/time of the site visits is subject to Government discretion and may change. In the event that the date/time of the site visits change the Government will give offerors advance notice.

Any additional information, such as directions to each site, Government POC's, and other information/special instructions, will be provided by Michelle Corsino to those who have successfully registered to attend one or more site visits.

- Chesapeake, Virginia**

Date: **8 July 2025** Start: **10:00AM EST** Stop: **12:00PM EST**
Bldgs 310, 344, 363, 446, Receiver (Rx) Site

- New Kent, Virginia**

Date: **9 July 2025** Start: **10:00AM EST** Stop: **12:00PM EST**
Bldgs NK-1, NK-3, NK-4, Transmitter (Tx) Site

- Juana Diaz/Fort Allen, Puerto Rico**

Date: **15 July 2025** Start: **10:00AM EST** Stop: **12:00PM EST**
Bldgs PR-1, PR-2, Receiver (Rx) Site

- Vieques, Puerto Rico**

Date: **16 July 2025** Start: **10:00AM EST** Stop: **12:00PM EST**

Bldgs PX-1, PX-2, PX-3, Transmitter (Tx) Site

- **Premont, Texas**

Date: **22 July 2025** Start: **10:00AM CST** Stop: **12:00PM CST**
 Bldgs TX-1, TX-2, TX-3, Transmitter (Tx) Site

- **Freer, Texas**

Date: **23 July 2025** Start: **10:00AM CST** Stop: **12:00PM CST**
 Bldgs: TR-1, TR-2, Receiver (Rx) Site

SUBMISSION OF PROPOSALS (BEST VALUE/TRADE-OFF)

I. GENERAL

In addition to instructions to offerors contained elsewhere in this solicitation, the following instructions are provided.

Proposals shall be submitted electronically via email to lauren.a.lauver.civ@us.navy.mil. Any other method of delivery (e.g., hard copy, CD, thumb drive, portal, etc.) will not be accepted. Proposals shall be received no later than DATE and TIME FOR RECEIPT OF PROPOSAL specified elsewhere in the solicitation. Offerors shall comply with the detailed instructions for the format and content of the proposals contained herein; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award. All electronic files and versions of offerors' proposals shall be submitted in Adobe Acrobat and Microsoft Office Suite (Excel) formats and be in a locked and searchable format. The offeror shall be responsible for ensuring that its submissions are virus free.

The Navy Electronic Commerce OnLine (NECO) website has a "submit bid" button next to the solicitation number. Offerors are cautioned NOT to use the "submit bid" button on the NECO website to transmit or submit its proposal in response to the solicitation. Faxes and/or responses through NECO, or any other method, are not acceptable.

Offerors are strongly encouraged to confirm their proposal was received PRIOR to the closing date and time. It is the responsibility of the offerors to ensure that the Contracting Office has received their entire proposal, with all attachments, PRIOR to the solicitation closing date and time. Only the documents received prior to the solicitation closing date and time will be evaluated. Any inquiries regarding this solicitation should be addressed in writing via email to lauren.a.lauver.civ@us.navy.mil.

Offerors should include the following information in the Subject Line of their electronic submission
Proposal - N00189-25-R-Z003 – (Name of Offeror) – Email (#) of (#)]

Offerors shall submit their proposals in two separate volumes as follows:

Volume I	Non-Price Proposal	1 PDF File and 1 Microsoft Word File
Volume II	Price Proposal	1 PDF File and 1 Microsoft Excel File

For Volume I, the Non-Price Proposal shall be in PDF format, which should be locked and searchable. For Volume II, the Price Proposal shall be in Microsoft Excel format for the pricing spreadsheet and the narrative description shall be in PDF format, which should be locked and searchable. The offeror shall ensure that electronic submissions are virus-free.

In addition, offers consist of and shall include the following items as part of the Volume II Price Proposal:

Solicitation cover sheet with appropriate blocks completed by the offeror

Solicitation pricing pages completed by the offeror

Acknowledgement of solicitation amendments pursuant to FAR 52.215-1 (if not previously acknowledged).

Representations and Certifications completed by the offeror in accordance with instructions contained elsewhere in this solicitation. If the offeror has completed all of the representations and certifications required by this solicitation in SAM (www.sam.gov) in accordance with FAR 52.204-8 and DFARS 252.204-7007 ALT A, then the offeror need not submit the hardcopy Representations and Certifications.

The offeror's Small Business Subcontracting Plan (this Plan not required for Small Business offerors).

The completion and submission of the above items will constitute an offer (proposal) and will be considered the offeror's unconditional assent to the terms and conditions of this solicitation and any attachments and/or exhibits hereto. Alternate proposals are not authorized. Any affirmative exception to the material terms and conditions of the solicitation will render the offer ineligible for award. An objection to any of the terms and conditions of the solicitation will constitute a deficiency (see FAR 15.001) which will make the offer ineligible for award.

Potential offerors are encouraged to carefully review all solicitation requirements and, if they have questions concerning the solicitation, should submit one consolidated list of questions concerning the solicitation via email to the solicitation point of contact, Lauren Lauver at lauren.a.lauver.civ@us.navy.mil, NO LATER THAN 5:00 pm, Philadelphia time, 1 calendar day after the last site visit. If the 1st calendar day after the completion of the site visits falls on a weekend, questions shall be submitted no later than the time specified on the following business day. Questions should be submitted as early as feasible prior to the above date and time; questions received later may be answered at the discretion of the Navy.

Volume I Non-price Proposal

This volume shall address Past Performance, Performance Approach, Management Approach, and Socio Economic Plan and include all information required for proposal evaluation.

This volume of the proposal shall exclude any pricing/cost information, except for the information required to be provided under the Socio-economic Plan factor, that would reveal the total costing/pricing detailed in Volume II of the proposal.

Each page of each copy should include the following legend:

Source Selection Information - See FAR 2.101 and 3.104

Volume II Price/Cost Proposal

This volume shall include the completed solicitation documents and a complete and detailed price/cost breakdown with all supporting information. Each page of each copy should include the following legend:

Source Selection Information - See FAR 2.101 and 3.104

IMPORTANT NOTES:

(1) Offerors shall respond to all requirements of the solicitation document. Offerors are cautioned not to alter the solicitation.

(2) In the event any person who is not a bona fide employee of the offeror participated in the creation, formulation, or writing of any portion of the proposal, a certificate to this effect shall be included in the proposal which shall be signed by an officer of the offeror. Such certificate shall identify the name of the person who is not a bona fide employee, that person's employment capacity, the name of the person's firm, the relationship of that firm to the offeror, and the portion of the proposal in which the person participated.

II. REQUIREMENTS FOR PROPOSAL CONTENT

(1) Any offeror who will be submitting CLASSIFIED data in its Non-price proposal shall first notify the Contracting Officer by contacting the point of contact in the solicitation. CLASSIFIED data that is forwarded as part of an offeror's proposal shall be housed in its own binder, separate from the unclassified port

(2) Introduction and Purpose - This section specifies the format that offerors should use in proposals submitted in response to this solicitation. The intent is not to restrict the offerors in the manner in which they will perform their work but rather to ensure a certain degree of uniformity in the format of the proposals for evaluation purposes.

(3) Each volume should contain the following items in addition to the other information required by this solicitation:

Cover:	The cover should indicate the following: Title of the proposal Volume Number (I or II) Solicitation number Name and address of offeror Contractor point of contact (POC) with POC's email address and phone number. DUNS and CAGE of offeror. Identification of original signature copies
Table of Contents:	The table of contents should provide detail sufficient to allow the important elements to be easily located. The use of tabs and dividers is encouraged.

(4) Requirements for Style: Each offeror shall submit a proposal that clearly and concisely sets forth the contractor's response to the requirements of the solicitation. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the offeror's lack of cost consciousness. Elaborate artwork, expensive paper or bindings, and expensive visual or other presentation aids are neither necessary nor desired. The proposal shall contain all the pertinent information in sufficient detail in the one area of the proposal where it contributes most critically to the discussion. When necessary, the offeror shall refer to the initial discussion and identify its location within its proposal.

(5) Page Limitations

Volume I, "Non-price Proposal," is limited to a maximum of **forty-five (45)** pages in length inclusive of any charts, diagrams, and/or other graphics. Each "page" is defined as one sheet, 8 ½ " x 11", with at least one inch margins on all sides, using a font with a point size of 12 or greater (e.g., "Times New Roman" style with 12 point font). Lines shall, at a minimum, be single-spaced. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 ½ " x 11" pages. The cover sheet, table of contents (not to exceed one page per volume), tabs, and dividers will not count toward the page limit. The exceptions to the font size requirement shown above are the "Past Performance Information Forms", tables, charts, and graphics which may be completed with a point size of 10 or greater. Pages submitted in excess of the page limitations described above will not be evaluated.

Volume II, "Price/Cost Proposal," is not page limited.

III. PROPOSAL CONTENT

(1) Volume I – Non-price Proposal

The Non-price evaluation factors are listed below in descending order of importance:

Past Performance
Performance Approach
Management Approach
Socio-Economic Plan

Past Performance will be the most important factor. The Performance Approach and Management Approach will be of equal importance. The Socio-Economic Plan will be of significantly less importance than any other factor.

(a) Past Performance

The offeror shall demonstrate relevant past performance or affirmatively state that it possesses no relevant past performance. Relevant past performance is performance under contracts or efforts within the past five years that is the same as, or similar to, the scope and magnitude of the work described by this solicitation.

To demonstrate its past performance, the offeror shall identify up to three of its most relevant contracts or efforts within the past five (5) years, and provide any other information the offeror considers relevant to the requirements of the solicitation. Offerors should provide a detailed explanation demonstrating the relevance of the contracts or efforts to the requirements of the solicitation. If subcontractor past performance is provided as part of the three of its most relevant contracts or efforts, the subcontractor past performance will be given weight relative to the scope and magnitude of the aspects of the work under the solicitation that the subcontractor is proposed to perform. Therefore, the offeror's proposal should detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform.

The references will be evaluated in the aggregate in order to allow offerors who may not have the entire scope and magnitude of the requirement under one individual contract to still be considered acceptable if past performance with the full scope and magnitude of the requirement can be demonstrated within the allotted number of references as described above.

The offeror should complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation. The forms will count toward the Volume I page limit described above. For additional information regarding a particular reference beyond that which will fit on the form, the offeror may continue onto another sheet of paper. Such continuation sheet(s) for submitted references will count toward the Volume I page limit.

The offeror should address its past performance in complying with requirements of the clauses at FAR 52.219-8, "Utilization of Small Business Concerns," and 52.219-9, "Small Business Subcontracting Plan."

(b) Performance Approach

The offeror shall provide in detail a performance approach that will successfully accomplish the requirements of the solicitation, including the PWS. The offeror should describe its approach to operating, maintaining and repairing of a high frequency radar system; effectively and efficiently minimize unscheduled maintenance; its approach to changing, upgrading and enhancing the system while ensuring like or better mission/functional reliability and performance; its approach to operating and maintaining the system in the absence of Level 3 drawings, incomplete routing procedures and/or technical data; as well as any risks associated with the solicitation, including the PWS; risks associated with implementation of the offeror's performance approach; techniques and actions to mitigate such risks; and explain whether the techniques and actions identified for risk mitigation have been successfully used by the offeror. The offeror should provide any other information the offeror considers relevant to the solicitation including the PWS.

(c) Management Approach

The offeror shall provide in detail a management approach that will successfully accomplish the requirements of the solicitation, including the PWS. The offeror should describe its approach to be fully staffed, prepared and ready to comply with all contract requirements beginning on the first day of contract performance; its approach to managing day-to-day operations as well a general staffing approach for utilization of the offeror's personnel resources that demonstrates an understanding of the skill sets required to successfully accomplish requirements identified in the RFP (DO NOT INCLUDE ANY RESUMES); its approach to managing personnel at each radar receive and transmit site; its approach to managing the OCC watch personnel; its approach for developing specialized positions, such as OCC operators, to fill future vacancies; its approach to the management of resources, including an approach for recruitment, development, and retention that demonstrates the offeror's plan to minimize staff turnover; its understanding and management approach for performing the RFP requirements in the Commonwealth of Puerto Rico; its approach to responding to contingencies, as well as any risks associated with the solicitation, including the PWS; risks associated with implementation of the offeror's management approach to include transition; techniques and actions to mitigate such risks; and explain whether the techniques and actions identified for risk mitigation have been successfully used by the offeror. The offeror should provide any other information the offeror considers relevant to the solicitation including the PWS.

(d) Socio-Economic Plan

The offeror shall address the extent of participation of small businesses, small disadvantaged businesses, women-owned small businesses, historically black colleges or universities and minority institutions, veteran-owned small businesses, service-disabled veteran-owned small businesses, and HUBZone small businesses in performance of any resultant contract. The solicitation, however, does not require participation by such entities. The offeror shall provide targets, expressed as dollars and percentages of total contract value, for small businesses, small disadvantaged businesses, women-owned small businesses, historically black colleges or universities and minority institutions, veteran-owned small businesses, service-disabled veteran-owned small businesses, and HUBZone small businesses in any of the North American Industry Classification System (NAICS) Major Groups as determined by the Department of Commerce. The targets may provide for participation by a prime contractor, joint venture partner, teaming arrangement member, or subcontractor. Targets will be incorporated into and become part of any resultant contract.

If the offeror fails to provide targets for the contract and/or any of the seven socio-economic factors, the offeror's proposal will be evaluated at zero percent and/or zero dollars for the contract and/or any socio-economic factor for which a target is not provided. However, an offeror that provides no socio-economic plan in response to this factor may be considered ineligible for award.

(2) Volume II – Price/Cost

Volume II, "Cost Proposal," is not page limited.

Each page of each copy of Volume II should include the following legend:

Source Selection Information - See FAR 2.101 and 3.104

The Cost Proposal in Volume II shall include the solicitation pricing pages completed by the offeror and a complete and detailed breakdown of the offeror's cost plus award fee (CPAF) with all supporting documentation. The offeror's cost proposal shall not deviate from the level of effort set forth in Section B of the solicitation. The cost proposal shall support the Non-cost proposal. The cost proposal shall include all elements of cost and such other cost information as considered appropriate to support the offeror's proposal. The burden of proof for establishing the realism of all proposed costs rests with the offeror. The cost and pricing information shall be completed in accordance with the following:

(a) Separate cost and pricing information shall be submitted for each time period specified in the Solicitation Section B – Supplies or Services and Prices.

(b) Supporting data including labor rates and hours, burden rates, material lists and costs, travel charges, and “other direct costs” used in developing the cost breakdown should be furnished. The supporting data for “other direct costs” shall include an itemization of those costs and an explanation and justification for each cost so itemized.

(c) Uncompensated Overtime. Uncompensated overtime is not encouraged as work schedules averaging more than 40 hours per week can, over a period of time, lead to degradation of performance. Pursuant to FAR 52.237-10, “Identification of Uncompensated Overtime,” offerors are reminded (1) “Whenever there is uncompensated overtime, the adjusted hourly rate (including uncompensated overtime), rather than the hourly rate, shall be applied to all proposed hours, whether regular or overtime hours”, (2) “All proposed labor hours subject to the adjusted hourly rate (including uncompensated overtime) shall be identified as either regular or overtime hours, by labor categories, and described at the same level of detail. This is applicable to all proposals whether the labor hours are at the prime or subcontract level. This includes uncompensated overtime hours that are in indirect cost pools for personnel whose regular hours are normally charged direct.” In that 52.237-10 requires that the offeror’s accounting practices used to estimate uncompensated overtime be consistent with the offeror’s cost accounting practices used to accumulate and report uncompensated overtime hours, each offeror proposing on the basis of uncompensated overtime should provide evidence of that consistency. Also, pursuant to FAR 52.237-10, each offeror proposing on the basis of uncompensated overtime is required to include a copy of its policy addressing uncompensated overtime with its proposal. To the extent that an offeror is proposing on the basis of uncompensated overtime, the offeror shall explain why the use of uncompensated overtime will not degrade the level of technical expertise required to fulfill the Government’s requirements.

(d) Direct Labor Rates. In order to verify the realism of the offeror's proposed direct labor rates, all offerors should submit, as part of their Cost Proposal, documentation substantiating the realism of their proposed direct labor rates. To the extent that an Offeror is proposing a subcontractor on a cost-reimbursement basis, the documentation substantiating the accuracy of the subcontractor’s proposed direct labor rates is also requested. Acceptable documentation may include the following:

- (1) Payroll data (if proposing current, named employees)
- (2) Actual billing records showing direct labor rates (if proposing current, named employees).
- (3) Copies of signed Letters of Intent that indicate agreed upon annual salary (if proposing named, new hires)
- (4) Copies of current or prior fiscal year DCMA Forward Pricing Rate Agreement (FPRA), the offeror’s Forward Pricing Rate Proposal (FPRP), Provisional Billing Rate Approval or Provisional Billing Rate Submission, whichever is most recent.
- (5) If labor category averages are used as consistent with the offeror's accounting practice and approved by DCAA, provide a detailed narrative and include the calculation used to establish the category average. For example, provide a list of the current salaries for all employees working in that labor category, divided by the number of current employees in that labor category.
- (6) If proposing rates that do not fall within one of the above criteria, provide a detailed, comprehensive description of the methodology used to establish the proposed direct rate. The description shall include both the source where the rate was obtained and a description of how the resulting rate was calculated. Merely stating that a "salary survey" or "market survey" was used is generally not sufficient.

In addition to the foregoing, the offeror should explain why it believes its proposed direct labor rates are realistic for the requirements to be performed, considering the technical and experiential qualifications necessary to accomplish the taskings.

In accordance with FAR 52.222-46 “Evaluation of Compensation for Professional Employees,” Offerors shall submit a total compensation plan setting forth salaries and fringe benefits proposed for the professional employees who will work under the Contract, including first-tier subcontractor employees. Supporting information should include data such as recognized national and regional compensation surveys and studies of professional, public and

private organizations used in establishing the total compensation structure. The compensation levels proposed should reflect a clear understanding of work to be performed and should indicate the capability of the proposed compensation structure to obtain and keep suitably qualified personnel to meet mission objectives. The salary rates or ranges must take into account differences in skills, the complexity of various disciplines, and professional job difficulties. Offerors are cautioned that lower compensation for essentially the same professional work may indicate lack of sound management judgment and lack of understanding of the requirement. Professional compensation that is unrealistically low or not in reasonable relationship to the various job categories may impair the Contractor's ability to attract and retain professional service employees, and thus, may be viewed as evidence of failure to comprehend the complexities of the contract requirements. Failure to comply with these provisions may constitute sufficient cause to justify rejection of a proposal.

(e) Indirect Costs. In order to verify the realism of the Offeror's proposed indirect rates, all Offerors should submit, as part of their Cost Proposal, documentation substantiating the accuracy of its proposed indirect rates. To the extent that an Offeror is proposing a subcontractor on a cost-reimbursement basis, the documentation substantiating the accuracy of the subcontractor's proposed indirect rates is also required. Acceptable documentation may include the following:

- (1) Copies of current or prior fiscal year DCMA Forward Pricing Rate Agreement (FPRA), the offeror's Forward Pricing Rate Proposal (FPRP), Provisional Billing Rate Approval or Provisional Billing Rate Submission, whichever is most recent.
- (2) If none of the documentation identified in paragraph (1) above is available, historical indirect data, to include provisional rates, actual incurred rates, and annual incurred cost claims (if submitted), shall be provided for the three years prior to the Offeror's current fiscal year. This data should include the all of the Offeror's indirect rates as applicable to the Offeror's accounting system. If proposing indirect rates significantly different from recent incurred rates, Offerors shall include a detailed explanation and supporting cost data (including budget information).

If the offeror is proposing subcontracts on other than a CPAF basis, the offeror should submit information as to whether the rates for the subcontractors are fixed based on a firm bilateral agreement with the subcontractor or merely proposed. In addition, the offeror shall explain why it believes the subcontractor can perform at those rates.

(f) For proposal purposes, the following ratios of Government facility and Contractor facility labor performance are established for all labor categories:

Government facility	Contractor Facility
100%	0%

(g) The offeror shall use the following estimated costs for travel and material amounts in preparing its cost proposal. These estimated amounts will be used as common evaluation amounts in all offerors' proposals; the amounts specified below include no associated indirect costs. The offeror shall include the estimated travel and materials costs specified below in its cost proposal, and load the costs appropriately with indirect costs. The estimated amounts below, plus indirect costs, as determined cost realistic by the Government, will be used in the evaluation of proposals, and will be included in resultant contracts as "not-to exceed" amounts under which the offeror will be permitted to invoice its actual costs.

Travel	Material
\$250,000 per year	\$7,500,000 Base Year, with a 3% escalation yearly

(i) Travel estimated above is for travel and subsistence associated with performance under any resultant contract which will be reimbursed in accordance with the clause entitled "Reimbursement of Travel Costs."

(ii) Material estimated above is for incidental material and special materials as defined in the clause entitled, "Allowability of Material and General Business Expenses" and elsewhere in the solicitation.

(iii) Any offeror having an accounting system that includes, within overhead or G&A, travel and/or material shall specifically state this fact within the price/cost proposal.

(h) Any and all subcontracts identified in the Non-price proposal shall be identified and priced in the price/cost proposal. Subcontracts (regardless of dollar value) shall be adequately documented. Subcontractor price/cost breakdowns may be submitted separately via the electronic methods described above and should be clearly labeled in the subject line as "Proposal N00189-25-R-Z003 Subcontractor to (Insert Name of Prime contractor) Email (#) of (#)".

(i) If the offeror is currently being audited, or has been audited, by the Defense Contract Audit Agency, the name and location of the assigned DCAA office should be furnished with the price/cost proposal.

(j) Pursuant to FAR 16.301-3(a)(3), a cost reimbursement contract may only be used when "The contractor's accounting system is adequate for determining costs applicable to the contract or order". If the offeror has an accounting system that has been determined by DCAA to be adequate for a cost reimbursement contract, the offeror should provide documentation of DCAA's determination. If an offeror's accounting system has not been determined to be adequate for determining costs applicable to cost reimbursement contracts, the offeror will be considered ineligible for contract award.

Section M - Evaluation Factors for Award

CLAUSES INCORPORATED BY REFERENCE

52.217-5	Evaluation Of Options	JUL 1990
52.222-46	Evaluation Of Compensation For Professional Employees	FEB 1993

SECTION M LANGUAGE

EVALUATION CRITERIA AND THE BASIS FOR AWARD

(1) The Government intends to award a contract resulting from this solicitation to the responsible offeror whose proposal represent the best value after evaluation in accordance with the factors in the solicitation. The offeror's proposal shall be in the form prescribed by, and shall contain a response to each of the areas identified in the Section L solicitation provision entitled "Submission of Proposals." The offeror's responses to the "Instructions to Offerors" in Section L of the solicitation will form the basis of the evaluation of proposals as follows: A rating that is less than "Acceptable" in any non-cost evaluation factor and/or less than a "Satisfactory Confidence" rating in the Past Performance evaluation factor will render a proposal ineligible for award consideration as submitted. The evaluation of proposals will consider the offeror's Non-price proposal more important than the offeror's cost/price proposal.

(2) The Non-price evaluation factors are listed below in descending order of importance. Past Performance will be the most important factor. The Performance Approach and Management Approach will be of equal importance. The Socio-Economic Plan will be of significantly less importance than any other factor.

Past Performance
Performance Approach
Management Approach
Socio-economic Plan

In considering the relevance of an offeror's past performance, the past performance references provided by the offeror will be evaluated individually and may also be evaluated in the aggregate. The Government reserves the right to evaluate submitted projects individually or in the aggregate in order to determine relevance and will do so consistently across all evaluated offers. If the Government elects to consider past performance references in the aggregate, the method of aggregation shall be at the discretion of the Government. If subcontractor past performance is provided as part of its three most relevant contracts or efforts, the subcontractor past performance will be given weight proportional to the scope and magnitude of the aspects of the work under the solicitation for which the subcontractor is proposed. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources including sources outside of the Government. Offerors lacking relevant past performance history will not be evaluated favorably or unfavorably on past performance. However, the proposal of an offeror with no relevant past performance history, while not rated favorably or unfavorably for past performance, may not represent the most advantageous proposal to the Government and thus, may be an unsuccessful proposal when compared to the proposals of other offerors. The offeror should provide the information requested above for past performance evaluation, or affirmatively state that it possesses no relevant directly related or similar past performance. This consideration is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating the relative capability of the offeror and other competitors to successfully meet the requirements of the RFP. In determining the rating for the Past Performance evaluation factor, the Government will give greater consideration to the contracts or efforts which the Government feels are most relevant to the RFP. An offeror determined to have no record of relevant past performance (or in an instance where no information on the offeror's past performance is available), will not be evaluated favorably or unfavorably for the Past Performance factor.

When an offeror is determined to have relevant past performance, the quality of its past performance will be evaluated; an offeror whose past performance demonstrates either a low expectation or no expectation that the offeror will be able to successfully perform the required effort will be considered ineligible for award.

The Government reserves the right to award the contract to other than the lowest priced offeror.

For all non-cost factors (other than Past Performance), an offeror's proposal must be determined to be Acceptable or better in order to be eligible for award. A rating that is less than "Acceptable" in any non-cost evaluation factor and/or less than a "Satisfactory Confidence" rating in the Past Performance evaluation factor will render a proposal ineligible for award consideration as submitted. A rating in any of the above factors that is less than "acceptable" or "satisfactory confidence" in Past Performance will render a proposal ineligible for award consideration and there will be no further evaluation of the offeror's proposal.

Cost will be evaluated on the basis of cost realism pursuant to FAR 15.404-1(d); the method of cost realism analysis to be used is at the discretion of the Contracting Officer.

Labor will be evaluated on the basis of the estimated level of effort, considering both straight-time and overtime, as stated in Section B.

The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer.

Evaluation of personnel compensation will be part of the cost realism evaluation. Unrealistically low proposed personnel compensation may also be considered to reflect a lack of understanding of the solicitation's requirements and/or create undue performance risk, and therefore may be assessed adversely as one of the considerations in making an award.

Cost will be evaluated on the basis of cost realism pursuant to FAR 15.404-1(d); the method of cost realism analysis to be used is at the discretion of the Contracting Officer. A cost realism analysis will NOT be conducted on any offeror rated less than "Acceptable" in its non-price submission.

As part of the cost realism analysis, personnel compensation will be evaluated. Evaluation of personnel compensation will be part of the cost realism evaluation. Total compensation will be evaluated for realism to assess whether proposed costs would be insufficient to recruit and/or retain qualified personnel, or are otherwise inconsistent with the probable cost of performance.

The contracting officer may employ methods of evaluating total compensation such as, but not limited to, comparison to government/commercial salary indices/surveys/market rates, standard deviation analysis, comparison to historical data, or comparison to compensation on similar efforts. The government will also consider supporting data provided by the vendor. The method of evaluation shall be at the contracting officer's discretion. The government will evaluate whether the total compensation is sufficient to recruit and/or retain qualified personnel, and if the proposed costs reflect the probable cost of performance for the constituent cost elements. This analysis may include consideration of any other aspect of the offeror's proposal that has bearing on the realism of its total compensation package. To the extent total compensation rates would be insufficient to recruit and/or retain qualified personnel, or are otherwise inconsistent with the probable cost of performance, rates shall be adjusted upward to reflect the probable cost. An upward adjustment of any cost element will not necessarily be indicative of performance risk or a vendor's lack of understanding.

With regard to FAR 52.237-10, "Identification of Uncompensated Overtime," proposals submitted that are based on the use of uncompensated overtime will be evaluated to ensure that the use of uncompensated overtime will not degrade the level of technical expertise required to fulfill the Government's requirements. In addition, a risk assessment will be conducted on proposals to be awarded on the basis of uncompensated overtime, with such evaluation to include risk assessments such as (1) unrealistically low labor rates or other costs that may result in quality or service shortfalls and (2) unbalanced distribution of uncompensated overtime among skill levels and its use in key technical positions.

The evaluation of the offeror's proposed Compensation for Professional Employees and proposed Uncompensated Overtime (if any), will be assessed for performance risk, aside from any adjustments to the offeror's cost proposal

that the Government sees as necessary for the cost realism evaluation. To the extent that an offeror's proposed Compensation for Professional Employees and/or proposed Uncompensated Overtime is evaluated as presenting a high risk to successful performance, the offeror's proposal will be considered unawardable.

For the purpose of preparing a cost/price proposal, the offeror shall assume that the basic period of performance shall be from 1 May 2026 through 30 April 2027 with four option periods as follows:

Option I	1 May 2027 through 30 April 2028
Option II	1 May 2028 through 30 April 2029
Option III	1 May 2029 through 30 April 2030
Option IV	1 May 2030 through 30 April 2031

The Government has estimated travel and material costs as specified below:

Travel	Material
\$250,000 per year	\$7,500,000 Base Year, with a 3% escalation yearly

The Government's estimated travel and material costs (plus applicable burden) shall be used for the purpose of evaluating the cost/price proposal. Therefore, offerors shall use these estimates in preparing their cost/price proposal. Application of material handling charges and/or G&A rates, as appropriate, will be allowed only if the contractor maintains separate accounts for such costs and will be in addition to the common evaluation amounts.